
CITY OF GALLATIN COUNCIL COMMITTEE MEETING

June 09, 2020

6:00 pm

ELECTRONIC MEETING

Pursuant to Governor Lee's Executive Order No. 16 and No. 34 and the need to limit the community spread of COVID-19, the June 09, 2020 Gallatin Council Committee Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin.

Join the Zoom Meeting at <https://us02web.zoom.us/j/82782522303>, dial +1 470 250 9358 or +1 470 381 2552, and enter Webinar ID: 827 8252 2303.

- Call to Order – Councilman Fann
- Roll Call: Alexander – Vice Mayor Camp – Fann – Fennell – Hayes– Love – Overton – Mayor Brown
- Approval of Minutes: May 12, 2020 Council Committee Meeting
- Public Recognition
- Mayor's Comments

AGENDA

1. Presentation and Discussion of the Findings of an Annexation Study for Five Parcels Totaling 524.14 +/- Acres (Tax Map//Parcel – 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00, Locate South of Roundtree Drive, West of Brights Lane, and North of Hartsville Pike **(Bill McCord, City Planner)**
2. Resolution No. R2006-32 Adopting an Amendment to the Urban Growth Boundary of the City of Gallatin Affecting Properties and Part of the Big Station Camp Boulevard Right-of-Way Located in the Area South of the CSX Railroad and North of Nashville Pike **(Bill McCord, City Planner)**
3. Resolution No. R2006-33 Authorizing the Mayor to Execute Big Station Camp Boulevard Transportation Improvements Pro-Rata Share Agreement with TNHomesites.com and Tenn Properties Newsmans Crossing GP **(Nick Tuttle, City Engineer)**
4. Discussion of 2020 Fourth of July Celebration **(Jimmy Overton, Councilman)**
5. Discussion of Third Thursday Concerts **(Shawn Fennell, Councilman)**

- Other Business
- Department Head Reports
- Adjourn

The City of Gallatin Council Committee Electronic Meeting

Tuesday, May 12, 2020

Vice Mayor Steve Camp called the meeting to order at 6:00 P.M.

Pursuant to Tennessee Governor Bill Lee's Executive Order #16 and the need to limit the community spread of COVID-19, the May 12, 2020 Gallatin City Council Committee Meeting was held by electronic means. The meeting was live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meetings were available on the City's website.

Councilman Overton made motion to allow the meeting electronically; Councilman Alexander seconded.

Vice Mayor Camp requested a roll call vote to allow the meeting electronically.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Vote passed with 7 ayes and 0 nays.

Vice Mayor Camp asked for a roll call of those present.

City Recorder Connie Kittrell called the roll and the following were present:

Vice Mayor Steve Camp	Present
Councilman John D. Alexander	Present
Councilman Steve Fann	Present
Councilman Shawn Fennell	Present
Councilman Craig Hayes	Present
Councilwoman Lynda Love	Present
Councilman Jimmy Overton	Present

Mayor Brown was also present.

DEPARTMENT HEADS AND OTHERS PRESENT:

Bill McCord, City Planner
Nick Tuttle, City Engineer
Susan High-McAuley, City Attorney
David Gregory, Public Utilities Dir.
Rachel Nichols, Finance Director
Connie Flood, Human Resource Dir.
Jeff Hentschel, Communications Dir.

Chuck Stuart, Building Official
Don Bandy, Police Chief
Lori Smiley, IT Director
Connie Kittrell, City Recorder
Zach Wilkinson, Public Works Dir.
James Fenton, EDA Director

Approval of Minutes

Vice Mayor Camp presented the April 28, 2020 Council Committee minutes for approval.

Councilman Overton made motion to approve; Councilman Hayes seconded.

Councilwoman Love made one correction on page 4. – space between the and money.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

Public Recognition

Vice Mayor Camp opened public recognition.

Communications Director Jeff Hentschel called upon those wishing to speak.

- Jeannie Gregory, Chairman for the Economic and Community Development Board for the City of Gallatin. She asked to make some comments about an issue that will be addressed this evening.

- Mr. Hentschel moved on to the next person to allow Ms. Gregory more time.
- Michelle Jouvence of 1335 Long Hollow Pike spoke about several items concerning the budget.
- Pascal Jouvence of 1335 Long Hollow Pike said he could not email a picture to council members today. He said he would come back next week.
- Jeannie Gregory read a comment supporting Project Wool Hawk and asked council to move this project forward.
- Phone #283 made no comment.
- Bo's Ipad made no comment.
- CB made no comment.
- COG (City of Gallatin)
- EK Stephens made no comment.
- No Thanks made no comment.
- Rock the Wall Street made no comment.

With no one else wishing to speak public recognition was closed.

Mayor's Comments

- Mayor spoke about continuing to navigate this COVID-19 path and her high regard for all city employees.
- Flower baskets are going up and a big thank you goes to Gallatin High School and Station Camp High School teachers that kept the flower baskets going after the schools closed.

Agenda

1. Ordinance #O2005-22 - Rezoning a 0.67 (+/-) Acre Lot, from the R40 Low Density Residential District to the MRO-Multiple Residential Office District with a Preliminary Master Development Plan for the Montgomery Office

City Planner Bill McCord provided visuals/ maps of the property requesting the rezoning. Mr. McCord gave a detailed description of the plans for this property. He added the Planning Commission reviewed this request and unanimously recommended approval.

Council discussed.

Councilman Fann made motion to move to council; Councilwoman Love seconded.

Council continued to discuss.

City Recorder Connie Kittrell called the roll call vote.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

2. Review of Development Agreement for Project Wool Hawk

EDA Director James Fenton provided information on the Development Agreement for Project Wool Hawk. Mr. Fenton said this was a team effort and thanked Department Heads and everyone that worked on this project.

There were several questions and much discussion.

Councilman Fann made motion to move to council; Councilman Fennell seconded.

City Attorney Susan High-McAuley said there will be a resolution on the agenda next week authorizing the Mayor to sign the Development Agreement.

There was more discussion.

City Recorder Connie Kittrell called the roll call vote.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

3. Resolution #R2005-24 – Approving Payment in Lieu of Tax (PILOT) Program Economic Development Incentive for Project Wool Hawk

EDA Director James Fenton presented this resolution approving the payment in lieu of tax program.

Councilman Overton made motion to move to council; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

4. **Resolution #R2005-26 - Authorizing Card Services Agreement with Global Payments Direct, Inc. for Municipal Court Software Credit Card Payment Services**

City Recorder Connie Kittrell requested deferral on this resolution.

5. **Purged Bad Debt FY-2020 for Utilities**

Public Utilities Director David Gregory provided information on the utility reports purging three (3) year old bad debts. Mr. Gregory said this is the least amount in the last 10 years.

Council discussed.

6. **Ordinance #O2005-21 - Waiving Tap Fees on Behalf of Habitat for Humanity of Sumner County**

Public Utilities Director David Gregory present the request from Habitat for Humanity of Sumner County to waive tap fees.

Councilman Hayes made motion to move to council; Councilwoman Love seconded.

City Recorder Connie Kittrell called the roll call vote.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

7. **Ordinance #O2005-20 - Appropriating \$129,600 Received from the State of Tennessee for Training Supplements**

Finance Director Rachel Nichols presented this ordinance for the annual training supplements for police and fire.

Councilman Overton made motion to move to council; Councilman Fennell seconded.

Council discussed.

City Recorder Connie Kittrell called the roll call vote.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

8. Resolution #R2005-25 – Approve Lease Agreement & Regulations City/Lessor – Gallatin Chamber of Commerce Farmer’s Market – West Franklin Street

Mayor Brown presented the renewing of the lease agreement with the Farmers Market.

City Attorney Susan High-McAuley said there were no changes to the agreement but there was one addition; to auto renew until either party decides to terminate.

Councilman Hayes made motion to move to council; Councilman Alexander seconded.

Councilman Overton disclosed that he is on the Gallatin Chamber Board.

City Recorder Connie Kittrell called the roll call vote.

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion carried with 7 ayes and 0 nays.

Other Business

Vice Mayor Camp opened other business.

- Mayor Brown explained her plan to open city buildings on May 18th and asked council for any thoughts.

Council discussed masks and social distancing.

Mayor announced that free masks are available.

Mayor said virtual meetings are continued until June 30th. Mayor said she was in favor of continuing the virtual meetings because of not being able to meet the allowable number in the meetings.

Mayor said she plans to do another Executive Order.

Mayor said there were two (2) new Executive Order's #36 and #37 issued by Governor Lee today.

- Councilman Alexander asked everyone to support local businesses.

With no one wishing to speak Vice Mayor Camp closed other business.

Department Head Reports

Vice Mayor Camp opened department head reports and with no one wishing to speak department head reports was closed.

Adjourn

Without objection Vice Mayor Camp adjourned the meeting at 7:05 P.M.

Mayor Paige Brown

Connie Kittrell City Recorder

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 9, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 1

SUBJECT:

Presentation and discussion of the findings of an Annexation Study for five (5) parcels totaling 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike

SUMMARY:

An Annexation Study was prepared to analyze the fiscal impact of this annexation on the city. This was based on assumptions of tax generation from the annexation and proposed zoning and projected service fees. The Council Committee considered the proposal for annexation at the May 26, 2020 meeting.

On May 18, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the Annexation and Plan of Services in GMRPC Resolution No. 2020-077. (ANNX-2020-0006)

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:



WOOL HAWK ANNEXATION STUDY

June 9, 2020



CITY OF GALLATIN, TENNESSEE
WOOL HAWK ANNEXATION FEASIBILITY STUDY
June 9, 2020

INTRODUCTION

The City of Gallatin has experienced a steady growth rate over the past thirty years. According to the United States Census Bureau, the population in the City of Gallatin increased from 23,230 in 2000 to 30,278 in 2010. A special census conducted by the City in 2015 indicated a population of 34,473 and the 2018 population is estimated to be 40,457 (U.S. Census Bureau, 2019). For purposes of this study a population of 40,000 was assumed.

Gallatin's growth is due in large part to its location and accessibility to the Nashville metropolitan area. Several major roadway projects recently have been completed or are under development that will improve Gallatin's accessibility to the surrounding Nashville metropolitan area. In addition, the City's business recruitment efforts and excellent quality of life have enabled the City of Gallatin to attract many new residential, retail, office, and industrial developments.

The City of Gallatin expects the growth in the City and surrounding area to continue and rapidly increase over the next 5 to 10 years. This growth is expected to occur rapidly on the west side of Gallatin between Long Hollow Pike (SR-174) and Nashville Pike (US-31E/SR-6) and more gradually on the north, south, and east sides of the City. The *Gallatin on the Move 2020 General Development and Transportation Plan* established the land use and transportation policies for Gallatin and the surrounding area through 2020. Several major roadways and other infrastructure projects have been constructed or are under development to prepare for this growth.

In 1998, the Tennessee General Assembly approved Chapter 1101, which amended Tennessee Code Annotated, Title 6, Chapters 51 and 58, requiring local governments to establish growth plans including an urban growth boundary (UGB) and a comprehensive plan.

The city's UGB Plan was established to accommodate the city's growth over the 20 year study period (1999-2019). The UGB encompasses 53 square miles (about 34,000 acres) while the current city boundary encompasses 32.61 square miles. The City projected the possibility of having to provide necessary urban services within much of the UGB during this time period. This includes, but is not limited to, police, fire, sanitation, streets, leisure services, electric, gas, water, sewer, codes administration, engineering, and planning and zoning services. The Urban Growth Boundary now is being evaluated and, if necessary, may be adjusted to accommodate growth needs for the next 20 years.

PURPOSE OF STUDY AND STUDY AREA

The purpose of this Annexation Study is to evaluate the feasibility of annexing five (5) parcels totaling 524.14 +/- acres (Tax Map//Parcel - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00), located south of Roundtree Drive, west of Brights Lane, and north of Hartsville Pike. (Location Map - Map 1). In April 2020, the property owners and owners' agent petitioned the city for

annexation of the contiguous properties, which are currently vacant except for one residence.

Prior to 2015, municipalities were permitted to annex properties by Ordinance without the consent of the affected property owners. The Tennessee General Assembly amended the annexation statutes (Tennessee Code Annotated §6-51-104(d)) to limit annexation to property owners who petition the city or by referendum. In addition, annexations, with few exceptions, must occur within the Urban Growth Boundary. Since 2015, all City of Gallatin annexations were the result of petitions submitted by the property owners and were adopted by resolution.

Municipalities will typically consider annexation for the following reasons:

- To ensure the orderly future growth of the City and its surrounding areas;
- To ensure unified planning and zoning regulations and enforcement consistent with the adopted Comprehensive Plan and UGB plan;
- To protect or enhance the current and future municipal tax base;
- To increase the size and population of the community;
- To distribute the cost of providing municipal services more equitably and to facilitate the long-range planning for the provisions of those services; and
- To coordinate municipal services.

The City of Gallatin shares similar motivations for considering the annexation of the area included in this study and, in particular, because the land will provide additional opportunity to transform the area to promote economic development. In addition, the area being studied is located within the Gallatin UGB, and the City has a vested interest in ensuring the orderly future growth and development of the area in accordance with City standards including the Comprehensive Plan.

The rezoning request accompanying the annexation petition would change the zoning from R1A (County) and MDRPUD (County) to the IR-Industrial Restrictive District. No site plan is included with this rezoning request.

WOOL HAWK ANNEXATION



CITY OF GALLATIN RECENT ANNEXATION HISTORY

The City was most recently chartered in 1953. Many annexations and de-annexations have occurred since this time. All of the property annexed into the City between 2000 and 2015 has been at the request of individual property owners or initiated by the City. Since mid-2015, all annexations have occurred by resolution upon submittal and a petition submitted by the property owner and approved by the City. The City approved one non-contiguous annexation in 2017—Langford Farms (File No.6-6301-17) and another in early 2020 for The Meadows project, which is subject to approval of an Interlocal Agreement with the county. Exhibit A lists all of the annexations that occurred between 1953 and the present.

PLAN OF SERVICE REQUIREMENTS

Before any territory may be annexed, the governing body shall adopt a plan of services establishing the services to be delivered and the projected timing of the services (Tennessee Code Annotated §6-51-102). The plan of services shall be reasonable with respect to the scope of services to be provided and the timing of the services. The plan of services shall include, but not be limited to: police protection, fire protection, water service, electrical service, sanitary sewer service, solid waste collection, road and street construction and repair, recreational facilities and programs, street lighting, and zoning services. However, T.C.A. Section 6-51-102 (a) (2), exempts a plan of service by the municipal service provider if a private entity provides these services. Upon annexation, the property will also be considered for Industrial zoning. All property owners in the annexed territory shall be entitled to the full benefits afforded to property owners in the City.

With this annexation, the property will be zoned for industrial uses. No specific level of service or cost is established for non-residential uses. Therefore, where appropriate, staff employs a methodology that evaluates the annexation service levels based on the service level applied throughout the City on a ratio of the current acreage and the proposed acreage to the city. Based on the overall current acreage within city limits (approximately 32.58 square miles or 20,850 acres per the Gallatin GIS Department), an increase of approximately 524 acres would result in a 2.5% increase in land within the City.

URBAN PUBLIC SERVICES INVENTORY AND ANALYSIS

Public Utilities – Water, Sanitary Sewer, and Gas

The Gallatin Public Utilities Department provides water, wastewater, and natural gas services to residential, business, and industrial customers in the City of Gallatin and in certain areas outside the City's corporate limits. The Gallatin Public Utilities Department indicates that there is sufficient water, sanitary sewer, and natural gas infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation currently have water, sanitary sewer, and/or natural gas services available.

The *Gallatin on the Move 2020 Plan* was adopted by the Gallatin Municipal-Regional Planning Commission on February 23, 2009. This plan includes recommendations for implementing public facility and service improvements and identifies specific objectives to accomplish these recommendations (Page 6-10, *Gallatin on the Move 2020 Plan*.). Among these are the following:

Objective: Require infrastructure to be in place for growth, limit sewer infrastructure to the city limits (page 2-3).

Objective: Prohibit development unless adequate infrastructure is in place or can be provided by the developer.

Objective: Build sewer and water treatment facilities to accommodate growth over the next 20 years.

Objective: Extend utilities to reach developable areas within the City boundaries.

Several strategies or policies were also identified in reaching these objectives including:

Research opportunities to coordinate with other jurisdictions to deliver City expanded services.

Implement plans to expand sewer and water treatment facilities.

Develop long-range utility expansion plans consistent with the Community Vision described in the Community Character Map.

Maintain existing City policy requiring annexation in order to extend sewer and other city-operated utilities to new developments.

The developer will be responsible for all costs associated with the water and sanitary sewer and gas service infrastructure improvements necessary to support the annexation and development of these properties. Specific improvement requirements will be evaluated at the site plan stage.

Planned Sanitary Sewer Projects and Revenues

The Public Utilities Department (GPU) will provide sanitary sewer service to the area upon annexation. Sanitary sewer line extensions will be required to and within any development proposed for the annexation area. The central sewer lines will be extended from existing lines along Gateway Drive. Extension and construction of sewer lines within and in the vicinity of the properties will be the responsibility of the developer. Upon completion, the City may accept any public infrastructure improvements.

Planned Water Line Projects and Revenues

The area proposed to be annexed is currently served by Castalian Springs-Bethpage Water Utility District. However, the Public Utilities Department (GPU) will provide water service to the area upon annexation. Water lines will be extended from existing lines along Gateway Drive. Extension and construction of water lines within and in the vicinity of the properties will be the responsibility of the developer. Upon completion, the City may accept any public infrastructure improvements.

Public Utility Gas Service and Revenues

The Public Utilities Department (GPU) provides gas service in the area. Gas lines will be extended from existing lines along Gateway Drive. Extension and construction of gas lines within and in the vicinity of the properties will be the responsibility of the developer. Upon completion, the City may accept any public infrastructure improvements.

Public Utility Staff

No additional employees or equipment is needed to provide service in the annexation area.

Electrical Service

The Gallatin Department of Electricity (GDE) provides electrical distribution service throughout the City

of Gallatin. Cumberland Electric Membership Corporation (CEMC) is the primary service provider for customers located outside of the City limits, including to the proposed annexation site. The source of electricity would change with the annexation of the subject properties.

The Gallatin Department of Electricity indicates that additional electrical infrastructure would be necessary to provide service to this area. The department also indicates that GDE would only provide temporary power while Tennessee Valley Authority (TVA) would provide permanent power for future large-scale development within the proposed annexation area.

Recreational Facilities and Programs

The Leisure Services Department provides recreational and athletic services for both city residents and non-residents. Leisure Services actively operates approximately 486± acres of recreational/athletic parks facilities/properties and open space including a 136-acre, 18-hole, municipal golf course on Long Hollow Pike and a multi-purpose Civic Center which is used for a variety of civic, sports and recreational activities. In addition, the City has approximately 193 acres of Army Corps of Engineers park/recreational facilities within or adjacent to the city. The City Recreation Department maintains and operates facilities within some of these areas.

On April 16, 2019, the City Council acquired 67.9 +/- acres of property in three (3) locations around the City. At the publishing of this report, no formal plans have been drafted for the future use of these properties. The department responsible for the maintenance and programming of these areas is not known at this time. These areas are not included in the overall park acreage calculations and annual maintenance budget projections.

The benefit and use of all recreational facilities and programs currently provided by the City of Gallatin will be available to owners of the subject property after the effective date of the annexation and will be provided with existing personnel, facilities, and resources.

Due to the nature of the proposed industrial zoning, any financial effect on recreational facilities and programs will be insignificant.

Public Works - Solid Waste Collection

The Public Works Department provides residential solid waste collection and disposal services throughout the City. Additionally, it provides brush collection/disposal and junk collection/disposal services. Sumner County currently does not provide solid waste collection services. Residents that live outside the City in the County must either contract for collection by a private hauler or take their solid waste to the Sumner County Resource Authority. The City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in Chapter 14 of the Gallatin Municipal Code.

Solid waste collection services are revenue neutral with revenue generated equaling expenses. Therefore, no additional expenses beyond those that are generated by the fund will impact the City.

As is common with commercial and industrial businesses, trash collection will be handled by a contracted service.

Public Works - Street Construction and Repair

The Public Works Department provides street construction, resurfacing, and repair and maintenance services throughout the City using in-house crews and contractors, depending on the specific scope of the work. In addition, the Engineering Division and the Planning Department program long-range street planning in coordination with the Tennessee Department of Transportation (TDOT) and the Nashville Area Metropolitan Planning Organization.

With this annexation request, no existing rights-of-way are proposed to be annexed, and no new rights-of-way are proposed to be built at this time. Future street construction will be negotiated by the developer and the City.

Public Works – Vehicle Maintenance

The Public Works Department provides vehicle maintenance for all city vehicles and is budgeted at \$658,310 (City of Gallatin, 2019). This represents a cost of \$16.46 per person. Depending on the growth rate of the city, additional Public Works service vehicles and new positions may be required to service the city including the annexed area. This was not figured into the analysis.

With this annexation request, no existing rights-of-way are proposed to be annexed, and no new roadways/streets or new public drainage systems are proposed to be built at this time.

This analysis addresses the potential need for two (2) additional police vehicles to patrol in the proposed annexation area. This would add to the current fleet of city vehicles.

Street Lighting

Street lighting is managed and maintained by the Gallatin Department of Electricity. Street lights provide lighting for safe use of the streets at night, particularly at intersections. While some benefit is received by abutting properties, the street lighting program is not designed to provide security lighting. Street lighting can be extended into the annexation area along with the extension of the electric facilities. Street lighting is normally installed with the occupancy of buildings in a developed area. The Gallatin Electric Department (GED) is now installing the newer, high-efficiency LED street lights in the City.

With this annexation request, no existing rights-of-way are proposed to be annexed, and no new rights-of-way are proposed to be built at this time. Any new public roadways would require street lighting.

Planning and Zoning Services

The City of Gallatin Planning Department provides planning and zoning services throughout the City and within the Planning Region. The Planning Department works with property owners and developers to determine the most appropriate zoning and uses for their property consistent with the City's Gallatin on the Move 2020 General Development Plan and the Zoning Ordinance. The Municipal/Regional Planning Commission is responsible for reviewing and recommending rezoning requests and approving development proposals. The City Council is responsible for approving rezoning requests. The Planning Department also investigates and resolves zoning complaints and violations. The Sumner County Planning and Codes Department is responsible for planning and zoning services in the areas located in the UGB, outside of the City of Gallatin's Planning Region. As the City continues to develop, additional planning staff will be necessary to provide the same level of service to the community.

The annexation area can be served by existing Planning Department resources without significant costs to property owners or to others in the City.

Building and Codes Administration

The Building Codes Department is responsible for reviewing building plans and issuing residential and non-residential building permits and providing the necessary inspections to ensure compliance with adopted city codes throughout the City and within the Planning Region. However, the City does not enforce municipal building code violations outside of the city limits. In addition, Sumner County is responsible for enforcing nuisance complaints outside of the city limits, regardless of whether the property is located within the Planning Region and/or UGB.

The annexation area can be served by existing Building Department resources without significant costs to property owners or to others in the City.

Police Services

The City of Gallatin Police Department provides enforcement and safety education services within the corporate limits of the City of Gallatin with a strong focus on domestic violence intervention, traffic safety, and community outreach programs. A 2016 Annual Report by the Gallatin Police Department indicates the department has 114 total staff, including 70 sworn officers, 26 civilian staff, and 18 reserve officers (Gallatin Police Department, 2016). The Sumner County Sheriff's Department has 100 deputies to service the entire County with a projected population in 2018 of 185,950 (Boyd Center for Business and Economic Research, 2019). The City of Gallatin has mutual aid agreements with surrounding jurisdictions to provide/receive additional support when needed. Additionally, joint task forces have been established, including the Emergency Response Team, the Drug Task Force, DUI checkpoints, criminal investigations, and criminal prosecutions.

Several growth related factors influence crime control and prevention service effectiveness, including:

- the level of service based on a 2.55 police officers per 1,000 population ratio,
- the extent of the geographic service area,
- the culture/nature of crimes, and
- population density and concentration.

In 2007, the Municipal Technical Advisory Services recommended that the City maintain an officer to population ratio of 2.55 police officers per 1,000 citizens. The national average is 2.4 officers per 1,000. The current support personnel ratio is slightly more than 1.0 per 1,000 citizens. A similar ratio must be maintained to provide the same level of service as the city grows.

As this annexation is for an industrial use, the level of service and cost standard is not traditionally evaluated based on non-residential use. The Police Department indicated that additional police officers and departmental vehicles would be needed to provide service to this area.

An increase of approximately 524 acres within city limits would result in a 2.5% increase in land to be patrolled by the City of Gallatin Police Department. With 70 sworn officers on staff, the Police

Department could potentially expect to need two (2) additional officers to service the annexation area. The Gallatin Police Department also assigns each officer his/her own vehicle. The total cost for a fully equipped patrol vehicle is \$50,485 using current City budget estimates.

For purposes of this study, police level of service was estimated based on the current year budget of \$9,338,539.

Table 1: Estimated Additional Costs

POLICE SERVICES BUDGET	
2019 Budget:	\$9,338,539
Additional Cost for Two Additional Officers	\$102,600*
Additional Cost for Two Additional Vehicles	\$100,970 (one-time)

* based on the average annual salary of a police officer in TN

Fire Protection Services

The City of Gallatin Fire Department (GFD) provides full-time fire protection service to all City residents. The GFD currently has 98 full-time employees, including 90 firefighters, engineers, and officers. Based on this staffing level, the city provides one firefighter per 444 persons.

As this annexation is for an industrial use, the level of service and cost standard is not traditionally evaluated based on non-residential use. The Fire Department indicated that this annexation will place additional strain on Fire Station #1 and the system altogether. Due to the sites and the location and distance from primary and secondary response fire stations, the size of the project, as well as the extended emergency apparatus travel/response times required for on-scene arrival, the Fire Department recommends that an additional fire station with the proper number of assigned firefighters and necessary equipment be provided in the eastern side of town. The additional station is needed to serve other properties in the area and is not solely dependent upon the annexed territory to justify the need for a station.

The future Fire Station #6 on Commerce Way will likely become a more pressing need as the eastern side of town continues to develop.

An increase of approximately 524 acres within city limits would result in a 2.5% increase in land area to be served by the City of Gallatin Fire Department. With 90 firefighters on staff, the Fire Department could potentially expect to need three (3) additional firefighters to service the annexation area.

For purposes of this study, fire level of service was estimated based on the current year budget of \$7,692,130.

Table 2: Estimated Additional Costs

FIRE PROTECTION SERVICES BUDGET	
2019 Budget:	\$7,692,130
Additional Cost for Three Firefighters	\$118,830*

* based on the average annual salary of a firefighter in TN

Stormwater

The City of Gallatin is regulated by the Environmental Protection Agency (EPA) as part of the National Pollutant Discharge Elimination System (NPDES), Phase II, to manage stormwater discharges (Environmental Protection Agency, 2019). In July of 2018, the City adopted an ordinance creating a Stormwater Utility and Fee program to provide an action plan and a revenue source for the City to meet its MS4 (Municipal Separate Storm Sewer systems). As part of the ordinance, a monthly fee, based on impervious coverage, less credits, is billed through the appropriate utility provider (GPU or WHUD).

The fee for non-residential development is based on the equivalent residential unit (ERU) or SFU (Single-Family Unit). Per the City of Gallatin Stormwater website:

“To determine the monthly fee, divide the total impervious area of the property by 3,650 square feet (or one Single Family Unit) to obtain the number of SFUs and multiply by the base single family rate (\$5.00 per month per SFU).”

The Stormwater fund is revenue neutral with revenue generated equaling expenses. Therefore, no additional expenses beyond those that are generated by the fund will impact the City.

PROJECT REVENUES AND COST FEASIBILITY

Upon adoption of a Plan of Services resolution and annexation resolution, the city shall provide the documents to the Emergency Management Communications Center per Section 6-51-119, Tenn. Code Annotated. In addition, per Section 6-51-115, Tenn. Code Annotated, the City shall provide information to the state pertaining to all sales and use taxes. Since the property is substantially undeveloped, no sales or use tax revenues from these sources are generated from the property. However, property taxes are generated each year. The current property tax revenues are identified in Table 3 below. Some parcels (Tax Map 112, Parcel 013.02) included in the annexation are classified as a greenbelt (GB) property by Sumner County Register of Deeds. All other tax revenue is allocated to Sumner County.

Table 3. Current Property Tax Revenues for the Tax Parcel

Map & Parcel Number	Taxable Value	Assessed Value	Property Taxes
112//013.02	\$143,319	\$57,327.60	\$1,295.60 (GB)
111//118.00	\$34,900	\$13,960	\$315.50
111//002.00	\$719,604	\$287,841.60	\$6,505.22
P/O 105//048.00	\$89,816	\$35,926.40	\$811.94
P/O 105//047.00	\$29,214	\$11,685.60	\$264.09
TOTAL	\$1,016,853	\$406,741.20	\$9,192.35

*(Commercial properties are assessed at 40% of taxable value so the total property tax assessment is \$406,741.20. This results in a current property tax of \$9,192.35 based on the county's rate of \$2.26/\$100 of value.)

PROPERTY VALUATION

Industrial (Commercial) properties are assessed at 40 percent of appraised value. The City of Gallatin's current tax rate is \$0.80 per \$100 of assessed value and Sumner County's current tax rate is \$2.26 per \$100 of assessed value. Property owners located within the City of Gallatin pay a combined property tax rate (City and County) of \$3.06 per \$100 of assessed value.

Table 4 compares the tax liability for a 100 acre industrial development (Beretta) valued at \$12,554,700 located in the City of Gallatin with the proposed development type if located inside the City. The projected total property tax obligation for an industrial building valued at \$12,554,700 with applicable adjustments would be \$113,494 in the county and \$40,175 within the city.

Table 4. Example for Beretta on 100 Acres

City Tax	= \$12,554,700 x .40 = \$5,021,880 x .80/100 =	\$40,175
County Tax	= \$12,554,700 x .40 = \$5,021,880 x 2.26/100 =	\$113,494
Total Property Tax		\$ 153,669

The assumed value of any future industrial development is expected to compare with other industrial developments in the Gallatin Industrial Center such as Beretta, which was recently constructed along Gateway Drive. However, the proposed 524 acre annexation is 5.25 times the size of the Beretta property. Taking this aspect into account, the total tax obligation upon development is conservatively projected as follows:

Table 5. Example for Industrial Development in Annexation Area of 524 Acres

City Tax Projection	= \$65,912,175 x .40 = \$26,364,870 x .80/100 =	\$210,919
County Tax Projection	= \$65,912,175 x .40 = \$26,364,870 x 2.26/100 =	\$595,846
Total Property Tax Projection		\$ 806,765

Upon development of the property, approximately \$806,765 in property tax revenue would be generated including \$210,919 in yearly property tax revenue to the city.

CONCLUSIONS AND RECOMMENDATIONS

The proposed annexation for 524.14 acres is a unique request from a cost-benefit analysis perspective due to the amount of information that is not known but also is not required at the time of annexation. Annexing and rezoning the subject properties to an industrial zoning will substantially increase the value (\$1,016,853 as residentially/agriculturally zoned and vacant land to \$65,912,175 as industrially zoned and developed land) and will increase the associated property taxes (\$9,192 in the county to potentially \$806,765 when fully developed within city limits). City services such as utilities, fire and police services, and administrative and permit costs cannot be fully evaluated since there is no specific development tied to the annexation request. Potential revenue and expenditures will be dependent upon the future development of this site.

Outside of the scope of this study, a site plan for Wool Hawk has been submitted to the Gallatin Planning Department for review by the Planning Commission should the City Council approve the plan of service, annexation, and rezoning requests. Additionally, two resolutions were approved by the City Council at the May 19th Council meeting. Resolution No. R2005-24 approved a Payment in Lieu of Tax (PILOT) Program Economic Development Incentive for Project Wool Hawk. Resolution No. R2005-27 authorized the Mayor to sign a Development Agreement with Wool Hawk LLC. These actions have a direct impact on the future revenues and expenditures to be associated with development of the subject property.

This annexation study and preliminary plan of service was prepared after receiving the petition of annexation for presentation to the City Council. The Plan of Service and Annexation Resolutions will be

considered after public hearings are held on these items. The City of Gallatin is prepared to provide for the future growth and development that is expected to occur on the properties over an extended period needed to fully develop the properties. If annexation is not pursued in a timely manner, the City's ability to successfully manage growth will be negatively impacted.

**PLAN OF SERVICE FOR
TAX MAP//PARCEL - 111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; AND
111//118.00
(ANNX-2020-0006) pursuant to Tenn. Code Annotated § 6-51-102(b)**

A. Potable Water

The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that there is sufficient water infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation area currently have this service available. The developer will be responsible for all costs associated with the infrastructure improvements necessary to support the annexation and development of these properties.

B. Sanitary Sewer

The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that there is sufficient sanitary sewer infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation area currently have this service available. The developer will be responsible for all costs associated with the infrastructure improvements necessary to support the annexation and development of these properties.

C. Street Construction and Maintenance

No new public right-of-way is proposed to be annexed with this request. Any new roadways and future maintenance needs will be dependent upon subsequent development and shall be evaluated with future site plans and subdivision plats.

D. Solid Waste and Refuse Collection

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code. Industry and business will have access to city operated resource recovery programs and services. Depending on specific users, some or all sanitary waste collection services may be contracted to private service providers/operators.

E. Planning and Zoning Services

Upon annexation, planning and zoning services, including zoning enforcement, will be provided by the City of Gallatin.

F. Building Inspections and Code Enforcement Services

Upon annexation, building and code inspection services will be provided by the City of Gallatin.

G. Fire Protection

The Fire Department indicated that this annexation will place additional strain on Fire Station #1 and the system altogether. Due to the project's (Wool Hawk's) location and distance from primary and secondary response fire stations, the size of the project, as well as the extended emergency apparatus travel/response times required for on-scene arrival, the Fire Department recommends that an additional fire station with the proper number of assigned firefighters and necessary equipment be provided in the eastern side of town.

The Fire Department recommended that Fire Station #6 be considered as a part of this project. The location of the station will be on Commerce Drive (112//016.00) approximately 2.1 miles

from the majority of the property and will require an average response time of five (5) minutes. As the annexed area is developed, fire protection will be evaluated to determine the sufficient levels of service. The City will begin the process of planning and construction of the fire station to serve the area.

H. Police Protection

After the effective date of the annexation, the Gallatin Police Department will provide police patrol, response to calls, and other routine police services to the properties. The Police Department indicated that additional police officers and departmental vehicles will be needed to provide service to this area.

I. Animal Control

The Gallatin Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

J. Recreational Facilities and Programs

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available. Recreational facilities and programs will be provided with existing personnel, facilities, and resources. However, the City does not anticipate any residential development on the property so the need for additional recreation resources to maintain suitable Levels of Service is not anticipated.

K. Street Lighting and Electric Service

Cumberland Electric Membership Corporation currently services this area outside of Gallatin city limits. The Gallatin Department of Electricity indicated that additional electrical infrastructure would be necessary to provide service to this area. The department also indicated that GDE would provide temporary power while TVA would provide permanent power.

L. Gas

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. The Gallatin Public Utilities and Industrial Pre-Treatment Departments indicated that, upon extension of service lines, there is sufficient natural gas infrastructure in this area to support the proposed annexation, although not all properties in the proposed annexation currently have this service available. The developer will be responsible for all costs associated with the gas utility infrastructure improvements necessary to support the annexation and development of these properties.

M. School System

The City provided written notice to the Sumner County School System of the proposed annexation and rezoning prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2).

Appendix A: Utility Rates for Industrial Businesses in the City of Gallatin

GPU WATER AND SEWER

Gallatin Water and Sewer (Outside City)		Gallatin Water and Sewer (Inside City)	
First 250 cubic feet	\$ 17.80	First 250 cubic feet	\$ 11.92
Over 250 cubic feet	\$ 4.88 per 100 cubic ft	Over 250 cubic feet	\$ 3.25 per 100 cubic ft

GPU GAS

Gallatin Public Utilites (month)	
Industrial Customer Charge	\$0.73 per ccf

GALLATIN ELECTRIC

General Customer Charge	\$ 19.60
Energy Charge Kwh .08523 Kwh	0.08523
Fuel Cost .01718 Kwh	0.01543

Exhibit A

GALLATIN ANNEXATION INVENTORY-HISTORY										
Annexation #	File #	ORDINANCE/ RESOLUTION #	Date of Adoption	Effective Date	Total Acres	Parcel Number(s)	Owner/Applicant	Map Panel	Project Name/Other	Notes
AX-1953-01		Ord. of 1-2-53	1/2/1953							
AX-1953-02		Ord. of 9-1-53	9/1/1953							
AX-1955-01		Ord. of 8-2-55	8/2/1955						- 1st Reading	
AX-1955-02		Ord. of 8-4-55	8/2/1955						- 2nd Reading	
AX-1959-01		Ord. of 12-3-59	12/3/1959						1959 Area 1	
AX-1959-02		Ord. of 12-3-59	12/3/1969						1959 Area 2	
AX-1959-03		Ord. of 12-3-59	12/3/1959						1959 Area 3	
AX-1959-04		Ord. of 12-3-59	12/3/1959						1959 Area 4	
AX-1959-05		Ord. of 12-3-59	12/3/1959						1959 Area 5	
AX-1960-01		Ord. of 11-1-60	9/6/1960							
AX-1961-01		Ord. of 12-22-61	12/22/1961							
AX-1965-01		Ord. of 4-20-65	4/20/1965						1965 Area 1	
AX-1965-02		Ord. of 4-20-65	4/20/1965						1965 Area 2	
AX-1965-03		Ord. of 4-20-65	4/20/1965						1965 Area 3	
AX-1965-04		Ord. of 4-20-65	4/20/1965						1965 Area 4	
AX-1965-05		Ord. of 4-20-65	4/20/1965						1965 Area 5	
AX-1965-06		Ord. of 4-20-65	4/20/1965						1965 Area 6	
AX-1970-01		Ord. 070-4	9/2/1970	9/2/1970					1970 Area I	NE Gallatin
AX-1970-02		Ord. 070-4	9/2/1970	9/2/1970					1970 Area II	US 31E Corridor
AX-1970-03		Ord. 070-6	11/3/1970	11/3/1970	63.5				1970 alias 070-6	Lake Charland Estates
AX-1971-01		Ord. 071-10	6/15/1971	6/15/1971	40.82				1971 alias 071-10	
AX-1971-02		Ord. 071-15	11/2/1971	11/2/1971					071-15	US 31E to Shutes Lane
AX-1972-01		Ord. 072-19	2/1/1972	2/1/1972					072-19	
AX-1973-01		Ord. 073-36	9/4/1973	9/4/1973	201.44				1973 alias 073-36	
AX-1976-01		Ord. of 4-20-76	4/20/1976	4/20/1976	42.63				1976 alias 076-40	
AX-1978-01		* Ord. of 6-6-78	6/6/1978	6/6/1978	-59.7				1978 Area C (078-75)	Voided by Chanc. Ct.
AX-1978-02		* Ord. of 6-6-78	6/6/1978	6/6/1978	-673.9				1978 Area D (078-76)	Voided by Chanc. Ct.
AX-1978-03		Ord. of 6-20-78	6/20/1978	6/20/1978	277.72				1978 Area F (078-79)	
AX-1978-04		Ord. of 6-20-78	6/20/1978	6/20/1978	311.46				1978 Area G (078-80)	
AX-1978-05		* Ord. of 8-1-78	8/1/1978	8/1/1978					1978 Area E (078-77)	
AX-1978-06		Ord. of 8-15-78	8/15/1978	8/15/1978	377.6				1978 Area H (078-82)	Drivers Lane Extension
AX-1978-07		Ord. of 8-15-78	8/15/1978	8/15/1978	987.5				1978 Area I (078-83)	Nichols Lane Area
AX-1978-08		Ord. of 8-15-78	8/15/1978	8/15/1978	527.84				1978 Area J (078-84)	
AX-1978-09		* Chancery Court, Docket Page 41-44	12/21/1978	8/1/1978					Voided 078-75, 078-76, 078-77	
AX-1979-01		079-96	8/7/1979		532.03				1979 Area C	
AX-1979-02		079-97	8/7/1979						1979 Area D	
AX-1979-03		079-102	10/2/1979						1979 Area L	
AX-1979-04		079-103	10/2/1979		84.97				1979 Area M	
AX-1979-05		079-104	10/2/1979						1979 Area E	
AX-1979-06		079-107	12/18/1979		570.2				1979 Area N	
AX-1979-07		079-108	12/18/1979						1979 Area O	Woods Ferry Road South
AX-1979-08		079-110	12/21/1979	12/21/1979					1979 Area O	Woods Ferry Road South
AX-1981-01		081-139	4/21/1981	4/21/1981					Area P	
AX-1981-02		081-155	6/30/1981	6/30/1981	313.6				1981 Area E	Repeals Ord. 079-110
AX-1983-01		083-215	8/2/1983	8/2/1983					Area R	
AX-1983-02		083-229	11/30/1983	11/30/1983					Area S	
AX-1985-01		085-300	3/19/1985	3/19/1985	18.75				Area "T"	
AX-1985-02		085-329	7/16/1985	8/16/1985					Area U	
AX-1985-03		085-337	10/1/1985	10/1/1985	129				Area E-1	S. of Hartsville Pike
AX-1985-04		085-350	12/17/1985	4/17/1986					Area "V"	

AX-1986-01		O86-376	10/7/1986	1/7/1986	3.64				Area "W"	West side of Harris Lane
AX-1987-01		O87-433	11/17/1987	11/17/1987	82.6				Area "Y"	
AX-1988-01		O88-481	8/2/1988	8/2/1988	264.84				Annex Area "A"	Fairway Farms
AX-1988-02		O88-482	8/2/1988	8/2/1988	505.14				Annex Area "B" Bradley	Cambridge Farms
AX-1989-01		O89-523	3/21/1989	3/21/1989	107.01					pt. of Gallatin Indust. Ctr.
AX-1989-02		O89-536	6/6/1989	6/6/1989	105.74				NW of Gallat. Indust. Cntr	Error in Tract 2 legal
AX-1990-01		O90-584	1/16/1990	1/16/1990	2.3	127//065.00		127		S. of Airport Rd. E of Steam Plant Rd.
AX-1990-02		O90-585	1/16/1990	1/16/1990	41.1	127//066.00		127		S. of Airport Rd. E of Steam Plant Rd.
AX-1990-03		O90-586	1/16/1990	1/16/1990	22.94					S. of Airport Rd. E of Steam Plant Rd.
AX-1990-04		O90-587	1/16/1990	1/16/1990	18.5	134//009.00		134		S. of Airport Rd. E of Steam Plant Rd.
AX-1990-05		O90-592	4/3/1990	4/3/1990	0.52					
AX-1993-01	#6-1-93	O93-905	10/19/1993	11/19/1993	306.28	125//015.00, 016.00, 017.00, 018.00, 019.00	City of Gallatin	125	Long Hollow Pike Area	Repealed
AX-1994-01	#6-2-93	O94-940	2/15/1994	2/15/1994	26.6	113//025.09	City of Gallatin	113	Gallatin Civic Center	
AX-1995-01	#6-1-93	O9503-008	3/21/1995	3/21/1995	-306.28	125//015.00, 016.00, 017.00, 018.00, 019.00	City of Gallatin	125	Long Hollow Pike Area	(Rescind & Repeal O93-905)
AX-1995-02	#3-1-95	O9503-022	4/4/1995	5/4/1995	138	125//039.00, 136//006.00	"Ford Property"	125 & 136		
AX-1996-01	#3-16-96	O9610-086	12/17/1996	1/17/1997	143.91	105//046.00	Reese, et al	105		
AX-1996-02	#3-19-96	O9610-087	11/19/1996	12/19/1996	14.33	113//024.00	Hargis	113		pt. of Triple Creek Park
AX-1997-01	#6-1-94	O9612-106	1/7/1997	2/7/1997	10.1	113//048.00, 049.00	Tara Interests, Inc.	113		
AX-1997-02	#1-7-96B	O9612-107	1/7/1997	2/7/1997	144.8	105//028.01, 028.02	Jewell Earp Chambers	105		Triple Creek Park
AX-1997-03		O9702-011	2/18/1997	3/18/1997	31.49	114//041.01, 041.02	Randy Jones	114		pt. of Eagle Creek
AX-1997-04	#6-1-97	O9704-030	5/6/1997	6/6/1997	25	113//024.00	Elmer Hargis	113	Shafer Middle School	
AX-1998-01	#6-2-97	O9801-001	2/17/1998	3/17/1998	12.11	105//006.02, 006.03, 006.07	E. C. Hudson, H. H. Johnson, M. H. Kus	105		Triple Creek Park E. of Shafer MS
AX-1998-02	#6-1-98	O9805-030	6/2/1998	7/2/1998	173.88	113//022.01, 024.00	City of Gallatin	113	New Municipal Park	pt. of Triple Creek Park
AX-1998-03	#6-2-98	O9808-050	9/15/1998	10/15/1998	23.07	112//078.00	Katherine Ann Powell Branham, et al	112	Northland Homes Sub.	Stonehedge Subd. Ph. 2
AX-1999-01	#6-1-99	O9905-030	6/15/1999	7/15/1999	11.31	127//006.01	Odric Gregory	127		
AX-2000-01	#6-3-99	O9912-065	2/15/2000	3/15/2000	5.9	105	City of Gallatin	105	R/W of Martin Lane	
AX-2000-02	#6-2-00	O0005-033	6/6/2000	7/6/2000	386.19	147//008.00 & 136//020,021,033	William H. Wemyss, Jr.	147 & 136	Fairvue Plantation	
AX-2000-03	#6-4-00	O0005-038	6/6/2000	7/6/2000	27.2	136//013.00	Canoe Branch Land Co.	136	Plantation Trace	
AX-2000-04	#6-6-00	O0008-061	9/5/2000	10/5/2000	6.35	112//082.00	Belle Breeze LLC	112	Belle Breeze	Ordinance acreage wrong
AX-2001-01	#6-2-01	O0103-15	4/3/2001	5/3/2001	7.045	136//032,032.1,032.02,035.00	D. Moffet, S. Guidry, K. W. Brooks, Bethpage Tennessee Properties Limited.	136	Browns Lane	S. End of Browns Ln.
AX-2002-01	#6-1-02	O0208-43	9/17/2002	10/17/2002	82.93	136//019.00, 019.01 & 136K/A/001.00	TLP Investment Company	136 & 136K	Last Plantation	Pt. of Last Plantation-Chloe Dr.
AX-2003-01	#6-2-03	O0304-09	9/16/2003	10/16/2003	62.83	113//045.00 & 114/041.00	E.R. Bowles, R.R. Jones et ux Barbara A.	113 & 114	Eagles Landing	Adjacent to Eagles Landing /SR 25
AX-2004-01	#6-2-04	O0409-55	10/19/2004	11/19/2004	75.68	148//111.01	J.W. Jarrett et ux Deborah M.	148	Cumberland Place North	
AX-2004-02	#6-10-04	O0409-57	10/5/2004	11/5/2004	211.63	136//025.00	C.A. Wheeler et ux A. Thorne; US Army Corps of Engineers	136	Station Camp Area 1	
AX-2004-03	#6-8-04	O0409-59	10/5/2004	11/5/2004	10.5	137//062.00	Ambassador Properties, LLC	137	Station Camp Area 2	SR 386 ROW
AX-2004-04	#6-6-04	O0409-62	10/5/2004	11/5/2004	150	137//008.00	E. R. Bowles, Sr.	137	Station Camp Area 3	McCain Station, Sumner Sta.
AX-2004-05	#6-4-04	O0409-65	10/5/2004	11/5/2004	408.22	137//006.00 & 124//046.00	Franklin Family	137 & 124	Station Camp Area 4	
AX-2004-06	#6-12-04	O0409-68	10/5/2004	11/5/2004	23.57	137//010.01	Ambassador Properties, LLC	137	Station Camp Area 5	
AX-2004-07	#6-13-04	O0410-74	12/7/2004	1/7/2005	4.35	1120/B/002.00	Steve Martin	1120		Stonebridge Sub. Addition
AX-2005-01	#6-14-04	O0412-85	1/4/2005	2/4/2005	11.48	127//003.00	Sumner County Regional Airport Authority	127		Airport NE of Cairo Rd.
AX-2005-02	#6-1-05	O0503-22	4/5/2005	5/5/2005	246.38	136//024.00	Kennesaw Farms Investment Partners, Luckey-Wheeler Properties, Thoroughbred Investment Properties	136	Kennesaw Farms	
AX-2005-03	#6-2-05	O0505-40	6/7/2005	7/7/2005	124.65	137//006.01	Sumner County Board of Education	137		Station Camp Schools
AX-2006-01	#6-4-05	O0601-11	2/7/2006	3/7/2006	52.79	136//030.00, 030.01, 030.02	TLP Development Co., Green & Little LP	136	Fairvue Plantation	
AX-2006-02	#6-2-06	O0604-25	4/18/2006	4/19/2006	83.93	136//019.00, 016.00, 016.02	Gallatin Dept of Electricity & Greensboro LP	136		
AX-2006-03	#6-3-05	O0604-32	5/2/2006	6/3/2006	10.2	113//047.00, 046.00	Fred & Ruth Yates	113		
AX-2006-04	#6-1-06	O0604-35	5/2/2006	6/3/2006	92.19	113//002.04	R. R. Jones et ux Barbara	113		
AX-2006-05	#6-3-06	O0605-46	6/20/2006	7/20/2006	2	148//114.01	John & Laura Puryear	148		
AX-2006-06	#6-4-06	O0609-68	10/17/2006	11/17/2006	0.6	137//063.00	Ambassador Properties, LLC	137		

AX-2006-07	#6-5-06	O0610-75	11/21/2006	12/21/2006	6.62	127//006.03	J.R. Ramsey, etal & C/O L. Strong	127		
AX-2007-01	#6-8-06	O0701-02	2/6/2007	3/6/2007	27.56	136//018.03	Sumner Regional Health Systems	136		
AX-2007-02	#6-1-07	O0706-36	7/17/2007	8/17/2007	235.76	136//003.00, 004.01, 004.04	Green & Little LP, R.A. Little & L.A. Little	136	Greensboro Village North	
AX-2007-03	#6-2-07	O0706-39	7/17/2007	8/17/2007	58.63	148//107.01	A. A. Bennett etux L. Lou	148		
AX-2007-04	#6-5-07	O0706-42	7/17/2007	8/17/2007	256.13	111//001.00 & 112//012.01	Gregory Real Estate, LLC & R. B. Cecil, Jr.	111 & 112		
AX-2007-05	#6-4-07	O0706-45	7/17/2007	8/17/2007	116.16	111//024.00	J. Caldwell etux Faye	111	Wynfield Estates	
AX-2008-01	#6-1-08	O0802-14	4/1/2008	5/2/2008	2839	Long Hollow Pike corridor	numerous-various owners		Annexation Phase 1	Long Hollow Pike
AX-2008-02R	#6-3-08	O0809-58	10/21/2008	11/21/2008	-18.8	112//012.02	City of Gallatin	112	Gallatin Industrial Park	Tract 3 & R.R. r.o.w.
AX-2009-01R	#6-4-08	O0811-72	12/16/2008	1/16/2009	5.23		E. R. Bowles etux E. Jean	114		
AX-2009-02R	#6-3-08	O0903-21	4/21/2009	5/21/2009	21.27	112//012.02	City of Gallatin	112	Gallatin Industrial Park	(Corrected O0809-58)
AX-2010-01R	#6-1-09	O1001-4	3/16/2010	4/16/2010	68.52	114//032.01, 032.03	Goodall Inc.	114	The Reserve @ Cambridge Farms	
AX-2010-02R	#6-1-10	O1002-15	6/15/2010	7/15/2010	1.35	124//B/013.00, 014.00, 015.00	T. Lam & N. Hue	124J		
AX-2010-03R	#6-3-10	O1007-51	9/21/2010	10/21/2010	2.69	127//Part of 005.00	Gregory Real Estate, LLC	127	36, & 37	
AX-2011-01R	#6-2-10	O1007-43	11/16/2010	8/1/2011	120.44	137//009.19, 009.16, 009.15, 037.01, 009.01, 009.11, 009.12, 009.13, 009.14, 009.00, 009.18, 009.10, 009.02, 009.09, 009.03, 009.08, 009.04, 009.05, 009.07, 009.06	Various Owners	137	St. Blaise Estates (north of SR 386)	
AX-2011-02R	#6-9-10 (PC6248-10)	O1010-73	1/4/2011	2/4/2011	3.5	114//040.00	E. & J. Landry, D. & R. Landry, R. & D. Plowman	114		
AX-2011-03R	#6-4-10 (PC6239-10)	O1010-76	1/4/2011	2/4/2011	8.73	105//046.01	City of Gallatin	105	Annexation Area 1	
AX-2011-04	#6-5-10 (PC6241-10)	O1104-33	6/21/2011	7/21/2011	14.45	105//Parts of 041.00 & 043.02, 112//011.01	B. Sisco, N. Ray,	105 & 112	Annexation Area 2	
AX-2011-05	#6-7-10 (PC6243-10)	O1104-35	6/21/2011	7/21/2011	5.8	105//028.03	Carey R. May	105	Annexation Area 4	pt of Triple Creek Park
AX-2011-06	#6-8-10 (PC6244-10)	O1108-77	11/1/2011	12/1/2011	82.99	127//054.01, 001.00, 001.01, 001.02, 002.05	D.R. Dorris, J. Teissler, G.R. Jones, Sumner County Airport, BCR Properties	127	Annexation Area 6	5 of CSX RR, N of Cairo Rd.
AX-2012-01R	PC9913-11	O1112-99	2/21/2012	3/21/2012	4.1	148//037.00, 037.01	Sammy Little	148		Woods Ferry Road South
AX-2012-02	PC9947-12	O1202-15	4/17/2012	5/17/2012	20	148//Part of 112.00	City of Gallatin	148	Lock 4 Road Annex	WWTP
AX-2012-03	PC9948-12	O1202-17	4/17/2012	5/17/2012	121.81	136	Various Owners	136	St. Blaise Road Annex	St. Blaise Est. South of SR 386
AX-2014-01R	PC0259-14	O1403-13	5/20/2014	6/20/2014	20.84	127//005.00, 005.07, 005.08	H. Holleman/Rogers Eng.	127	Cairo Estates	
AX-2015-01	PC6-404-15/6-416-15	R1505-27	6/16/2015	6/16/2015	10.2	114//044.00, 045.00	Bradley Bros.	114	Bradley Farm Sub, Lots 8 & 9	
AX-2016-01	6-2289-16	R1608-48	11/1/2016	11/1/2016	2.75	114//059.00 part	Randy Jones	114	Twin Eagles, Ph. 13, Sec A	
AX-2017-01	6-2782-16	R1612-64	3/21/2017	3/21/2017	20	114//019.01	Randy Jones/Rogers Group	114	Twin Eagles Ph. 14	Ph. 14 of Twin Eagles Subd.
AX-2017-02	6-5990-17	-----	WITHDRAWN	WITHDRAWN	0	111// 002.00	Kelly Site	111	Kelly Site (industrial)	WITHDRAWN (374.4 acres)
AX-2017-03	6-6301-17	R1801-2	6/19/2018	6/19/2018	80.243	104 // 093.00	Goodall Homes Inc.	104	Langford Farms	per Interlocal Agreement
AX-2017-04	6-6341-17	R1712-65	8/7/2018	8/7/2018	28.62	134//001.03	Oak Tree Partners, LLC	134	Langley Estates	
AX-2017-05	6-6384-17	R18xx-xx	-----	-----	44.39	147 // 013.01	Ted Lyon	147	Avery Park	Deferred
AX-2018-01	6-7764-18	R1807-45	8/21/2018	8/21/2018	122.79	137//11.02*, 11.05, 11.06, 64 pt	SC Partners	137 & 136	Westfield	Big Station Camp Blvd.
AX-2018-02	6-8419-18	R1807-47	8/21/2018	8/21/2018	2.31	112//043.02	Martin Methodist College	112	SR 25 Convenience Store	SR 25@ Airport Rd.
AX-2018-03	6-9413-18	R1811-69	2/5/2019	2/5/2019	12.35	114//047.01	Darci Gibbons	114	Cumberland Point	SR 25 west of SR 109
AX-2019-01	ANNX-2019-0001	R1909-52	10/15/2019	10/15/2019	51.7	SR 109, SR 25, & Albert Gallatin Ave Ext. R/W	TDOT, City of Gallatin	114	SR 109, SR 15 & Albert Gallatin Ext.,	Road rights-of-way only
AX-2019-02	ANNX-2019-0002				6.36		Randy and Ron Jones	114	Twin Eagles Ph. 13, Sec B	
AX-2019-03	6-107118-19	R1908-45	X	X	384.6	104//022.10, 025.00, 026.00, 027.00	Tina Earp	104	The Meadows	Per Interlocal Agreement
AX-2019-04	ANNX-2019-003	R1912-64	2/4/2020	2/4/2020	0.64	137//07.03 & Adjacent BSCB R/W	Donna Wacaser	137	Pt of McCain's Station	
AX-2019-05	ANNX-2019-004	R2001-1	2/18/2020	2/18/2020	3.85		City of Gallatin, Oak Tree Properties	134	Part of Langley Estates	Hiatus section
AX-2020-01	ANNX-2020-001	R2005-xx					Randy Jones	114	Twin Eagles Ph. 15	
AX-2020-xx	6-xxx-18/ANNX-2020-xx	R20xx-xx			374.4	111// 002.00		111	Woolhawk	
AX-2020-xx	ANNX-2020-xxx	R20xx-xx			-----	112		112		Preapp in Feb 2020
						Big Station Camp Blvd. right-of-way	Sumner County	137	pt of Langford Farms Interlocal Agreement	3 segments
I: Planning/Active/Annex Plan of Service/Annexation inventory revised 4/1/2020										

ANNEXATIONS AND SUMMARY PROGRESS REPORT PER T.C.A. 6-51-108 (c)											Status					
Annexation #	File #	ANNEXATION ORDINANCE/ RESOLUTION #	Plan of Service #	Date of Adoption	Effective Date	Total Acres	Parcel Number(s)	Owner/Applicant	Map Panel	Project Name/Other	Water	Sewer	Electric	Police	Fire	City Hall
2008 Annexations																
AX-2008-01	#6-1-08	O0802-14	O0802-13	4/1/2008	5/2/2008	28.39	Numerous properties along Long Hollow Pike/BSCB	Numerous property owners	124,125,137,138	Long Hollow Pike/SR 386 Corridor	Complete	Not Complete	Complete	Complete	Complete	Complete
AX-2008-02R	#6-3-08	O0809-58	O0809-57	10/21/2008	11/21/2008	18.8	112//012-02	City of Gallatin	112	Gallatin Industrial Park	Complete	Complete	Complete	Complete	Complete	Complete
2009 Annexations																
AX-2009-01R	#6-4-08	O0811-72	O0811-71	12/16/2008	1/16/2009	5.23	114//021-04	E. R. Bowles et ux E. Jean	114	Twin Eagles	Complete	Complete	Complete	Complete	Complete	Complete
AX-2009-02R	#6-3-08	O0903-21	O0903-22	4/21/2009	5/21/2009	21.27	112//012-02	City of Gallatin	112	Gallatin Industrial Park	Complete	Complete	Complete	Complete	Complete	Complete
2010 Annexation																
AX-2010-01R	#6-1-09	O1001-4	O1001-5	3/16/2010	4/16/2010	68.52	114//032-01, 032-03	Goodall Inc.	114	The Reserve	Complete	Complete	Complete	Complete	Complete	Complete
AX-2010-02R	#6-1-10	O1002-15	O1002-16	6/15/2010	7/15/2010	1.35	124//B/013-00, 014-00, 015-00	T. Lam & N. Hue	124J	Newman Downs Phase 2, Lots 35, 36, & 37	Complete	Complete	Complete	Complete	Complete	Complete
AX-2010-03R	#6-3-10	O1007-51	O1007-50	9/21/2010	10/21/2010	2.69	127//Part of 005-00	Gregory Real Estate, LLC	127		Complete	Complete	Complete	Complete	Complete	Complete
2011 Annexations																
AX-2011-01R	#6-2-10	O1007-43	O1007-42	11/16/2010	8/1/2011	120.44	137//009-19, 009-16, 009-15, 037-01, 009-01, 009-11, 009-12, 009-13, 009-14, 009-00, 009-18, 009-10, 009-02, 009-09, 009-03, 009-06, 009-04, 009-05, 009-07, 009-06	Various Property Owners	137	St. Blaise Estates	Complete	Complete	Complete	Complete	Complete	Complete
AX-2011-02R	#6-9-10 (PC6248-10)	O1010-73	O1010-72	1/4/2011	2/4/2011	3.5	114//040-00	E. & J. Landry, D. R. Landry, R. & D. Plowman	114	Red River Rd Multi Family	Complete	Complete	Complete	Complete	Complete	Complete
AX-2011-03R	#6-4-10 (PC6239-10)	O1010-76	O1010-75	1/4/2011	2/4/2011	8.73	105//046-01	City of Gallatin	105	Annexation Area 1	Complete	Complete	Complete	Complete	Complete	Complete
AX-2011-04	#6-5-10 (PC6241-10)	O1104-33	O1104-32	6/21/2011	7/21/2011	14.45	105//Parts of 041-00 & 043-02, 112//011-01	B. Sisco, N. Ray	105 & 112	Annexation Area 2	Complete	Complete	Complete	Complete	Complete	Complete
AX-2011-05	#6-7-10 (PC6243-10)	O1104-35	O1104-34	6/21/2011	7/21/2011	5.8	105//028-03	Corey N. May	105	Area 4 Annexation	Complete	Complete	Complete	Complete	Complete	Complete
AX-2011-06	#6-8-10 (PC6244-10)	O1108-77	O1108-76	11/1/2011	12/1/2011	82.99	127//054-01, 001-00, 001-01, 001-02, 002-05	D.R. Dorris, J. Tessier, G.R. Jones, Sumner County Airport, KCR Properties	127	Annexation Area 6	Complete	Complete	Complete	Complete	Complete	Complete
2012 Annexations																
AX-2012-01R	PC9913-11	O1112-99	O1112-98	2/21/2012	3/21/2012	8.4	148//037-00, 037-01	Sammy Little	148		Complete	Complete	Complete	Complete	Complete	Complete
AX-2012-02	PC9947-12	O1202-15	O1202-16	4/17/2012	5/17/2012	20	148//Part of 112-00	City of Gallatin	148	Lock 4 Road Annex (WWTP)	Complete	Complete	Complete	Complete	Complete	Complete
AX-2012-03	PC9948-12	O1202-17	O1202-18	4/17/2012	5/17/2012	121.81	136//2, 2-06, 2-07, 2-08, 2-09, 3-10-3-08	City of Gallatin	136	St. Blaise Estates E of CSX RR	Complete	Not Complete	Complete	Complete	Complete	Complete
2014 Annexations																
AX-2014-01R	PC0759-14	O1403-13	O1404-19	5/20/2014	6/20/2014	20.84	127//005-00, 005-07, 005-08	H. Holleman/Rogers Eng.	127	Cake Estates	Complete	Complete	Complete	Complete	Complete	Complete
2015 Annexations																
AX-2015-01	PC-6-404/416-15	R1505-27	R1505-36	6/16/2015	6/16/2015	10.2	114//044-00, 045-00	Bradley Bros.	114	Bradley Farm Sub, Lots 8 & 9	Complete	Complete	Complete	Complete	Complete	Complete
2016 Annexations																
AX-2016-01	#-2289-16	R1608-48	R1608-47	11/1/2016	11/1/2016	2.75	114//059-00 pt.	Randy Jones	114	Part of Twin Eagles Ph 13	Complete	Complete	Complete	Complete	Complete	Complete
2017 Annexations																
AX-2017-01	6-2782-16	R1612-64	R1612-63	3/21/2017	3/21/2017	20	114//019-01	Randy Jones/Rogers Group	114	Twin Eagles Ph 14	Complete	Complete	Complete	Complete	Complete	Complete
AX-2017-03	6-6301-17	R1801-2	R1801-01	6/19/2018	6/19/2018	80.243	104//093-00	Goodall Homes, Inc.	104	Langford Farms	Complete	Complete	Complete	Complete	Complete	Complete
AX-2017-04	6-6341-17	R1712-65	R1712-64	8/7/2018	8/7/2018	24.77	134//001-03	Oak Tree Partners, LLC	134	Langley Estates	Complete	Complete	Complete	Complete	Complete	Complete
2018 Annexations																
AX-2018-01	6-7764-18	R1807-45	R1807-44	8/21/2018	8/21/2018	122.79	137//11-02*, 11-05, 11-06, 64 pt.	SC Partners	137	Westfield	Complete	Complete	Complete	Complete	Complete	Complete
AX-2018-02	6-8419-18	R1807-47	R1807-46	8/21/2018	8/21/2018	2.31	112//043-02	Martin Methodist College	112	Convenience Store	Complete	Complete	Complete	Complete	Complete	Complete
AX-2018-03	6-9413-18	R1811-69	R1811-68	2/5/2019	2/5/2019	12.35	114//47-01	Darci Gibbons/Civil Site Design	114	Cumberland Point	Complete	Complete	Complete	Complete	Complete	Complete
2019 Annexations																
AX-2019-02	ANNX-2019-0001	R1909-53	R1909-52	10/15/2019	10/15/2019	57.1	ROW of SR 25, SR 109 Bypass, Albert Gallatin Extension	TDOT/City of Gallatin		SR 25, SR 109, Al. Gallatin Ave	Complete	Complete	Complete	Complete	Complete	Complete

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 9, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 2

SUBJECT:

A Resolution No. R2006-32 of the City of Gallatin, Sumner County, Tennessee, to adopt an amendment to the Urban Growth Boundary of the City of Gallatin affecting properties and part of the Big Station Camp Creek Boulevard right-of-way located in the area south of the CSX Railroad and north of Nashville Pike.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting an amendment to the Urban Growth Boundary. This change will be considered with a similar change by the City of Hendersonville and only involves these two jurisdictions per Tennessee Code Annotated 6-58-118. The result of the Urban Growth Boundary amendment would be to convey property now located in the Gallatin Urban Growth Boundary area to the Hendersonville Urban Growth Boundary area and, likewise, to convey property now in the Hendersonville Urban Growth Boundary to the Gallatin Urban Growth Boundary. Hendersonville is working on a similar resolution to do the same.

RECOMMENDATION:

The Gallatin Municipal-Regional Planning Commission will discuss the proposed Urban Growth Boundary change at the on June 8th work session and at the regular meeting on June 22nd.

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2006-32

A RESOLUTION AMENDING THE URBAN GROWTH BOUNDARY FOR THE CITY OF GALLATIN AND AMENDING THE GROWTH PLAN FOR SUMNER COUNTY TENNESSEE, BY REMOVING A 2.03 ACRE PARCEL AND A 0.43 ACRE PORTION OF A PARCEL, LOCATED ON THE WEST SIDE OF BIG STATION CAMP CREEK BOULEVARD, FROM THE CITY OF GALLATIN URBAN GROWTH BOUNDARY AND ADDING A 10.51± ACRE PARCEL, A 0.24 ± ACRE PORTION OF PARCEL, A 0.04± ACRE PORTION OF THE OLD HICKORY LAKE RESERVATION AND A 9.33± ACRE PORTION OF BIG STATION CAMP BOULEVARD RIGHT-OF-WAY TO THE GALLATIN URBAN GROWTH BOUNDARY

WHEREAS, a single parcel of land and a portion of a parcel of land located on the west side of Big Station Camp Boulevard right-of-way, comprising 2.46± acres, is within the current Urban Growth Boundary (UGB) of the City of Gallatin, Tennessee (the "City"); and

WHEREAS, the City desires to amend the Urban Growth Boundary of the City by contracting the boundary to remove the certain properties and rights-of-way from the City's Urban Growth Boundary and to add certain properties and adjacent right-of-way to the City's Urban Growth Boundary; and

WHEREAS, the City desires to remove this property from the Urban Growth Boundary upon approval by the Local Government Policy and Advisory Committee (LGPAC), with the corresponding UGB area transitioned to the City of Hendersonville upon adoption of the City of Hendersonville to do the same, per request of a contiguous property owner and /or the City of Gallatin, meeting the requirements of T.C.A. 6-58-118, which does not require the county coordinating committee to approve.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin City Council hereby approves amendment of the Urban Growth Boundary of the City of Gallatin as follows:

Section 1. The property identified on Tax Map 137, Parcel 013.04 and a portion of parcel 012.00, Sumner County, Tennessee, Tax Assessor's Office, consisting of 2.46± acres as indicated in Exhibit 'A', is hereby removed from the Urban Growth Boundary of the City of Gallatin, Tennessee upon approval of the LGPAC; and

Section 2. The property identified as Tax Map 137, Parcel 011.01 consisting of 10.51± acres, and a portion of parcel 012.00, consisting of 0.24± acres, and a 0.04± acre portion of the Old Hickory Reservoir Reservation located north of Lakeland Drive, and all of Big Station Camp Boulevard located between Lakeland Drive and the CSX Railroad consisting of approximately 9.33± acres, as shown on the Sumner County, Tennessee, Tax Assessor's Office, and as indicated in Exhibit 'A' is hereby added to the Urban Growth Boundary of the City of Gallatin upon approval of the LGPAC. By taking such action the Hendersonville Urban Growth Boundary and Gallatin Urban Growth Boundary will be set to the western right-of-way line of Big Station Camp

Boulevard from just south of Lower Station Camp Creek Road, approximately 800 feet north of Nashville Pike, to the south right-of-way line of the CSX Railroad. This will permit the Big Station Camp Boulevard right-of-way, as described above, and the aforementioned parcels to be annexed into the Gallatin City Limits for its entirety from Nashville Pike to the CSX Railroad right-of-way and to permit the properties described above located west of Big Station Camp Boulevard to be included in the Hendersonville Urban Growth Boundary upon action by the City of Hendersonville to include such properties in its Urban Growth Boundary.

Section 3. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 4. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This resolution shall take effect at the earliest date allowed by law, the public welfare requiring such,.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

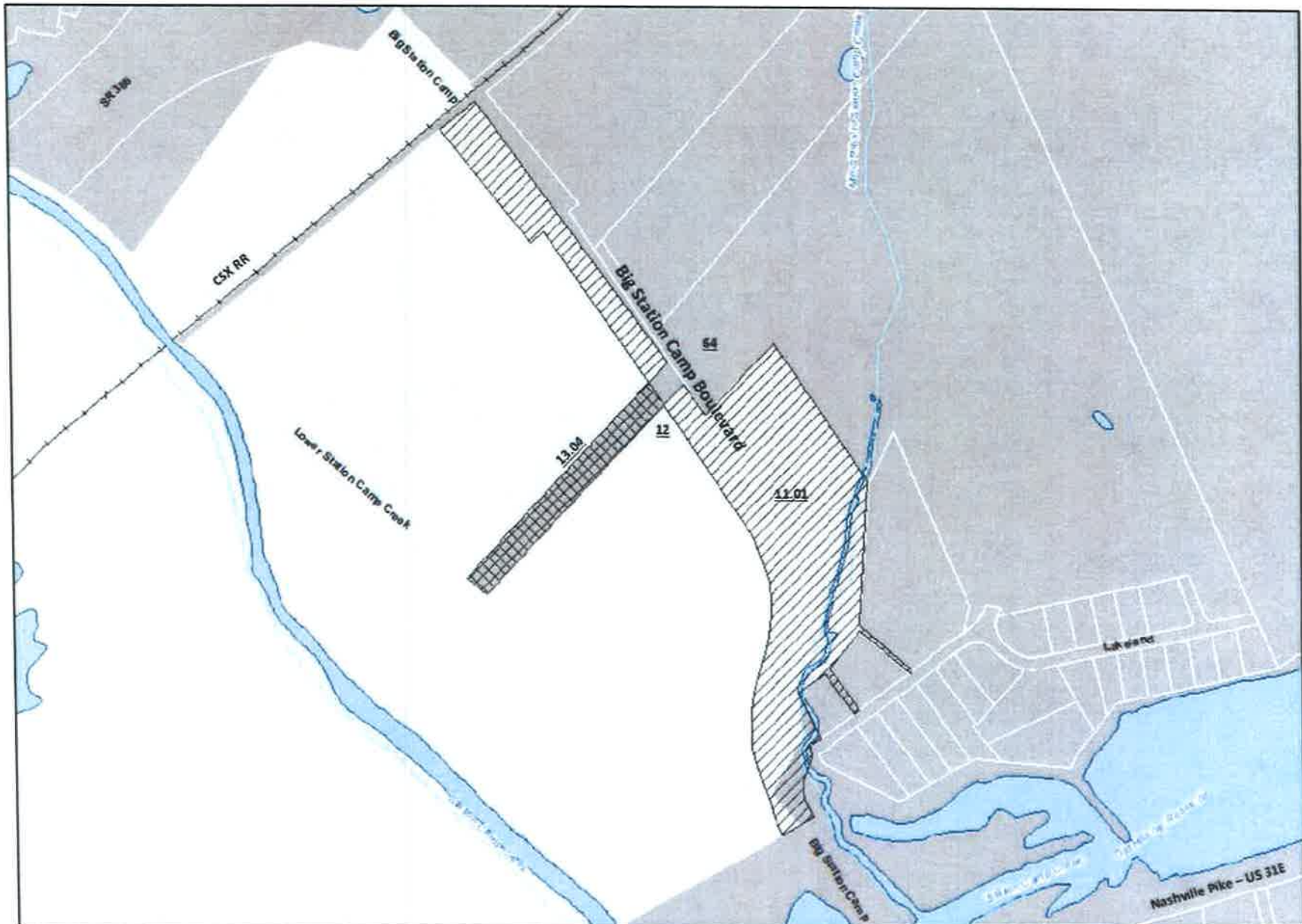
CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Map of Urban Growth Boundary Adjustments

Exhibit A



Legend

City of Gallatin, TN
Sumner County



Area to add to the Gallatin UGB (20.12 +/- acres)



Area to remove from the Gallatin UGB (2.46 +/- acres)



1 in = 0.09 miles Date: 6/5/2020



May 20, 2020

Mr. Keith Free
Director of Planning
City of Hendersonville
101 Maple Drive North
Hendersonville, TN 37075

Mr. Bill McCord
City Planner
City of Gallatin
132 West Main Street
Gallatin, TN 37066

RE: Urban Growth Boundary (UGB) Modification Request

Mr. Free/Mr. McCord:

We humbly ask as a contiguous property owner that the City of Hendersonville contract their UGB to the west side of the Big Station Camp Blvd. right-of-way and the City of Gallatin expand their UGB to the same point per TCA 6-58-118. See Exhibit A to this letter showing the requested area to be modified outlined in blue. SC Partners owns the adjacent land shown in dark brown which is already a part of the City of Gallatin. Further, it is our understanding that Hendersonville has already de-annexed the subject property to help facilitate this request.

Our request is that both cities pass resolutions to honor this request by July 8, 2020 if possible so that it may be heard and acted upon at the next LGPAC Board meeting on July 22, 2020.

Please let us know if you require anything further from us to process this request.

Sincerely,

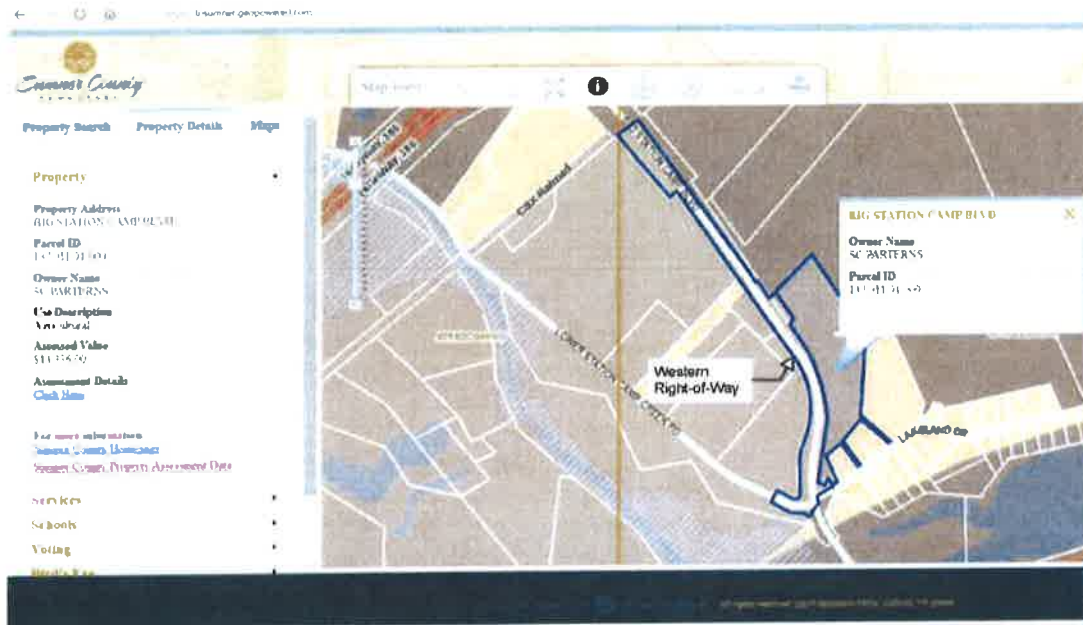
SC Partners, Landowner

A handwritten signature in black ink, appearing to read "Cal Gentry".

Cal Gentry, P.E.
Vice President

Enclosure

1000 Kennesaw Boulevard, Gallatin, Tennessee 37066
615.824.2500 phone 615.824.2044 fax
www.SoutheasternBuilding.com



1000 Kennesaw Boulevard, Gallatin, Tennessee 37066
615.824.2500 phone 615.824.2044 fax
www.SoutheasternBuilding.com

William McCord (Planning)

From: Cal Gentry <cgentry@southeasternbuilding.net>
Sent: Wednesday, June 3, 2020 4:27 PM
To: Paige Brown (Mayor's Office); William McCord (Planning)
Cc: David Luckey; Scott Foster
Subject: FW: UBG Resolution
Attachments: R20-__.docx; UGB Modification Request 5-20-2020.pdf

Importance: High

Mayor Brown/Mr. McCord:

Please let us know if you're willing and able to pursue the route proposed in the email below with Hendersonville. This seems to be an effective shortcut to relocate the UGB to allow for the rest of Westfield to be eventually annexed into Gallatin. Please let us know when you'd like to discuss as it appears to be time sensitive with the state. Thank you.

Cal Gentry, P.E.

Vice President | Development
Southeastern Building Corporation
1000 Kennesaw Blvd.
Gallatin, TN 37066
615.480.5366 Mobile
615.824.2500 x16
615.824.2044 Fax
www.southeasternbuilding.net
Southeastern Commercial Properties

From: Grant Green <ggreen@hvilletn.org>
Sent: Wednesday, June 3, 2020 4:08 PM
To: Cal Gentry <cgentry@southeasternbuilding.net>
Cc: Keith Free <kfree@hvilletn.org>
Subject: FW: UBG Resolution
Importance: High

Hello, Cal,

I have sent the information to Gallatin (see below) and this should meet our deadline to go to General Committee next Tuesday.

Thank you,
Grant

From: Grant Green
Sent: Wednesday, June 3, 2020 3:24 PM
To: Kay Franklin <kfranklin@hvilletn.org>; John Bradley <jbradley@hvilletn.org>; Dave LeMarbre <dlemarbre@hvilletn.org>; Jamie Clary <jclary@hvilletn.org>
Cc: Keith Free <kfree@hvilletn.org>; William McCord (Planning) <william.mccord@gallatintn.gov>; Paige Brown (Mayor's Office) <paige.brown@gallatintn.gov>
Subject: FW: UBG Resolution
Importance: High

We have received this request from Southeastern to use a provision of TCA to amend the UBG for them as a contiguous property owner for the 10 acre property on Big Station Camp, which would have to be approved by LGPAC in the State ECD office (similar to approval a normal coordinating committee change in the urban growth boundary).

I have written a resolution that should be sufficient for LGPAC to consider. I have spoken with Logan McCoy who is the staff liaison there, and their next deadline is July 8th for the July 22nd LGPAC meeting. It would allow for a simultaneous UBG swap of the property and right-of-way if approved by LGPAC, and then allow Gallatin to begin the annexation process. This is the only avenue I am aware of, aside from the full coordinating committee to meet that could work for this specific situation, and I am very doubtful that can be approved by every city by July 8th.

The next opportunity to amend the UBG will be sometime in the fall, as they meet quarterly. I understand this will cause a significant delay for Southeastern.

We have no specific requirement for this to get a recommendation for this by our Planning Commission. We can submit this to the appropriate committee and Board in June and submit it to LGPAC, and Gallatin may do the same if they wish. I am copying Bill and Mayor Brown, you all are welcome to copy the language of the resolution if you wish to proceed with it. We will be glad to assist Gallatin and their staff in getting the information to LGPAC if it is approved.

Thank you,
Grant

RESOLUTION 2020-__

Sponsor: _____

A RESOLUTION CONTRACTING THE URBAN GROWTH BOUNDARY OF THE CITY OF HENDERSONVILLE, TENNESSEE, ON BIG STATION CAMP CREEK BOULEVARD

WHEREAS, there is a single parcel of land currently located on the east side of Big Station Camp Creek Boulevard within the urban growth boundary of the City of Hendersonville, Tennessee (the "City"); and

WHEREAS, the City has removed this property from the municipal limits:

WHEREAS, the City desires to remove this property from the urban growth boundary upon approval by the Local Government Policy and Advisory Committee (LGPAC), with the corresponding UGB transitioned to the City of Gallatin per request of the contiguous property owner to meet the requirements of TCA 6-58-118, which does not require the county coordinating committee to approve:

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF MAYOR AND ALDERMEN FOR THE CITY OF HENDERSONVILLE, TENNESSEE, that the property identified on Tax Map 137, Parcel 11.01, Sumner County, Tennessee, Tax Assessor's Office, consisting of 10.48 acres, along with the adjoining roadway, from just south of Lower Station Camp Creek Road to just south of the CSX Railroad property, is hereby removed from the urban growth boundary of the City of Hendersonville, Tennessee upon approval of LGPAC. The Hendersonville Urban Growth Boundary (UGB) will be set to the western right-of-way line of Big Station Camp Boulevard from just south of Lower Station Camp Creek Road to just south of the CSX Railroad property. This will ensure that Big Station Camp Boulevard should also be annexed into the Gallatin City Limits for its entirety from Nashville Pike to Long Hollow Pike for both design and maintenance related issues.

See attached Exhibits A & B.

This resolution shall take effect at the earliest date allowed by law.

First Reading:

APPROVED:

JAMIE CLARY, Mayor

ATTEST:

KAY FRANKLIN, City Recorder

LEGISLATIVE HISTORY
Ordinance 2019-54

Sponsor: Clary

Committee: General

Date of Committee Meeting: November 12, 2019

Committee Recommendation: Yes

First BOMA Reading: November 26, 2019

Amendment: Add the following language: The Hendersonville City Limits will be set to the western right-of-way line of Big Station Camp Boulevard from just south of Lower Station Camp Creek Road to just south of the CSX Railroad property. This will ensure that Big Station Camp Boulevard is within the Gallatin City Limits for its entirety from Nashville Pike to Long Hollow Pike for both design and maintenance related issues. See attached Exhibits A & B.

Vote on Amendment: Aye: Bolt, Brown, Campbell, Cunningham, Edwards, Hayes, Petrelli, Roberson, Skidmore, Sprouse, Waters, Woodcock and Clary. Nay: None.

Vote as Amended: Aye: Bolt, Brown, Campbell, Cunningham, Edwards, Hayes, Petrelli, Roberson, Skidmore, Sprouse, Waters, Woodcock and Clary. Nay: None.

Second BOMA Reading: December 10, 2019

Vote: Aye: Bolt, Brown, Campbell, Cunningham, Edwards, Hayes, Petrelli, Roberson, Skidmore, Sprouse, Waters, Woodcock and Clary. Nay: None.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 9, 2020

DEPARTMENT: Engineering

AGENDA # 3

SUBJECT:

BIG STATION CAMP BOULEVARD CORRIDOR TRANSPORTATION IMPROVEMENTS

SUMMARY:

Resolution authorizing Mayor to execute Big Station Camp Boulevard Corridor Transportation Improvement District Pro-Rata Share Agreement with TNHomesSites.com and Tenn Properties Newmans Crossing GP for the Newmans Crossing Development

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☒ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2006-33

**RESOLUTION AUTHORIZING MAYOR TO EXECUTE BIG STATION
CAMP BOULEVARD CORRIDOR TRANSPORTATION IMPROVEMENTS
PRO-RATA SHARE AGREEMENT WITH TNHOMESITES.COM AND TENN
PROPERTIES NEWMANS CROSSING GP**

WHEREAS, The City Council for the City of Gallatin passed Resolution No. R1909-49 on October 1, 2019, supporting the establishment of the Big Station Camp Boulevard Transportation Improvement District; and

WHEREAS, The City Council for the City of Gallatin amended Gallatin's Municipal Code, Chapter 16, Traffic and Vehicles by adding Article VIII, establishing the Big Station Camp Boulevard Transportation Improvement District and approved a sample Pro-Rata Share Agreement by Ordinance No. O1909-46 on April 21, 2020; and

WHEREAS, TNHomesites.com and Tenn Properties Newmans Crossing GP (collectively "Developer") has received approval of its Final Master Development Plan and is prepared to commence construction of Newmans Crossing; and

WHEREAS, The City of Gallatin has assessed Developer's pro-rata contribution toward the required traffic and transportation improvements to the Big Station Camp Boulevard Corridor; required by Ordinance No. O1909-46; and

WHEREAS, the agreement between the City and Developer for Developer's contribution toward the Big Station Camp Boulevard Corridor traffic and transportation improvement have been memorialized in a formal agreement, attached hereto as Exhibit 1; and

NOW THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, the Mayor is authorized to execute the attached Pro-Rata Share Agreement with Developer for the Big Station Camp Boulevard Corridor

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that this Resolution shall take effect upon passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**Pro-Rata Share Agreement for the Big Station Camp Boulevard Transportation
Facility Improvements**

**BIG STATION CAMP BOULEVARD CORRIDOR TRANSPORTATION
IMPROVEMENTS PRO-RATA SHARE AGREEMENT**

This Big Station Camp Boulevard Corridor Transportation Improvements Pro-Rata Share Agreement (this “Agreement”) is made and entered this ____ day of _____, 2020, by and between the CITY OF GALLATIN, TENNESSEE, a chartered Tennessee municipality located in Sumner County, Tennessee, whose mailing address is 132 West Main Street, Gallatin, Tennessee 37066 (the “City”), and **TNHOMESSITES.COM**, with its principal office located at 190D Saundersville Road, Suite 1003, Hendersonville, TN 37075 (“Commercial Developer”) and **TENN PROPERTIES NEWMANS CROSSING GP**, a Tennessee general partnership (“Residential Developer” and together with the Commercial Developer, collectively, the “Developer” or the “Property Owner”). The City, the Commercial Developer and the Residential Developer shall hereinafter be collectively referred to as the “Parties.”.

RECITALS:

WHEREAS, The City Council of the City of Gallatin determines that the City and the citizens of the City receive a public benefit of improved transportation services from entering into this Agreement; and

WHEREAS, the City held a public hearing related to the proposed agreement and assessment and notified the property owners affected by the proposed assessment as described in Tennessee Code Annotated, Title 7, Chapter 32, Sections 101 and 104 – 106; and

WHEREAS, the owners of property subject to this Agreement received written notice of the levy of assessment as described in this Agreement by certified mail as required by Tennessee Code Annotated, Title 7, Chapter 32, Section 115 (b)(6); and

WHEREAS, attached to this Agreement are exhibits describing in greater detail the Parties hereto, real property, traffic impact study and transportation improvements list which are referenced throughout this Agreement. The Parties agree that all attached exhibits have been reviewed and previously approved by the Parties; and

WHEREAS, the Parties agree that all attached exhibits have been reviewed and previously approved by the Parties and their respective professional consultants, and all cumulative information set forth or otherwise referenced therein is incorporated herein by reference; and

WHEREAS, the Property Owner/Developer desires to permit, to site plan, to develop, and/or to plat the real property (the “Newmans Crossing”, the “Project” or the “Development”) consistent with the Development Data on the attached Exhibit ‘1-A’, ‘1-B’ and ‘1-C’; and, in addition to other requirements, is seeking to comply with the City's requirement to make certain transportation improvements as a condition of zoning and preliminary master plan on the Development approved by the Gallatin City Council and the and final master development plan/final plat/site plan approval by

the Gallatin Municipal-Regional Planning Commission on the Development, respectively, for Big Station Camp Boulevard Transportation Facility Improvements as authorized under Chapter 16, Article VIII , Gallatin Code of Ordinances; and

WHEREAS, the Property Owner/Developer is joined by the City who desires to preserve and create capacity to permit construction of the proposed “transportation corridor improvements” including to site plan/develop and to plat the Development consistent with the Development Data on the attached Exhibit 1-A, 1-B and 1-C and are seeking to comply with the City's zoning regulations; and

WHEREAS, Commercial Developer is the owner of the Phase 2B portion of the Project (“Commercial Project”) and Residential Developer is the owner of the Phase 1 and Phase 2A portion of the Project (“Residential Project”), all as described on Exhibit “A” attached hereto; and

WHEREAS, the transportation corridor improvement projects (the “Recommended Intersection and Roadway by Design Year for the Big Station Camp Boulevard Transportation Improvement District” “Development Pro-Rata Share Improvements” or “Transportation Corridor Improvements”) described in Exhibit ‘C’ of Ordinance No. O1909-46 include the estimated costs for the completed improvements (FY2019\$) and cumulative assessment value basis for a project impact on the public transportation facilities, required for the Property Owner/Developer to meet minimum requirements for transportation facilities operation in the Big Station Camp Boulevard Corridor to support the proposed Development are identified in Exhibit ‘3’ attached hereto; and

WHEREAS, the Parties acknowledge and agree that the proposed Development creates additional transportation impacts to the Big Station Camp Boulevard corridor that may be addressed by the development of improvements within and in proximity to the Development and as set forth in *the City of Gallatin on the Move 2020 Plan* and on the approved zoning with preliminary and final master development plans; and

WHEREAS, the Property Owner/Developer shall be eligible for credits for all off-site design and construction plans and permits and costs, and other items described in Tennessee Code Annotated §7-32-119, certified to the City (the “Offsite Improvements”) and collectively referred to hereinafter as the “Big Station Camp Boulevard Improvement Project”; and

WHEREAS, the City acknowledges that the Property Owner/Developer may construct the improvements in the Big Station Camp Boulevard Corridor in lieu of the immediate payment by the Property Owner/Developer for all cumulative impacts to Big Station Camp Boulevard and such improvements are eligible for pro-rata share credits; and

WHEREAS, the City Council determines that the Property Owner/Developer subject to this Agreement and the citizens of the City will receive a public benefit from entering into this Agreement; and

WHEREAS, the Property Owner/Developer acknowledges and agrees that payments and/or the Property Owner/Developer’s completion of the off-site improvements in the Big Station Camp Boulevard Corridor according to the “Timing and Allocation for Developer Payments” in Exhibit ‘4’,

and the City's acceptance of such, as outlined in the Timing and Allocation for Developer Payments on the attached Exhibit '4', shall be conditions precedent to the issuance of the first vertical building permit for the Commercial Project portion of the Development; and

WHEREAS, the City and the Property Owner/Developer agree that the new capacity created by the Big Station Camp Boulevard improvements may not be the actual excess capacity of the roadway necessary to serve project traffic, as a result of the need to account for vested trips, pursuant to the transportation study conducted for Big Station Camp Boulevard, from previously approved, but un-built, developments.

NOW, THEREFORE, in consideration of the mutual covenants contained herein and other valuable considerations, the receipt and sufficiency of which are hereby acknowledged, the City and Property Owner/Developer, hereby agree as follows:

1. **Incorporation of Recitals.** The facts stated above in the recitals are incorporated by reference herein and deemed by the Parties to be true, correct and constitute a material part of this Agreement.
2. **Offsite Construction.** The City agrees to permit the Property Owner/Developer to construct, or to have constructed, the "Transportation Corridor Improvements" subject to plan and permit approval by the City. Construction of the Transportation Corridor Improvements will commence and be complete to meet long-term transportation needs of the corridor as identified in Exhibit C of Ordinance No. O1909-46. The Property Owner/Developer, or its designee, may be responsible for the design of the Transportation Corridor Improvements, which design will be in accordance with the description of improvements referenced on the Exhibits and subject to approval by the City, since credits for the design cost will be applied. All planning, permitting, and construction will be subject to the review and approval, if applicable, by the Tennessee Department of Transportation and Sumner County, and will comply with the standards and requirements established by the appropriate governmental entities, where applicable. The Property Owner/Developer will have no responsibility for maintenance or upkeep of the Transportation Corridor Improvements except as may otherwise be lawfully enacted and after acceptance of the off-site improvements by the City.
3. **Payment of Pro-Rata Share Assessment Amount.** In connection with the Property Owner/Developer's construction of the Transportation Corridor Improvements and as a condition and requirement for receiving the first vertical building permit for the Commercial Project portion of the Development, the Property Owner/Developer shall pay to the City a pro-rata share obligation, hereinafter the "Pro-Rata Share Payment." The Pro-Rata Share Payment shall be an amount determined and calculated pursuant to the assessment identified in Ordinance No. O1909-46 for the Big Station Camp Boulevard Corridor Transportation Study consistent with Article 13, Section 13.06, Subsection 13.06.010 E. of the Gallatin Zoning Ordinance as amended from time to time, and a current Development Traffic Impact Study ("TIS") prepared for the Development attached hereto as Exhibit "2". The anticipated total payment is \$2,108 (FY2019\$) per P.M. peak hour trip generated by the project or **\$805,256 for 382 Trips** subject to adjustments as described in Section 4 below and indexed by NHCCCI - 2.0 (1.9511 for 2019) at the time of each final plan approval.

The Property Owner/Developer shall be entitled to receive transportation corridor improvement credits, as indexed by NHCCCI - 2.0 (1.9511 for 2019) at the time of contribution, against the amount of Pro-Rata Share Payments otherwise due for constructing any of the following listed Transportation Corridor Improvements in conjunction with the Development provided the credited improvements are completed or surety payment received, acceptable to the City, prior to obtaining the first vertical building permit for the first building in the Commercial Project portion of the Development. Upon confirmation that all of the Transportation Corridor Improvements have been constructed, the City shall release the Surety to the applicable Property Owner/Developer who deposited such Surety.

- CONSTRUCTION OF 300' NORTHBOUND LEFT TURN LANE ON BIG STATION CAMP BOULEVARD WITH INTERSECTION IMPROVMENTS: \$587,000
- EXTENSION OF NORTHBOUND LEFT TURN LANE ON BIG STATION CAMP BOULEVARD TO OVER 500' AND EXTENSION OF EASTBOUND RIGHT TURN LANE ON LONG HOLLOW PIKE NEAR 300': \$226,000

TOTAL - \$813,000

Any Transportation Corridor Improvements listed above not constructed with the Development shall not be credited against the Pro-Rata Share Payment otherwise due and require payment by the Property Owner/Developer in cash or certified check or wire transfer of the remaining balance of the estimated cost of the Pro-Rata Share Payment.

Upon request from Property Owner/Developer, the City shall provide evidence and confirmation of payment of the Pro-Rata Share Payment in form reasonably requested by Property Owner/Developer, upon Property Owner/Developer's completion of the Transportation Corridor Improvements.

4. Property Owner's/Developer's Payment.

- A. To the extent applicable, to guarantee payment of its Pro-Rata Share Payment, the Property Owner/Developer agrees to procure a sufficient surety in favor of the City in an amount of \$805,256, as provided in this Agreement, prior to issuance of the permit by the City for the Transportation Corridor Improvements ("Surety") as outlined on the "Timing and Allocation for Payments" in attached Exhibit "4". Notwithstanding the foregoing, the foregoing obligation shall be subject to the terms and conditions set forth on Exhibit "4" attached hereto. Payment of the Surety is subject to cost adjustments consistent with the National Highway Construction Cost Index - 2.0 (NHCCI 2.0) maintained by the Federal Highway Administration, as amended, and as referenced in Ordinance No. O1909-46. The Property Owner/Developer shall pay the City by cash, Certified Check or wire transfer, the Surety as outlined on the "Timing and Allocation for Payments" in attached Exhibit '4'. The amount of the Surety may be reduced by the amount paid by the Property Owner/Developer with each building permit on a schedule as permitted by Chapter 3, Gallatin Subdivision Regulations, if applicable.

In no event shall any subdivision, building permit or certificate of occupancy on the Residential Project be conditioned, delayed or withheld prior to completion of the Transportation Corridor Improvements.

- B. The Surety shall be held in trust by the City and must be deposited with the City as outlined on the "Timing and Allocation for Payments" in attached Exhibit "4". No vertical building permit shall be issued for any building within the Commercial Project portion of the Development by the City until proper payment of the Surety as required herein.
- C. Any Transportation Corridor Improvements for which a Property Owner/Developer requests credits against the Pro-Rata Share Payment must be substantially completed prior to receiving a certificate of occupancy for the first building on the Commercial Project of the Development, except as otherwise provided in this Agreement. Any Transportation Corridor Improvements listed above not constructed with the Development shall not be credited against the Pro-Rata Share Payment otherwise due and require payment by the Property Owner/Developer in cash or certified check or wire transfer of the remaining balance of the estimated cost of the Pro-Rata Share Payment.
- D. If the Approved plan for Newmans Crossing is changed to add or reduce units which affect the number of p.m. peak hour trips assigned to Big Station Camp Boulevard, the amount of the Pro-Rata Share Payment identified in this Agreement to be paid by the Property Owner/Developer to the City shall be modified by amending this Agreement as part of the approval of the revised plan, and the Party requesting such change shall be responsible for 100% of any additional amounts required to be paid hereunder and for providing any additionally corresponding Surety. Said modifications, however, shall be within the confines of this Agreement as to the per P.M. peak hour trip cost and the ability of the Property Owner/Developer to provide Surety at the time of final development approval by the City and actual payment with the issuance of individual vertical building permits.
- E. If any portion of the Development is sold or otherwise transferred to another entity for ownership, development, or construction, the transferee, as a condition to any future development or construction on the portion of the Development so transferred, such transferee shall deliver the "Joinder Agreement for Transferees of the Property Owner/Developer" attached hereto as Exhibit '5' and the appropriate Surety and/or payment of the Pro-Rata Share Payment as may be required for said portion of the Development if not already provided or paid hereunder.

5. **Vested Rights in Project Traffic.** The City agrees that by paying or providing the Surety for the Pro-Rata Share Payment, and by receiving a vertical building permit and constructing any qualified off-site improvements for the Development, the Property Owner/Developer will be deemed to have satisfied the City's transportation pro-rata share requirements for the Development and that the Development shall be fully vested for purposes of complying with Section 13.06.010 E. of the Gallatin Zoning Ordinance and with the zoning with preliminary master development plan and final master development plan/site plan/final plat for the Development.

6. **Application of Agreement Limited to the Development.** Nothing herein is intended to bind the City in allocating any additional trip capacity provided by the construction of the Transportation Corridor Improvements beyond that provided to the Development in connection with the Pro-Rata Share Payment or to require the City to declare any other project as a transportation corridor improvement. The City expressly reserves the right to determine and allocate available excess capacity for all future developments within its jurisdiction and other jurisdictions that impact the Transportation Corridor Improvement Projects.
7. **Breach of Pro-rata Share Agreement.** If the Property Owner/Developer, upon proper notice fails to make timely payment of the Pro-Rata Share Payment or to design and construct the improvements for which the Property Owner/Developer is requesting credits, then the applicable failing Property Owner/Developer shall be deemed to be "Not in Good Standing" and shall be in breach of this Agreement. Upon a breach, the City shall determine the number of trips paid for under the adjusted calculation. The City shall not issue any further vertical building permits or certificates of occupancy for the Commercial Project until the adjusted cost of the trips allocated to that portion of the Development have been paid by the Property Owner/Developer and received by the City.
8. **Miscellaneous.**
 - A. **Venue and Choice of Law.** In the event of litigation regarding the terms of this Agreement or documents executed as a result of this Agreement, venue of the action shall be in Sumner County and Tennessee law shall apply. Trial shall be nonjury for any issues subject to trial.
 - B. **Waiver.** The waiver by a party of any terms or conditions of this Agreement or any breach hereof shall not constitute a waiver of any other term or condition or any subsequent breach of this Agreement.
 - C. **Successors.** This Agreement shall be binding on the Parties thereto, their heirs, administrators, executors, successors in interest and assigns.
 - D. **Construction of Contract.** The Parties hereto agree that they have all participated in the drafting of this Agreement, including the calculations included in the Exhibits for the proposed Big Station Camp Boulevard Transportation Corridor Improvements. Therefore, the presumption that any ambiguity or vagueness in the construction of this Agreement shall be construed against the drafter shall not apply. The terms and provisions of the Agreement shall be applied equally to each party and the interpretation of the Agreement shall be guided by the express intent of the Parties and the City's Land Development Regulations as determined by the overall effect of the provisions herein.
 - E. **Amendments.** Amendment to this Agreement shall not be effective unless in writing and signed by all record title property owners of the Project or that portion of the Project for which the amendment is to be applied (but excluding the record title property owners for land that is unaffected by the amendment), and the City.

- F. Conflicts.** The Property Owner/Developer agrees to be bound by all City codes and ordinances that are not in conflict with the provisions of this Agreement.
- G. Recording.** The Property Owner/Developer shall record a copy of this Agreement, at its sole cost and expense, with the Register's Office of Sumner County, Tennessee.
- H. Binding Nature and Covenants Running With the Land.** The provisions of this Agreement shall be binding upon the Parties hereto, and upon all successors in interest in the subject real property. And further, the provisions of this Agreement shall constitute covenants running with the land applicable to all of the subject real property comprising the referenced Development.
- I. Counterparts.** This Agreement may be executed in one or more counterparts, each of which shall be deemed to be an original but all of which together shall constitute one and the same instrument. The delivery by facsimile or email "PDF" of an executed copy of this Agreement shall be deemed valid as if an original signature were delivered; provided original signatures must be provided to effect the recording of this Agreement as contemplated herein.
- J. Entire Agreement.** This Agreement represents the entire agreement between the Parties and there are no oral or collateral agreements or understandings. This Agreement may be amended only by an instrument in writing signed by the parties. If any other provision of this Agreement is held invalid or unenforceable, no other provision shall be affected by such holding, and all of the remaining provisions of this Agreement shall continue in full force and effect.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK]

IN WITNESS WHEREOF, the Parties have agreed as set forth above.

CITY:
CITY OF GALLATIN, TENNESSEE

BY: _____
PAIGE BROWN, MAYOR

ATTEST:

CONNIE KITRELL
CITY RECORDER

COMMERCIAL DEVELOPER:
TNHOMESITES.COM, a Tennessee general partnership

By: _____
Name: _____
Its: _____

RESIDENTIAL DEVELOPER:
TENN PROPERTIES NEWMANS CROSSING GP, a Tennessee general partnership

By: _____
Name: _____
Its: _____

Exhibit "A" – Legal Description of the Development
Exhibit '1A' – Approved Preliminary Master Development Plan
Exhibit '1B' – Approved Final Plat Phase 2B
Exhibit '2' – Traffic Impact Study for Newmans Crossing
Exhibit '3' – List and Cost Sheet of Off-site improvements to be constructed by the Property Owner/Developer
Exhibit '4' – Timing and Allocation for Developer Payments
Exhibit '5' – Joinder Agreement for Transferees of the Property Owner/Developer

Exhibit "A" – Legal Description of the Development

COMMERCIAL PROJECT:

Lot 1

BEGINNING at an iron rod (new) on the southerly right-of-way of Long Hollow Pike (width varies) at its intersection with the easterly boundary line of the Stuart Hendrix and Rachel Hendrix property recorded in Record Book 3962, Page 583, being the northwest corner of the herein described tract;

Thence, with said southerly right-of-way, as follows:

North 83 degrees 49 minutes 59 seconds East 210.00 feet to an iron rod (old),

North 84 degrees 24 minutes 45 seconds East 153.97 feet to and iron rod (old),

South 88 degrees 47 minutes 00 seconds East 69.30 feet to a concrete monument (old),

Northeasterly an arc length of 163.72 feet along a non-tangent curve in said right-of-way concave to the south and having a radius of 5729.58 feet, a central angle of 1 degrees 38 minutes 14 seconds and a chord bearing of North 85 degrees 09 minutes 10 seconds East for a distance of 163.71 feet to an iron rod (new),

Thence, leaving said right-of-way and severing TNHOMESITES property recorded in Record Book 4861, Page 651 and Record Book 3596, Page 445 in said Register's Office, as follows:

South 6 degrees 39 minutes 50 seconds East 3.04 feet to an iron rod (new),

Southeasterly an arc length of 29.95 feet along a curve concave to the northeast and having a radius of 77.00 feet, a central angle of 22 degrees 17 minutes 09 seconds and a chord bearing of South 17 degrees 48 minutes 24 seconds East for a distance of 29.76 feet to an iron rod (new), Southeasterly an arc length of 49.48 feet along a reverse curve concave to the southwest and having a radius of 103.44 feet, a central angle of 27 degrees 24 minutes 27 seconds and a chord bearing of South 15 degrees 14 minutes 45 seconds East for a distance of 49.01 feet to an iron rod (new); South 3 degrees 28 minutes 01 seconds East 158.46 feet to an iron rod (new),

South 48 degrees 27 minutes 44 seconds East 20.51 feet to an iron rod (new), and North 86 degrees 32 minutes 16 seconds East 261.87 feet to an iron rod (new) on the westerly right-of-way (100 feet wide) of Big Station Camp Boulevard;

Thence, with said westerly right-of-way, South 6 degrees 57 minutes 21 seconds West 84.47 feet to an iron rod (new);

Thence, leaving said right-of-way and severing said TNHOMESITES property (Sumner County Maps 124 Parcels 35.08 and 35.01) as follows:

North 79 degrees 59 minutes 28 seconds West 28.89 feet to an iron rod (new),

North 10 degrees 00 minutes 32 seconds East 11.14 feet to an iron rod (new),

North 84 degrees 00 minutes 00 seconds West 118.70 feet to an iron rod (new),

South 86 degrees 32 minutes 16 seconds West 89.02 feet to an iron rod (new),

South 41 degrees 32 minutes 14 seconds West 41.72 feet to an iron rod (new),

South 03 degrees 27 minutes 44 seconds East 183.58 feet to an iron rod (new);

South 86 degrees 32 minutes 16 seconds West 711.06 feet to an iron rod (new) in said Hendrix's easterly boundary line;

Thence, with said easterly boundary line, North 7 degrees 34 minutes 30 Seconds East 507.35 feet to the BEGINNING containing 8.05± acres or 350,639± square feet.

Lot 3 (Outparcel 1)

8th/ Civil District, Sumner County, Tennessee
Sumner County Tax Map 124 Part of Parcel 35.08

BEGINNING at an iron rod (new) on the westerly right-of-way (100 feet wide) Big Station Camp Boulevard, being North 6 degrees 57 minutes 21 seconds East 559.17 feet along said right-of-way from an iron rod (new) at the northeast corner of Lot 32 on the plan of Newman Downs Phase 3 recorded in Plat Book 26, Page 36 in the Register's Office of Sumner County, Tennessee, and being southeast corner of the herein described tract;

Thence, leaving said right-of-way and severing the TNHOMESITES property recorded in Record Book 3596, Page 445 in said Register's Office, as follows:

South 86 degrees 32 minutes 16 seconds West 228.74 feet to an iron rod (new),
North 03 degrees 27 minutes 44 seconds West 183.58 feet to an iron rod (new),
North 41 degrees 32 minutes 14 seconds East 41.72 feet to an iron rod (new),
North 86 degrees 32 minutes 16 seconds East 89.02 feet to an iron rod (new),
South 84 degrees 00 minutes 00 seconds East 118.70 feet to an iron rod (new),
South 10 degrees 00 minutes 32 seconds West 11.14 feet to an iron rod (new),
South 79 degrees 59 minutes 28 seconds East 28.89 feet to an iron rod (new);

Thence, with said westerly right-of-way South 6 degrees 57 minutes 21 seconds East 178.95 feet to the BEGINNING containing 1.16± acres or 50,328± square feet.

Lot 2 (Outparcel 2)

8TH Civil District, Sumner County, Tennessee
Sumner County Tax Map 124 Part of Parcel 35.08

To find the POINT OF BEGINNING, commence at an iron rod (new) on the southerly right-of-way of Long Hollow Pike (width varies) at its intersection with the easterly boundary line of the Stuart Hendrix and Rachel Hendrix property recorded in Record Book 3962, Page 583 in the Register's Office for Sumner County, Tennessee;

Thence, with said southerly right-of-way, as follows:

North 83 degrees 49 minutes 59 seconds East 210.00 feet to an iron rod (old),
North 84 degrees 24 minutes 45 seconds East 153.97 feet to an iron rod (old),
South 88 degrees 47 minutes 00 seconds East 69.30 feet to a concrete monument (old),
Northeasterly an arc length of 163.72 feet along a non-tangent curve in said right-of-way concave to the south and having a radius of 5729.58 feet, a central angle of 1 degree 38 minutes 14 seconds and a chord bearing of North 85 degrees 09 minutes 10 seconds East for a distance of 163.71 feet to an iron rod (new), the POINT OF BEGINNING, being the northwest corner of the herein described tract;

Thence, continuing with said curve and right-of-way, an arc distance of 270.00 feet through a central angle of 2 degrees 42 minutes 00 seconds and a chord bearing of North 87 degrees 19 minutes 17 seconds East for a distance of 269.97 feet to an iron rod (new);

Thence with said right-of-way, a curve with an arc distance of 102.92 feet and having a radius of 60.00 feet, a central angle of 98 degrees 17 minutes and 4 seconds and a chord bearing of South 42 degrees 11 minutes and 11 seconds East for a distance of 90.76 feet to an iron rod (new) at the point of tangency;

Thence, with said westerly right-of-way, South 06 degrees 57 minutes 21 seconds West 181.30 feet to an iron rod (new);

Thence, severing the TNHOMESITES property recorded in Record Book 3596, page 583 in said Register's Office as follows:

South 86 degrees 32 minutes 16 seconds West 261.87 feet to an iron rod (new),

North 48 degrees 27 minutes 44 seconds West 20.51 feet to an iron rod (new),

North 03 degrees 28 minutes 01 seconds West 158.46 feet to the beginning of a curve concave to the southwest and having a radius of 103.44 feet;

Thence, with said curve an arc distance of 49.48 feet through a central angle of 27 degrees 24 minutes 27 seconds and a chord bearing of North 15 degrees 14 minutes 45 seconds West for a distance of 49.01 feet to an iron rod at the beginning of a reverse curve concave to the northeast and having a radius of 77.00 feet;

Thence, with said reverse curve, an arc distance of 29.95 feet through a central angle of 22 degrees 17 minutes 09 seconds and a chord bearing of North 17 degrees 48 minutes 24 seconds West for a distance of 29.76 feet to an iron rod (new) at the point of tangency;

Thence, North 06 degrees 39 minutes 50 seconds West 3.04 feet to the BEGINNING containing containing 1.71 acres or 74,628 square feet.

RESIDENTIAL PROJECT

8TH Civil District, Sumner County, Tennessee

Sumner County Tax Map 124 Parcel 35 and parts of Parcels 35.01 and 35.08

BEGINNING at an iron rod (new) on the westerly right-of-way (100 feet wide) of Big Station Camp Boulevard at its intersection with the northerly boundary of Newman Downs Phase 3 recorded in Plat Book 26, Page 36 in the Register's Office for Sumner County, Tennessee, being the southeast corner of the herein described tract;

Thence, with said northerly boundary line as follows:

North 79 degrees 50 minutes 34 seconds West 139.24 feet to an iron rod (new),

South 75 degrees 43 minutes 36 seconds West 56.31 feet to an iron rod (old),

North 73 degrees 57 minutes 46 seconds West 91.25 feet to an iron rod (old),

South 51 degrees 10 minutes 19 seconds West 105.06 feet to an iron rod (old),

North 38 degrees 45 minutes 10 seconds West 27.67 feet to an iron rod (old),

South 51 degrees 08 minutes 49 seconds West 50.00 feet to an iron rod (new),

South 51 degrees 03 minutes 15 seconds West 150.16 feet to an iron rod (old), in the boundary line of the Jeffrey L. Hollins property recorded in Record Book 4641, Page 110 in said Register's Office;

Thence, with said boundary line as follows:

North 38 degrees 08 minutes 38 seconds West 107.84 feet to an iron rod (old),

South 82 degrees 01 minutes 36 seconds West 135.87 feet to an iron rod (old),

South 80 degrees 54 minutes 05 seconds West 217.64 feet to an iron rod (old) in the boundary line of the Stuart Hendrix and Rachel Hendrix property recorded in Record Book 3962, Page 583 in said Register's Office;

Thence, with said boundary line, North 07 degrees 34 minutes 30 seconds East 606.21 feet to an iron rod (new),

Thence, severing the TNHOMESITES.COM property recorded in Record Book 4861, Page 651 and Record Book 3596, Page 445 in said Register's Office, North 86 degrees 32 minutes 16 seconds East 939.80 feet to an iron rod (new) on said westerly right-of-way of Big Station Camp Boulevard;

Thence, with said right-of-way, South 06 degrees 57 minutes 21 seconds West 559.17 feet to the BEGINNING containing 12.17 acres or 529,966 square feet.

Exhibit '1A' – Approved Preliminary Master Development Plan

AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN NEWMANS CROSSING

BIG STATION CAMP BLVD
GALLATIN, SUMNER COUNTY, TENNESSEE

SHEET INDEX

C1.00	COVER
C1.01	SITE DATA & PHASING PLAN
C1.02	SITE LAYOUT PLAN
C1.03	SITE, UTILITY, GRADING & DRAINAGE PLAN
C1.04	LOT DATA & OPEN SPACE PLAN
A1.01	ARCHITECTURAL RENDERINGS
A1.02	ARCHITECTURAL RENDERINGS
A1.03	ARCHITECTURAL RENDERINGS
A1.04	PROPOSED SIGHT LINES



OWNER

TNHOMESITES.COM
147 MAPLE ROW BLVD
HENDERSONVILLE, TN 37075

DEVELOPERS

TNHOMESITES.COM
147 MAPLE ROW BLVD, SUITE 200
HENDERSONVILLE, TN 37075
CONTACT: MIKE STANTON
EMAIL: mstanton@tennprop.com

BLACKWATER DEVELOPMENT COMPANY, LLC
700 MONTGOMERY HIGHWAY, SUITE 186
BIRMINGHAM, AL 35216
CONTACT: JOHN ABERNATHY
EMAIL: john@blackwaterresources.com

ENGINEER

CIVIL SITE DESIGN GROUP
2305 KLINE AVE, SUITE 300
NASHVILLE, TENNESSEE, 37211
CONTACT: JIM HARRISON
PH: (615) 248-9999
EMAIL: jimh@civil-site.com

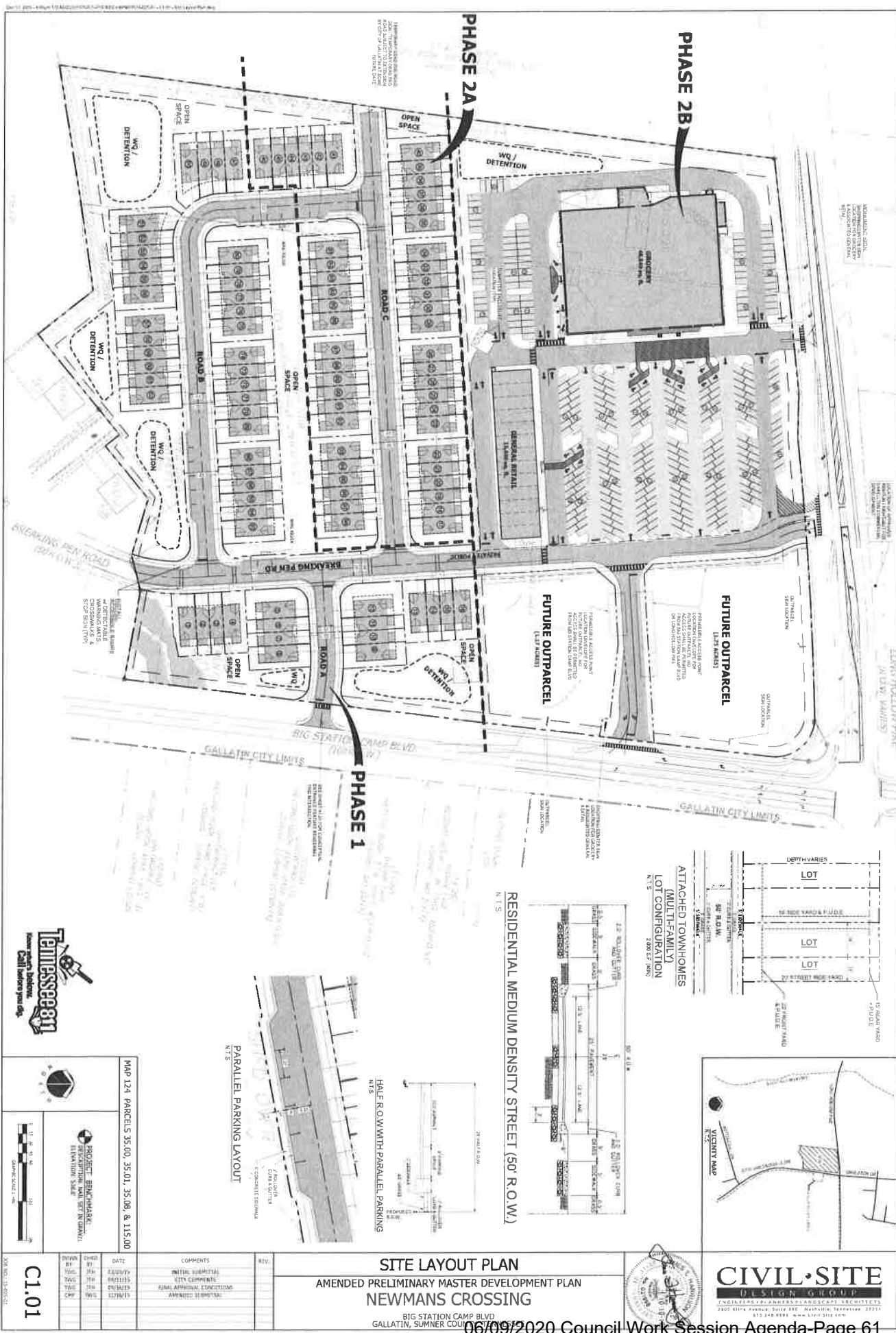
CIVIL-SITE
DESIGN GROUP

2305 KLINE AVE, SUITE 300 NASHVILLE, TN 37211
TEL: 615-248-9999 FAX: 615-248-9998
WWW.CIVIL-SITE.COM



DATE	BY	CHKD	DATE	COMMENTS	REV.
10-10-16	JH	JH		INITIAL SUBMITTAL	
	JH	JH		CITY COMMENTS	
	JH	JH		FINAL APPROVAL CONDITIONS	
	JH	JH		AMENDED SUBMITTAL	

JOB NO.: 15-005-01
GALLATIN PROJ NO.: _____



PROJECT BENCHMARK
ELEVATION SCALE: 1" = 4'-0"

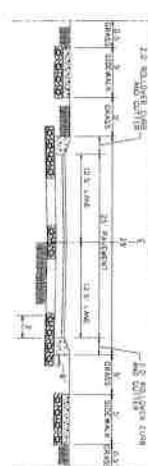
CL.01

MAP 124 PARCELS 35.00, 35.01, 35.08, & 115.00

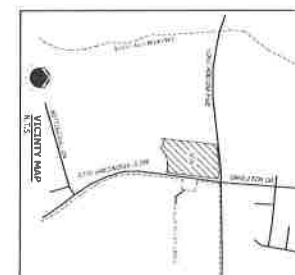
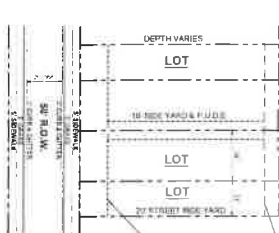
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06/09/20	INITIAL SUBMITTAL	1
06/09/20	FINAL APPROVAL CONDITIONS	2
06/09/20	AMENDED VERSION	3



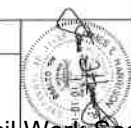
RESIDENTIAL MEDIUM DENSITY STREET (60' R.O.W.)
N.T.S.



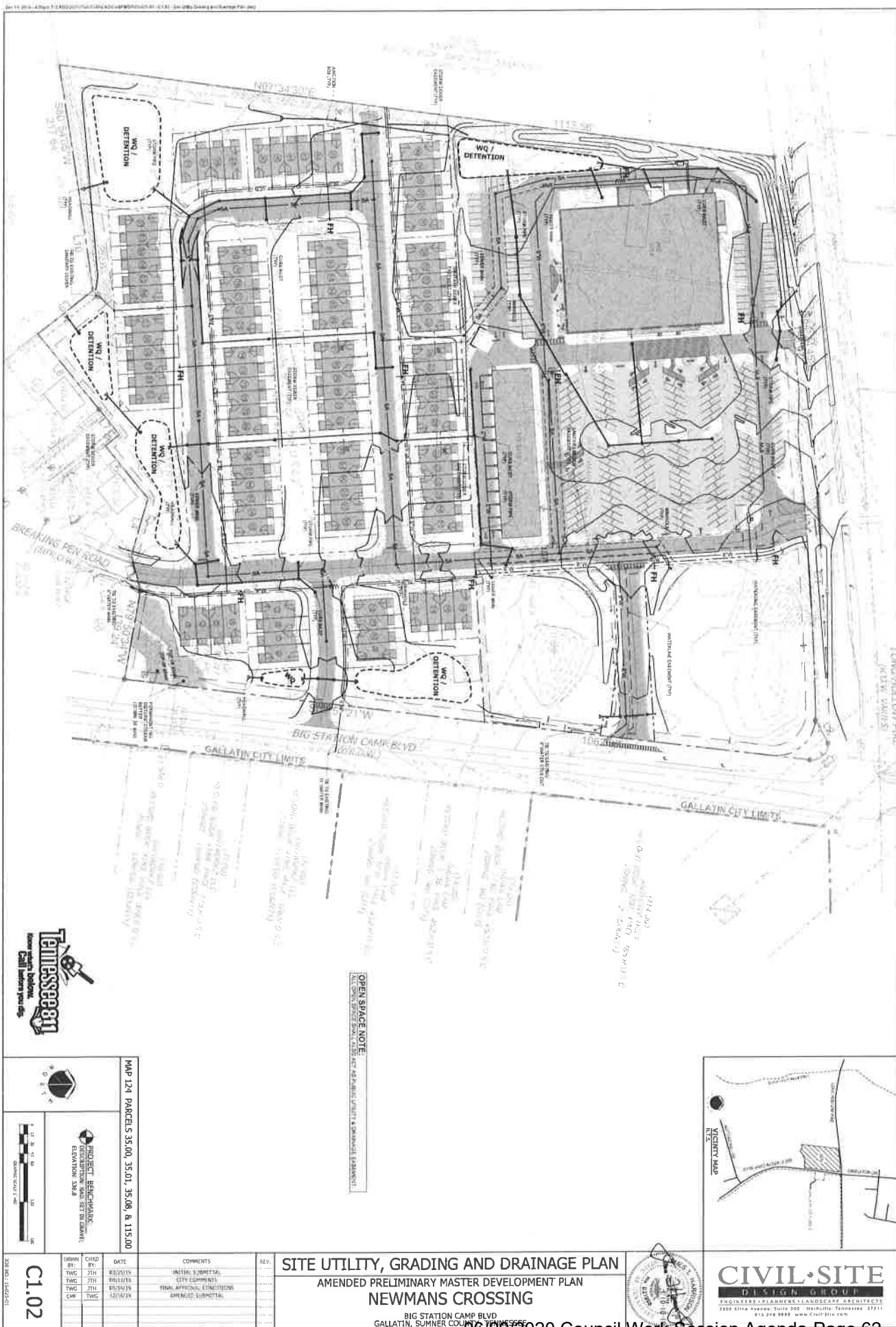
ATTACHED TOWNHOMES
(MULTI-FAMILY)
LOT CONFIGURATION
N.T.S.



SITE LAYOUT PLAN
AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN
NEWMANS CROSSING



CIVIL·SITE
DESIGN GROUP
ENGINEERS, PLANNERS, LANDSCAPE ARCHITECTS
2301 KIRK AVENUE, SUITE 200, NASHVILLE, TENNESSEE 37217
615.248.8888 WWW.CIVILSITE.COM





4-UNIT BRICK - FRONT



6-UNIT BRICK AND HARDIE - FRONT



4-UNIT BRICK - SIDE



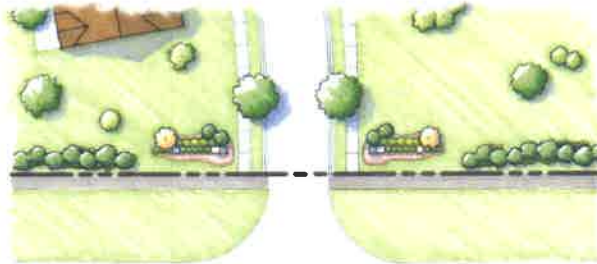
4-UNIT BRICK - REAR AND SIDE



6-UNIT BRICK AND HARDIE - REAR AND SIDE



6-UNIT BRICK AND HARDIE - SIDE



TOWNHOME ENTRANCE FEATURE - BIG STATION CAMP INTERSECTION



SAMPLE ARCHITECTURE ELEMENTS TO BE USED AS GUIDELINE FOR FUTURE OUTPARCEL DESIGN

(THE COMMERCIAL PHASES OF THIS DEVELOPMENT SHALL ADHERE TO BRICK REQUIREMENTS)

EXTERIOR MATERIAL PERCENTAGES

6-UNIT BRICK AND HARDIE
73% BRICK
27% HARDIE/PLANK

4-UNIT BRICK
86% BRICK
14% HARDIE/PLANK

CIVIL-SITE
DESIGN GROUP
ARCHITECTURAL RENDERINGS
2101 N. W. 11th Ave., Suite 100
Fort Lauderdale, FL 33304
Phone: 954.561.1111
www.civil-site.com

ARCHITECTURAL RENDERINGS
AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN
NEWMANS CROSSING
BIG STATION CAMP BLVD
GALLATIN, SUMNER COUNTY, TENNESSEE

DATE	COMMENTS
02/20/20	INITIAL SUBMITTAL
03/10/20	CITY COMMENTS
03/10/20	FINAL SUBMITTAL
03/10/20	AMENDED SUBMITTAL

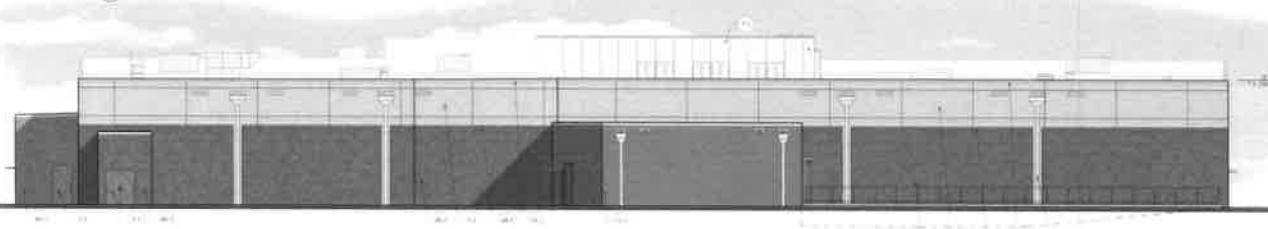
A1.01

JOB NO. 15-025-01

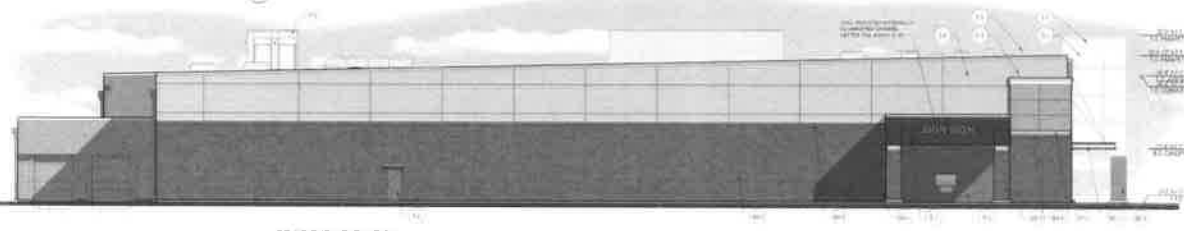
See 11 2014 Edition of Building Code of America (BCA) for details. See also 11 2014 Edition of International Building Code (IBC) for details.



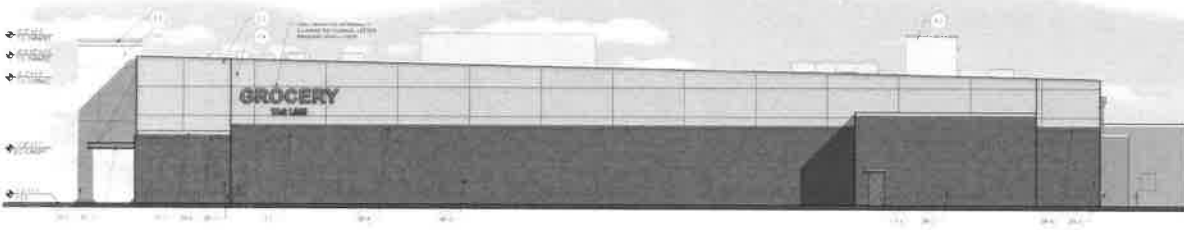
FRONT ELEVATION
55% MASONRY / 45% NON-MASONRY



REAR ELEVATION
47% MASONRY / 53% NON-MASONRY



DRIVE-THRU ELEVATION
44% MASONRY / 56% NON-MASONRY



SIDE ELEVATION
55% MASONRY / 45% NON-MASONRY

FINISH SCHEDULE			
NO.	DESCRIPTION	FINISH	FINISH SCHEDULE
1.0	CEILING	CEILING	CEILING
1.1	CEILING	CEILING	CEILING
1.2	CEILING	CEILING	CEILING
1.3	CEILING	CEILING	CEILING
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1.5	CEILING	CEILING	CEILING
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1.70	CEILING	CEILING	CEILING
1.71	CEILING	CEILING	CEILING
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1.74	CEILING	CEILING	CEILING
1.75	CEILING	CEILING	CEILING
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1.78	CEILING	CEILING	CEILING
1.79	CEILING	CEILING	CEILING
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1.98	CEILING	CEILING	CEILING
1.99	CEILING	CEILING	CEILING
2.0	CEILING	CEILING	CEILING

PHILLIPS

NEWMAN'S CROSSING

GALLATIN, TN

BLACKWATER

GROCERY ELEVATIONS

SK-1

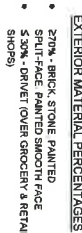
3000 PEACHTREE DUNWOODY RD.
DUNWOODY, GA 30328
ALANTA 404.255.1000

CIVIL-SITE
DESIGN GROUP
1000 GUNPOWDER BLVD. SUITE 100
GALLATIN, TN 37066
615.466.1000

ARCHITECTURAL RENDERINGS
AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN
NEWMANS CROSSING
BIG STATION CAMP BLVD.
GALLATIN, SUMNER COUNTY, TENNESSEE

DATE	REVISION	DESCRIPTION
02/25/19	1	INITIAL SUBMITTAL
05/17/19	2	FINAL SUBMITTAL
07/18/19	3	FINAL SUBMITTAL
08/15/19	4	FINAL SUBMITTAL
09/10/19	5	FINAL SUBMITTAL
10/10/19	6	FINAL SUBMITTAL
11/10/19	7	FINAL SUBMITTAL
12/10/19	8	FINAL SUBMITTAL
01/10/20	9	FINAL SUBMITTAL
02/10/20	10	FINAL SUBMITTAL
03/10/20	11	FINAL SUBMITTAL
04/10/20	12	FINAL SUBMITTAL
05/10/20	13	FINAL SUBMITTAL
06/10/20	14	FINAL SUBMITTAL
07/10/20	15	FINAL SUBMITTAL
08/10/20	16	FINAL SUBMITTAL
09/10/20	17	FINAL SUBMITTAL
10/10/20	18	FINAL SUBMITTAL
11/10/20	19	FINAL SUBMITTAL
12/10/20	20	FINAL SUBMITTAL

A1.02



FINISH SCHEDULE									
Task ID	Task Name	Start Date	End Date	Duration (Days)	Predecessor Task ID	Successor Task ID	Resource	Notes	Remarks
1.0	Project Kick-off	2023-01-01	2023-01-05	5			Project Manager	Initial meeting with stakeholders to define project scope and objectives.	
2.0	Requirement Gathering	2023-01-06	2023-01-15	10	1.0	3.0	Business Analyst	Conduct interviews and workshops to gather requirements.	
3.0	System Design	2023-01-16	2023-01-25	10	2.0	4.0	System Architect	Develop high-level system architecture and database design.	
4.0	Development	2023-01-26	2023-02-15	20	3.0	5.0	Software Engineer	Develop core system modules and integrate third-party services.	
5.0	Testing	2023-02-16	2023-02-25	10	4.0	6.0	QA Engineer	Perform unit testing, integration testing, and user acceptance testing.	
6.0	Deployment	2023-02-26	2023-03-05	10	5.0	7.0	DevOps Engineer	Deploy the application to the production environment.	
7.0	Post-Launch Support	2023-03-06	2023-03-15	10	6.0		Support Team	Monitor system performance and address any issues or bugs.	
8.0	Project Closure	2023-03-16	2023-03-20	5	7.0		Project Manager	Final review meeting and project closure activities.	

[illegible]

Exhibit '1B' – Approved Final Plat Phase 2B

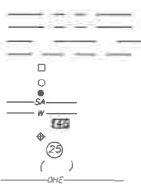


UTILITY NOTE. N.T.S.
THIS SURVEYOR HAS NOT PHYSICALLY LOCATED THE UNDERGROUND UTILITIES. ABOVE GRADE AND UNDERGROUND UTILITIES SHOWN WERE TAKEN FROM VISIBLE APPURTENANCES AT THE SITE, PUBLIC RECORDS AND/OR MAPS PREPARED BY OTHERS. THE SURVEYOR MAKES NO GUARANTEE THAT THE UNDERGROUND UTILITIES SHOWN COMPOSE ALL SUCH UTILITIES IN THE AREA, EITHER IN SERVICE OR ABANDONED. THE SURVEYOR FURTHER DOES NOT WARRANT THAT THE UNDERGROUND UTILITIES SHOWN ARE IN THE EXACT LOCATION INDICATED. THEREFORE, RELIANCE UPON THE TYPE, SIZE AND LOCATION OF UTILITIES SHOWN SHOULD BE DONE SO WITH THIS CIRCUMSTANCE CONSIDERED. DETAILED VERIFICATION OF EXISTENCE, LOCATION AND DEPTH SHOULD ALSO BE MADE PRIOR TO ANY DECISION RELATIVE THERETO IS MADE. AVAILABILITY AND COST OF SERVICE SHOULD BE CONFIRMED WITH THE APPROPRIATE UTILITY COMPANY. IN TENNESSEE IT IS A REQUIREMENT, PER THE UNDERGROUND UTILITY DAMAGE PREVENTION ACT, THAT ANYONE WHO ENGAGES IN EXCAVATION MUST NOTIFY ALL KNOWN UNDERGROUND UTILITY OWNERS, NO LESS THAN (3) THREE OR MORE THAN (10) WORKING DAYS PRIOR TO THE DATE OF THEIR INTENT TO EXCAVATE AND ALSO TO AVOID ANY POSSIBLE HAZARD OR CONFLICT. TENNESSEE ONE CALL 1-615-355-1987 OR 1-800-351-1111.

NOTES:
1. THE PURPOSE OF THIS PLAT IS TO CREATE A 3 LOTS OF RECORD.
2. FOR BOUNDARY ASPECTS OF THIS SURVEY, RTK GPS POSITIONAL DATA WAS OBSERVED ON/BEFORE THE DATE(S) OF 8/16/18, UTILIZING A TOPCON DUAL FREQUENCY RECEIVER. THE BEARINGS SHOWN WERE DERIVED USING THE TDOF GNSS REFERENCE NETWORK AND REFERENCED TO NAD 83 (2011), TENNESSEE ZONE 4100.
3. BY GRAPHIC PLOTTING ONLY, SUBJECT SITE IS NOT WITHIN THE SPECIAL FLOOD HAZARD AREA, PER F.E.M.A./F.I.R.M., MAP 47165C0293 G, EFFECTIVE DATE 4-17-2012.
4. SUBJECT PROPERTY IS ZONED MU (MIXED USE).
5. THE PARCEL LINES ARE TO BE REMOVED BY THE RECORDING OF THIS PLAT.
6. THE RECORDING OF THIS PLAT WILL VOID/VACATE AND SUPERCEDE PART OF THE RECORD OF PLAT BOOK 21, PAGE 29.R.O.S.C.
7. LOT 1 IS SUBJECT TO THE TERM AND CONDITIONS OF THE RECORDED STORMWATER INSPECTION AND MAINTENANCE AGREEMENT FOR THESE FACILITIES AS RECORDED IN RECORD BOOK _____, PAGE _____, R.O.S.C., TN. LOT 2 AND 3 WILL BE HANDLED AS DEVELOPED.
8. LOT 2 AND 3 SHALL NOT HAVE DIRECT ACCESS TO BIG STATION CAMP BOULEVARD OR LONG HOLLOW PIKE.
9. THIS DEVELOPMENT IS SUBJECT TO THE FINDINGS AND RECOMMENDATIONS OF THE BIG STATION CAMP BOULEVARD CORRIDOR TRAFFIC STUDY. PRO-RATA CONTRIBUTIONS FOR TRAFFIC INFRASTRUCTURE IMPROVEMENTS, AS RECOMMENDED IN THE STUDY OR SUBSEQUENT TRAFFIC STUDIES SUBMITTED FOR DEVELOPMENT REVIEW AND APPROVAL, SHALL BE REQUIRED BASED ON THE IMPACT OF SELECT NEEDED INFRASTRUCTURE IMPROVEMENTS. PRIOR TO RECORDING OF THE FINAL PLAT, THE DEVELOPER SHALL ENTER INTO A PRO-RATA AGREEMENT WITH THE CITY.
10. PROPOSED PUBLIC UTILITY EASEMENTS SHOWN HEREON ARE PRELIMINARY. FINAL UTILITY EASEMENT LOCATIONS SHALL BE DEDICATED BY A SEPARATE INSTRUMENT UPON COMPLETION OF UTILITY CONSTRUCTION.
11. DETENTION FOR LOTS 1,2&3 SHALL BE PROVIDED BY PROPOSED NEWMANS CROSSING PHASE 2A.
12. LAND DESIGNATED AS PARCEL 35.00 ON MAP 124, SHOWN GRAPHICALLY HEREON, WAS IDENTIFIED AS A POSSIBLE CEMETERY ON A PREVIOUSLY RECORDED PLAT AND DEPICTED AS SUCH BY SUMNER BURIAL LAW REQUIREMENTS. THE AREA WAS EXCAVATED FOR EXHUMATION AND NO BURIAL MARKERS OR REMAINS WERE PRESENT. THIS PARCEL IS PART OF THE PROPERTY CONVEYED TO TNHOMESITES.COM IN RECORD BOOK 4861, PAGE 651 AS RECORDED IN THE SUMNER COUNTY REGISTER OF DEEDS OFFICE.

LEGEND

PROPERTY BOUNDARY
LOT LINE
BUILDING SETBACK LINE
EASEMENT
CONC. MON. (O)
IRON ROD (O)
IRON ROD (N)
SANITARY SEWER
WATER LINE
STREET ADDRESS
FIRE HYDRANT
LOT NUMBER
PROPERTY MAP
OVER HEAD ELECTRIC



CERTIFICATE OF THE APPROVAL OF BONDING OF ROADS

I HEREBY CERTIFY THAT ALL DESIGNATED ROADS ON THIS FINAL PLAT HAVE BEEN BUILT AND ARE IN ACCORDANCE WITH THE REQUIREMENTS OF THE GALLATIN MUNICIPAL-REGIONAL SUBDIVISION REGULATIONS, AND THAT THE PLANNING COMMISSION HAS BEEN ADVISED OF THE PLANNING COMMISSION TO ASSURE COMPLETION OF ALL REQUIRED IMPROVEMENTS IN CASE OF DEFAULT.

DATE

UTILITY ENGINEER

KNOW WHAT'S BELOW
CALL BEFORE YOU DIG

AREA SUMMARY

Area	Acres	Sq. Feet
LOT 1	8.05±	350639±
LOT 2	1.71±	74628±
LOT 3	1.16±	50328±
Total	10.92±	475595±



DEED REFERENCE

TO: TNHOMESITES.COM
FROM: JOHN F. NEWMAN
RECORD BOOK 4861, PAGE 651, R.O.S.C.
TO: TNHOMESITES.COM
FROM: TNHOMESITES.COM
RECORD BOOK 3596, PAGE 445, R.O.S.C.

PROPERTY MAP REFERENCE

SUBJECT SITE MAY BE IDENTIFIED AS PART OF PARCELS 35.01, 35.08 AND ALL OF 115.00 AND 35.00 ON SUMNER COUNTY TAX MAP 124.

CERTIFICATE OF ACCURACY

I HEREBY CERTIFY THAT THE PLAT SHOWN AND DESCRIBED HEREON IS A TRUE AND CORRECT SURVEY IN ACCORDANCE WITH THE GALLATIN MUNICIPAL-REGIONAL SUBDIVISION REGULATIONS, AND THAT THE PLANNING COMMISSION HAS BEEN ADVISED OF THE PLANNING COMMISSION TO ASSURE COMPLETION OF ALL REQUIRED IMPROVEMENTS IN CASE OF DEFAULT.

CERTIFICATE OF OWNERSHIP AND DEDICATION

I (WE) HEREBY CERTIFY THAT I (WE ARE) THE OWNER(S) OF THE PROPERTY SHOWN AND DESCRIBED HEREON AS SHOWN IN BOOK 3592, PAGE 1, AND BOOK 4861, PAGE 651, R.O.S.C., AND THAT I (WE) HEREBY ASSIGN THE PLAT OF SUBDIVISION WITH ALL FINAL CONVEYANCE ESTABLISHING THE BUILDING SETBACK REQUIREMENTS, AND THAT OFFERS OF IRREVOCABLE DEDICATION FOR ALL PUBLIC ADJACENT UTILITIES, AND OTHER FACILITIES HAVE BEEN FILED AS REQUIRED BY THE GALLATIN MUNICIPAL-REGIONAL SUBDIVISION REGULATIONS.

CERTIFICATE OF APPROVAL OF UTILITY SYSTEMS

I HEREBY CERTIFY THAT THE FOLLOWING UTILITY SYSTEMS OUTLINED OR INDICATED ON THE FINAL SUBDIVISION PLAT ENTITLED NEWMANS CROSSING PHASE 2B HAS/ARE BEEN INSTALLED IN ACCORDANCE WITH CURRENT LOCAL AND STATE GOVERNMENT REQUIREMENTS OR A SUFFICIENT BOND OR CASH HAS BEEN FILED WHICH WILL GUARANTEE SAID INSTALLATION.

WATER SYSTEM

DATE

WHITE HOUSE UTILITY DISTRICT

SEWER SYSTEM

DATE

WHITE HOUSE UTILITY DISTRICT

CERTIFICATE OF APPROVAL FOR RECORDING

I HEREBY CERTIFY THAT THE SUBDIVISION PLAT SHOWN HEREON HAS BEEN FOUND TO COMPLY WITH THE GALLATIN MUNICIPAL-REGIONAL SUBDIVISION REGULATIONS FOR WITH THE EXCEPTION OF SUCH VIOLATIONS IF ANY, AS/LARE NOTED IN THE MINUTES OF THE PLANNING COMMISSION AND THAT IT HAS BEEN APPROVED FOR RECORDING IN THE OFFICE OF THE COUNTY REGISTRAR.

DATE

SECRETARY, PLANNING COMMISSION

DATE

DEPUTY'S INITIALS

FINAL PLAT NEWMANS CROSSING PHASE 2B

GALLATIN, SUMNER CO. PLANNING COMMISSION

TOTAL ACRES = 10.92±	TOTAL LOTS = 3
ACRES OF NEW ROAD = 0	FEET OF NEW ROAD = 0
OWNER: TNHOMESITES.COM	CIVIL DISTRICT: 4th
SCALE: 1"=100'	CLOSURE: > 1: 10,000
SURVEYOR: CRAWFORD & CUMMINGS P.C.	TOTAL OPEN SPACE = 0
SUMNER COUNTY	STATE OF TENNESSEE

Exhibit '2' –Traffic Impact Study for Newmans Crossing

APRIL 2019

TRAFFIC IMPACT STUDY

**NEWMAN'S CROSSING
GALLATIN, TENNESSEE**

PREPARED FOR:
CIVIL SITE DESIGN GROUP



1101 17TH AVENUE SOUTH
NASHVILLE, TENNESSEE 37212

**TRAFFIC IMPACT STUDY
NEWMAN'S CROSSING
GALLATIN, TENNESSEE**

PREPARED FOR:
CIVIL SITE DESIGN GROUP



PREPARED BY:
KCI TECHNOLOGIES, INC
1101 17th Avenue South
Nashville, TN 37212
615.370.8410 office 615.370.8455 fax
www.kci.com

TABLE OF CONTENTS

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2. EXISTING CONDITIONS.....	3
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EXECUTIVE SUMMARY

Project Description

The Newman's Crossing development is located on the southwest corner of the intersection of Big Station Camp Boulevard and Long Hollow Pike in Gallatin, Tennessee. According to the developer, the proposed development is planned to consist of approximately 100 townhome units, 14,400 square feet of general retail space, 3,000 square feet of quick-service restaurant space with drive-thru, 48,400 square feet of space for a grocery store, and a 4,000 square-foot convenience store with 16 fueling positions. The purpose of this study is to analyze the access plan and the traffic impacts associated with the proposed development.

Data Collection

In order to provide data for the traffic impact analysis, traffic counts were conducted at the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive by KCI Technologies, Inc. Specifically, the counts were conducted from 7:00 – 9:00 AM and 4:00 – 6:00 PM on a typical weekday in August 2018 while local schools were in session. From the counts, it was determined that the peak hours of traffic flow occurred from 7:00 – 8:00 AM and 4:00 – 5:00 PM.

Projection of Future Traffic Volumes

In order to account for the traffic growth prior to the completion of the proposed project, background traffic volumes were established, which include a background growth rate to account for general traffic growth within the study area based on TDOT count station data and the traffic generated by developments being built in the vicinity of the project site. Then the estimated project-generated traffic volumes were added to the background peak hour traffic volumes in order to obtain the total projected peak hour traffic volumes for the study area intersections.

Conclusions and Recommendations

The analyses presented in this study indicate that the impacts of the proposed project on the existing street network will be manageable by providing the recommendations below. These specific recommendations will provide safe and efficient traffic operations within the study area following the completion of the proposed project. The recommendations are as follows:

The following improvements for the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive were adopted from the Big Station Camp Boulevard corridor study prepared for the City of Gallatin:

- Install an exclusive left-turn lane with approximately 300 feet of storage on the northbound approach of Big Station Camp Boulevard.
- Extend the eastbound right-turn lane on Long Hollow Pike to provide a total of 280 feet of storage. The Big Station Camp Boulevard corridor study prepared for the City of Gallatin recommended that the eastbound right-turn lane on Long Hollow Pike be extended to provide a total of 300 feet of storage. However, a 300-foot long storage length would require the relocation of proposed Site Access 2 farther to the west, which would lead to sight distance limitations for vehicles turning left out of this proposed site access. In order to ensure adequate sight distance for Site Access 2 as designated in the current site plan, the storage for the eastbound right-turn lane of Long Hollow Pike at Big Station Camp Boulevard should be increased from 145 feet to 280 feet as opposed to 300 feet. According to the evaluation of the 95th percentile queue lengths for the intersection of Long Hollow Pike and Big Station Camp Boulevard under projected conditions with improvements, providing 280 feet of storage for the eastbound right-turn lane of Long Hollow Pike will be more than sufficient to accommodate traffic demand during both the AM and PM peak hours.
- Restripe the southbound approach of Carellton Drive to include one left-turn lane and one shared through/right-turn lane.
- Modify the traffic signal to provide protected-permissive left-turn signal phasing for all approaches. Also, provide a right-turn overlap phase for the eastbound approach of Long Hollow Pike.

The following improvements should be provided in conjunction with the development of this project:

Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive

- Due to the potential for pedestrian activity between the retail portion of the proposed development and the Carellton development to the north, it is recommended to provide a pedestrian crosswalk and pedestrian signals with countdown timers for movements across the west leg of Long Hollow Pike.

Long Hollow Pike and Site Access 1 (Western Access)

- The proposed connection to Long Hollow Pike should be designed as a right-in, right-out access with one entering lane and one exiting lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- A channelized right-turn lane with approximately 120 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 1.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
 - According to field measurements, adequate intersection sight distance is available for turning right out of the proposed site access.

Long Hollow Pike and Site Access 2 (Eastern Access)

- Based on the results of a left-turn lane analysis, a westbound left-turn lane on Long Hollow Pike is warranted under projected conditions.
 - It should be noted that the speed limit on Long Hollow Pike is under consideration to be lowered to 40 mph. The results of the analysis indicate that a left-turn lane is warranted at the site access even with the reduced speed limit.
- A right-turn lane with approximately 100 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 2 and a left-turn lane with approximately 190 feet of storage is planned to be installed on the westbound approach of Long Hollow Pike at Site Access 2.
- The proposed connection to Long Hollow Pike should be designed to include one entering lane and two exiting lanes, one left-turn lane and one right-turn lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
 - According to field measurements, adequate intersection sight distance is available for turning left and right out of the proposed site access.

Big Station Camp Boulevard and Site Access 3 (Northern Access)

- The proposed connection of Site Access 3 to Big Station Camp Boulevard should be designed to include sufficient width for one entering lane and two exiting lanes, one left-turn lane and one right-turn lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- A right-turn lane with approximately 120 feet of storage is planned to be installed on the southbound approach of Big Station Camp Boulevard at Site Access 3.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
 - According to field measurements, while adequate stopping sight distance is available, adequate intersection sight distance is only available for turning right out of the proposed site access. The available sight distance for turning left out of the proposed site access falls 35 feet below the design value. In order to enhance the sight distance for vehicles turning left out of Site Access 3, its location should either be shifted or its grade should be raised until sight distance requirements are met.

Big Station Camp Boulevard and Site Access 4 (Southern Access Serving the Residential Portion of the Site)

- The proposed connection of Site Access 4 to Big Station Camp Boulevard should be designed to include sufficient width for one entering lane and one exiting lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
 - According to field measurements, adequate intersection sight distance is available for turning left and right out of the proposed site access.

Trip Generation and Big Station Camp Corridor Roadway Fees

- The Big Station Camp Corridor Roadway Fee program is based on the number of peak hour trips generated by a development. Since the analyses presented in this study are based on trip generation rates from a national dataset, additional analysis may be performed after the completion and occupation of

each development phase to determine the actual peak hour trips generated, as they may be less than those estimated in this study.

- Additionally, the construction of the recommendations presented above should be considered against the City of Gallatin's impact fee program for this corridor. In some instances, constructed improvements that would need to be rebuilt in the future may not best serve the adjacent roadway network.

In summary, based on the analyses conducted, no further recommendations are presented for the proposed development.

1. INTRODUCTION AND PROJECT DESCRIPTION

The purpose of this study is to analyze the traffic impacts and access plan associated with the proposed Newman's Crossing mixed-use development located on the southwest corner of the intersection of Big Station Camp Boulevard and Long Hollow Pike in Gallatin, Tennessee. According to information provided by the development team, the site is planned to include approximately 100 townhome units, 14,400 square feet of general retail space, 3,000 square feet of quick-service restaurant space with drive-thru, 48,400 square feet of space for a grocery store, and a 4,000 square-foot convenience store with 16 fueling positions.

As shown by Figure 1, the property is located on the southwest corner of Big Station Camp Boulevard and Long Hollow Pike. The property is bounded on the north by Long Hollow Pike, on the east by Big Station Camp Boulevard, and on the south and west by existing residential properties. The proposed development is located within an area that is characterized primarily by a mix of low and medium-density residential land uses. Five vehicular access points to the development are planned to be provided – two to the north on Long Hollow Pike, two to the east on Big Station Camp Boulevard, and one cross-parcel accesses to the south by way of Breaking Pen Road. The westernmost site access on Long Hollow Pike is planned to be right-in, right-out. The current site plan for the development is shown in Appendix A.

In this study, the current operating characteristics of the adjacent roadways and intersections near the project site are evaluated. The expected trips generated by the proposed development are determined and distributed to the roadway network. The adjacent roadways and intersections are then re-evaluated to determine the anticipated traffic impacts of the project. Finally, recommendations are presented, including roadway improvements and/or traffic control improvements that are needed to accommodate the expected traffic.



Location of the Project Site
(Not to Scale)

Figure 1.

2. EXISTING CONDITIONS

2.1 Existing Roadway Network

Local access to the site will be provided by Long Hollow Pike, Big Station Camp Boulevard, and Starting Gate Drive. A description of these roadways within the project vicinity is as follows:

Long Hollow Road (State Route 174) is a two-way roadway that generally travels in an east-west direction with one travel lane in each direction near the project site. Long Hollow Pike provides connection to New Hope Road and Interstate 65 to the west and Vietnam Veterans Boulevard to the east. According to the *TDOT Functional Classification Map*, Long Hollow Pike is categorized as a minor arterial. The posted speed limit on Long Hollow Pike is 50 mph near the project site. No sidewalk, on-street parking, or bicycle facilities are provided on Long Hollow near the project site.

Big Station Camp Boulevard is a two-way roadway that generally travels in a north-south direction with one travel lane in each direction. Big Station Camp Boulevard provides connection between Long Hollow Pike to the north and Vietnam Veterans Boulevard to the south. According to the *TDOT Functional Classification Map*, Big Station Camp Boulevard is categorized as a major collector. The posted speed limit on Big Station Camp Boulevard is 45 mph near the project site. No sidewalk, on-street parking, or bicycle facilities are provided on Big Station Camp Boulevard near the project site.

Starting Gate Drive is a two-way roadway that generally travels in an east-west direction with one travel lane in each direction. Starting Gate Drive provides connection between Big Station Camp Boulevard to the east and single-family homes to the west. According to the *TDOT Functional Classification Map*, Starting Gate Drive is categorized as a local street. The speed limit on the roadway was assumed to be 30 mph. Sidewalk is provided on both sides of the roadway.

The study area includes two study intersections described as follows:

Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive is a signalized intersection with four approaches. The eastbound approach of Long Hollow Pike includes one through lane, one left-turn lane with approximately 90 feet of storage, and one right-turn lane with approximately 145 feet of storage. The westbound approach of Long Hollow Pike includes one shared through/right-turn lane and one left-turn lane with approximately 100 feet of storage that extends into a center two-way left-turn lane. The northbound approach of Big Station Camp Boulevard includes one right-turn lane and one shared through/left-turn lane with approximately 130 feet of storage. The southbound approach of Carellton Drive includes one right-turn lane and one shared through/left-turn lane with approximately 75 feet of storage. Protected-permissive left-turn phasing is provided for the eastbound and westbound approaches of Long Hollow Pike. Right-turn overlap phases are provided for the northbound approach of Big Station Camp Boulevard and the southbound approach of Carellton Drive. Split-phased signal operations are also provided on the northbound and southbound approaches.

Big Station Camp Boulevard and Starting Gate Drive is an unsignalized intersection with three approaches. The northbound approach of Big Station Camp Boulevard includes one shared through/left-turn lane. The southbound approach of Big Station Camp Boulevard includes one shared through/right-turn lane. The eastbound approach of Starting Gate Drive is stop-controlled and includes one shared left-turn/right-turn lane.

The existing laneage at the study intersections is illustrated in Figure 2.

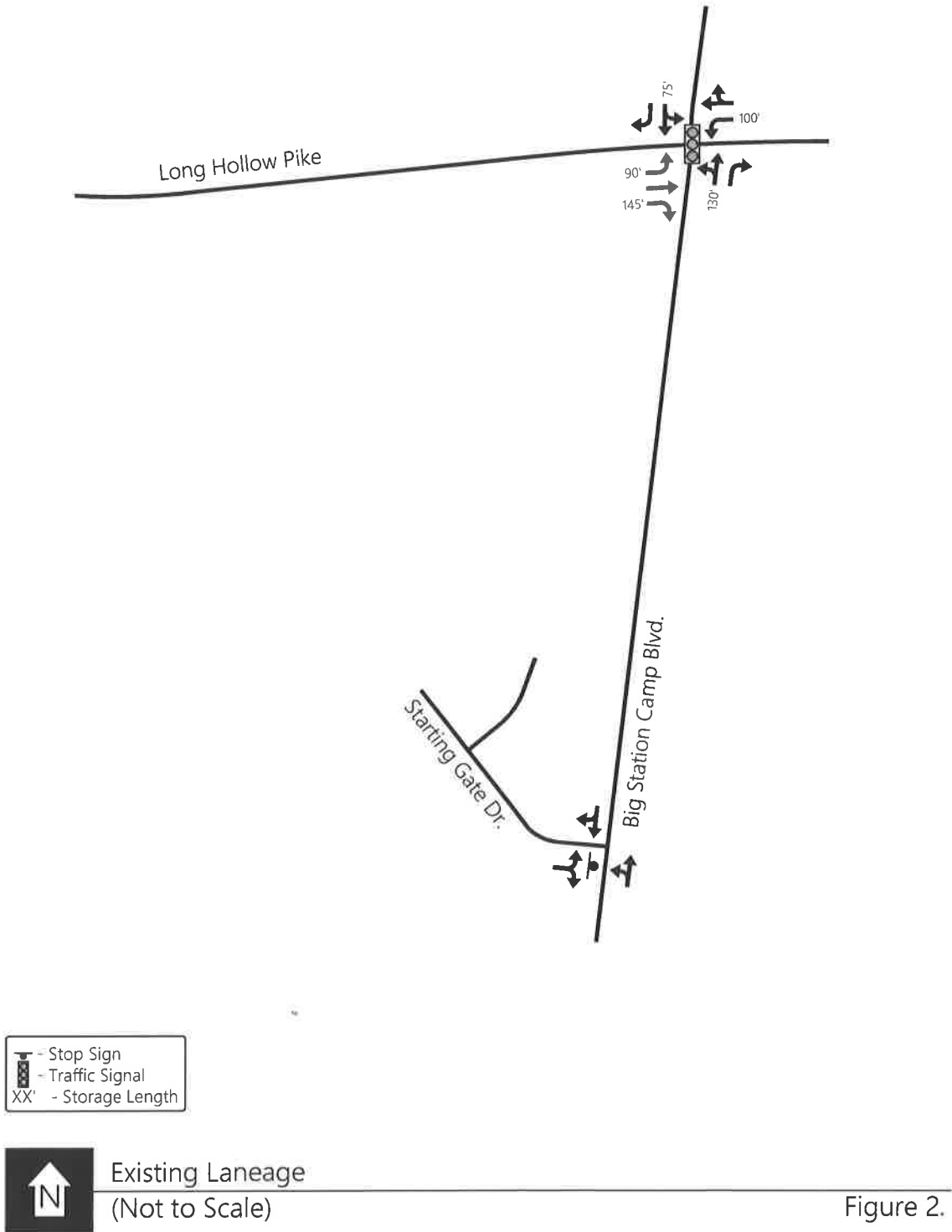


Figure 2.

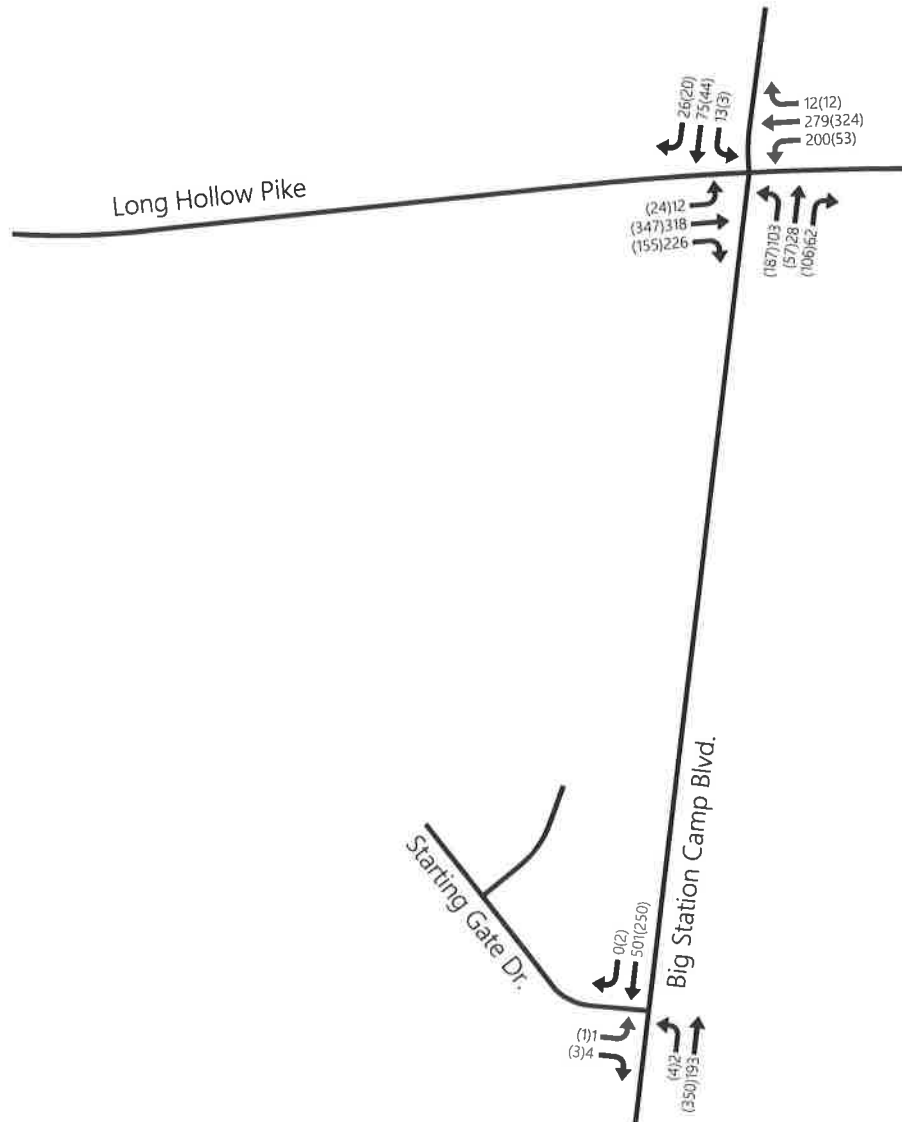
2.2 Existing Traffic Volumes

In order to provide data for the traffic impact analysis, traffic counts were conducted at the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive by KCI Technologies, Inc. Specifically, the counts were conducted from 7:00 – 9:00 AM and 4:00 – 6:00 PM on a typical weekday in August 2018 while local schools were in session. From the counts, it was determined that the peak hours of traffic flow occurred from 7:00 – 8:00 AM and 4:00 – 5:00 PM. Traffic volumes associated with Starting Gate Drive were estimated based on the number of homes. Existing traffic peak hour traffic volumes are shown in Figure 3. A detailed summary of the turning movement counts is included in Appendix B.

Average daily traffic volumes were also obtained from the Tennessee Department of Transportation (TDOT). There are two TDOT count stations located near the project site. The count station locations and annual average daily traffic (AADT) in 2017 are shown in Table 1. TDOT Count Station data is included in Appendix C.

TABLE 1: TDOT COUNT STATION DATA

ROADWAY	LOCATION	2017 AADT (vpd)
Long Hollow Pike	West of Big Station Camp Boulevard	8,715
Big Station Camp Boulevard	South of Long Hollow Pike	3,300



XXX - AM Peak Hour
Traffic Volumes
(XXX) - PM Peak Hour
Traffic Volumes



Existing Peak Hour Traffic Volumes
(Not to Scale)

Figure 3.

2.3 Existing Traffic Operations

To determine the current operation of the study intersections, capacity analyses were performed for the AM and PM peak hours. The capacity calculations were performed according to the methods outlined in the *Highway Capacity Manual*, TRB 2010. The capacity analyses result in the determination of a Level of Service (LOS) for an intersection. The LOS is a concept used to describe how well an intersection or roadway operates. LOS A is the best, while LOS F is the worst. Table 2 presents the descriptions of LOS for unsignalized intersections. Table 3 presents the descriptions of LOS for signalized intersections.

TABLE 2: DESCRIPTIONS OF LEVEL OF SERVICE FOR UNSIGNALIZED INTERSECTIONS

LEVEL OF SERVICE	DESCRIPTION	CONTROL DELAY (sec/veh)
A	Little or no delay	≤ 10.0
B	Short traffic delay	>10 and ≤ 15
C	Average traffic delay	>15 and ≤ 25
D	Long traffic delay	>25 and ≤ 35
E	Very long traffic delay	>35 and ≤ 50
F	Extreme traffic delay	> 50.0

Source: *Highway Capacity Manual*, TRB 2010

TABLE 3: DESCRIPTIONS OF LEVEL OF SERVICE FOR SIGNALIZED INTERSECTIONS

LEVEL OF SERVICE	DESCRIPTION	CONTROL DELAY (sec/veh)
A	Operations with very low delay. This occurs when progression is extremely favorable. Most vehicles do not stop at all.	≤ 10
B	Operations with stable flows. This generally occurs with good progression and/or short cycle lengths. More vehicles stop than for LOS A, causing higher levels of average delay.	>10 and ≤ 20
C	Operations with stable flow. Occurs with fair progression and/or longer cycle lengths. The number of vehicles stopping is significant, although many still pass through the intersection without stopping.	>20 and ≤ 35
D	Approaching unstable flow. The influence of congestion becomes more noticeable. Longer delays may result from some combination of unfavorable progression, long cycle lengths, or high V/C ratios. Many vehicles stop.	>35 and ≤ 55
E	Unstable flow. This is considered to be the limit for acceptable delay. These high delays generally indicate poor progression, long cycle lengths, and high V/C ratios.	>55 and ≤ 80
F	Unacceptable delay. This condition often occurs with over saturation or with high V/C ratios. Poor progression and long cycle lengths may also cause such delay levels.	>80.0

Source: *Highway Capacity Manual*, TRB 2010

The signal timing and phasing plan for the signalized intersection of Long Hollow Pike and Big Station Camp Boulevard was obtained from the City of Gallatin and utilized for the capacity analyses. The signal timing data is included in Appendix D.

The results of the capacity analyses for the existing conditions at the study intersections are presented in Table 4. As shown, all intersections and critical movements operate at LOS C or better in both the AM and PM peak hours. Capacity analyses worksheets are included in Appendix E.

TABLE 4: EXISTING PEAK HOUR LEVELS OF SERVICE

INTERSECTION	TURNING MOVEMENT	LEVEL OF SERVICE (Average Approach Delay in sec/veh)	
		AM Peak Hour	PM Peak Hour
Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive	Overall Intersection	C (25.8)	C (28.3)
Big Station Camp Boulevard and Starting Gate Drive	Northbound Left-Turn	A (8.5)	A (7.8)
	Eastbound Approach	B (12.4)	B (10.7)
<i>Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.</i>			

3. BACKGROUND TRAFFIC VOLUMES

3.1 Establishing Background Volumes

In order to account for the traffic growth prior to the completion of the proposed project, background traffic volumes were established. For the purposes of this traffic study, the development was assumed to be completed by the year 2022, which is a four-year horizon from 2018 existing traffic counts. The background traffic included general traffic growth in the study area as well as site-specific traffic expected to be generated by a future development in the surrounding area. Historical daily traffic volumes were obtained from the TDOT count stations located near the project site. Since 2011, the traffic at the TDOT count stations has increased by an average of 3.86% per year. The TDOT count station data is included in Appendix C.

A growth factor was applied to the existing peak hour traffic volumes to account for background growth for the future conditions. The existing peak hour traffic volumes at the study intersections were increased by 1.5% per year to account for the background traffic growth within the study area. The chosen growth factor is lower than the average growth factor recorded by TDOT count stations because the trips generated by two developments near the study area were accounted for separately, as explained below.

The Carellton development is under construction north of the intersection of Long Hollow Pike and Big Station Camp Boulevard. The development is anticipated to include approximately 480 single-family homes, 239 townhome units, and 7,000 square feet of retail space. Based on information from the City of Gallatin, it is estimated that the residential portion of the development is approximately 40% complete. A traffic generation process was used to estimate the amount of traffic expected to be generated by the completed Carellton development. Factors for the trip generation were taken from ITE's *Trip Generation*, 10th Edition. The calculations for trip generation are included in Appendix F. Table 5 presents the daily, AM, and PM peak hour trip generation for the Carellton development. As shown, the pending development can be expected to generate approximately 3,965 new trips per day. The AM and PM peak hour trips generated will equal approximately 280 and 428 new trips, respectively.

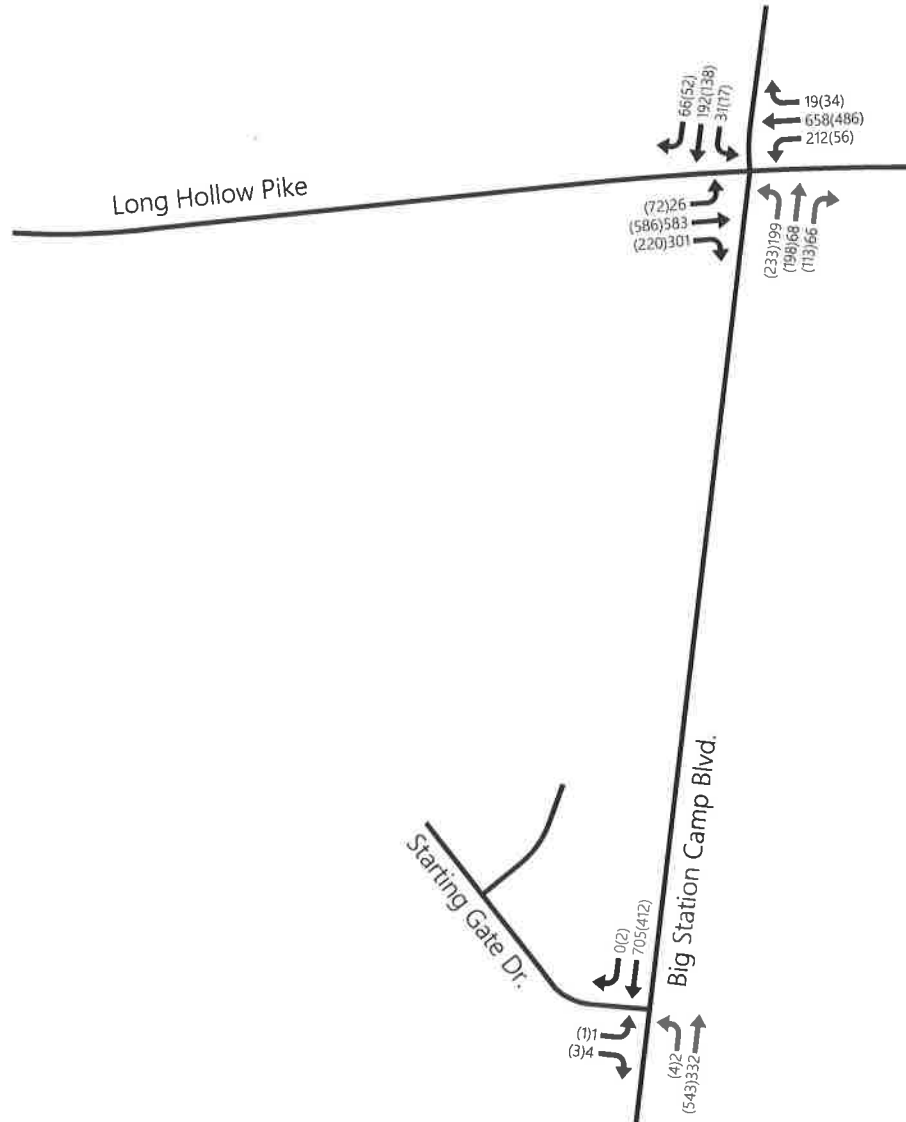
TABLE 5: CARELLTON DEVELOPMENT TRIP GENERATION

LAND USE	SIZE	DAILY TRAFFIC	GENERATED TRAFFIC			
			AM PEAK		PM PEAK	
			Enter	Exit	Enter	Exit
Single-Family Homes (LUC 210)	480 units	4,402	86	260	289	169
Multifamily Housing (Low-Rise) (LUC 220)	239 units	1,766	25	84	81	47
Retail (LUC 820)	7,000 sf	264	4	3	36	40
Subtotal		6,432	115	347	406	256
<i>40% of Residential Complete</i>		<i>-2,467</i>	<i>-44</i>	<i>-138</i>	<i>-148</i>	<i>-86</i>
TOTAL		3,965	71	209	258	170
			280		428	

Source: *Trip Generation*, Tenth Edition

A new school campus is also proposed to be developed on Upper Station Camp Creek Road. The campus is expected to include an elementary school with a capacity of 800 children, a middle school with a capacity of 1,200 children, and a high school with a capacity of 1,800 children. At full capacity, the school campus is expected to generate approximately 7,722 new trips per day. The AM and PM peak hour trips generated will equal approximately 2,168 and 1,286 new trips, respectively. The traffic assignment for both background developments is included in Appendix F.

The combined background peak hour traffic volumes for the year 2022 are presented in Figure 4. These volumes represent the peak hour traffic that is expected to be on the roadway even if the proposed development is not completed.



XXX - AM Peak Hour
Traffic Volumes
(XXX) - PM Peak Hour
Traffic Volumes



Background Peak Hour Traffic Volumes
(Not to Scale)

Figure 4.

3.2 Background Traffic Operations

To determine the operation of the study area intersections under background conditions, capacity analyses were performed for the AM and PM peak hours. The analyses for the background conditions were based on the same lane configurations as the existing conditions.

As shown in Tables 6A and 6B, under background conditions the capacity analyses indicate that the operations at the study intersections will operate at LOS D or better in the AM and PM peak hours with one exception. The intersection of Long Hollow Pike and Big Station Camp Boulevard drops from LOS C to LOS E in both the AM and PM peak hours. Capacity analyses worksheets are included in Appendix E.

TABLE 6A: BACKGROUND AM PEAK HOUR LEVELS OF SERVICE

INTERSECTION	TURNING MOVEMENT	LEVEL OF SERVICE (Average Approach Delay in sec/veh)	
		EXISTING AM	BACKGROUND AM
Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive	Overall Intersection	C (25.8)	E (63.3)
Big Station Camp Boulevard and Starting Gate Drive	Northbound Left-Turn	A (8.5)	A (9.3)
	Eastbound Approach	B (12.4)	C (15.5)
<i>Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.</i>			

TABLE 6B: BACKGROUND PM PEAK HOUR LEVELS OF SERVICE

INTERSECTION	TURNING MOVEMENT	LEVEL OF SERVICE (Average Approach Delay in sec/veh)	
		EXISTING PM	BACKGROUND PM
Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive	Overall Intersection	C (28.3)	E (55.2)
Big Station Camp Boulevard and Starting Gate Drive	Northbound Left-Turn	A (7.8)	A (8.3)
	Eastbound Approach	B (10.7)	B (13.1)
<i>Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.</i>			

4. IMPACTS

4.1 Trip Generation

A traffic generation process was used to estimate the amount of traffic expected to be generated by the proposed Newman's Crossing mixed-use development. As previously discussed, the site is planned to include approximately 100 townhome units, 14,400 square feet of general retail space, 3,000 square feet of quick-service restaurant space with drive-thru, 48,400 square feet of space for a grocery store, and a 4,000 square-foot convenience store with 16 fueling positions. Factors for the trip generation were taken from ITE's *Trip Generation*, 10th Edition.

Data presented in the ITE publication, *Trip Generation Handbook*, show that developments containing multiple land uses will commonly have internal trips. A process was used to estimate the amount of internal trips that can be expected between land uses based on methodology presented in NCHRP Report 684, "Enhancing Internal Trip Capture Estimation for Mixed-Use Developments." The methodology contained in the NCHRP Report expands on ITE's methodology, including additional land uses and supporting data. The internal trip reduction process resulted in an estimated 10% internal capture rate for the AM peak hour, and a 31% internal capture rate for the PM peak hour. For the daily trip generation, a 20% internal capture rate was applied. Internal capture reductions were applied to all land uses. The calculations for trip generation are included in Appendix G.

In addition to internal trips, pass-by trips were also taken into account. Pass-by trips represent vehicles already on the existing network that stop at the development and later continue on to their primary destination with no route diversions. Pass-by trip percentages were taken from ITE's *Trip Generation Handbook*, Second Edition. For the AM peak hour, a 55% pass-by rate was applied to trips generated by land uses within the *Services* category. For the PM peak hour, a 45% pass-by rate was applied to trips generated by land uses within the *Services* and *Retail* categories. For the daily traffic, a pass-by trip percentage of 50% was used for trips generated by all non-residential land uses. The directional distribution and assignment of pass-by trips is shown in Appendix H.

Table 7 presents the daily, AM, and PM peak hour trip generation for the proposed land uses. As shown, the development can be expected to generate approximately 4,737 new trips per day. The AM and PM peak hour trips generated will equal approximately 350 and 372 new trips, respectively. These trips represent the new traffic that will be generated by the proposed development.

TABLE 7: DEVELOPMENT TRIP GENERATION

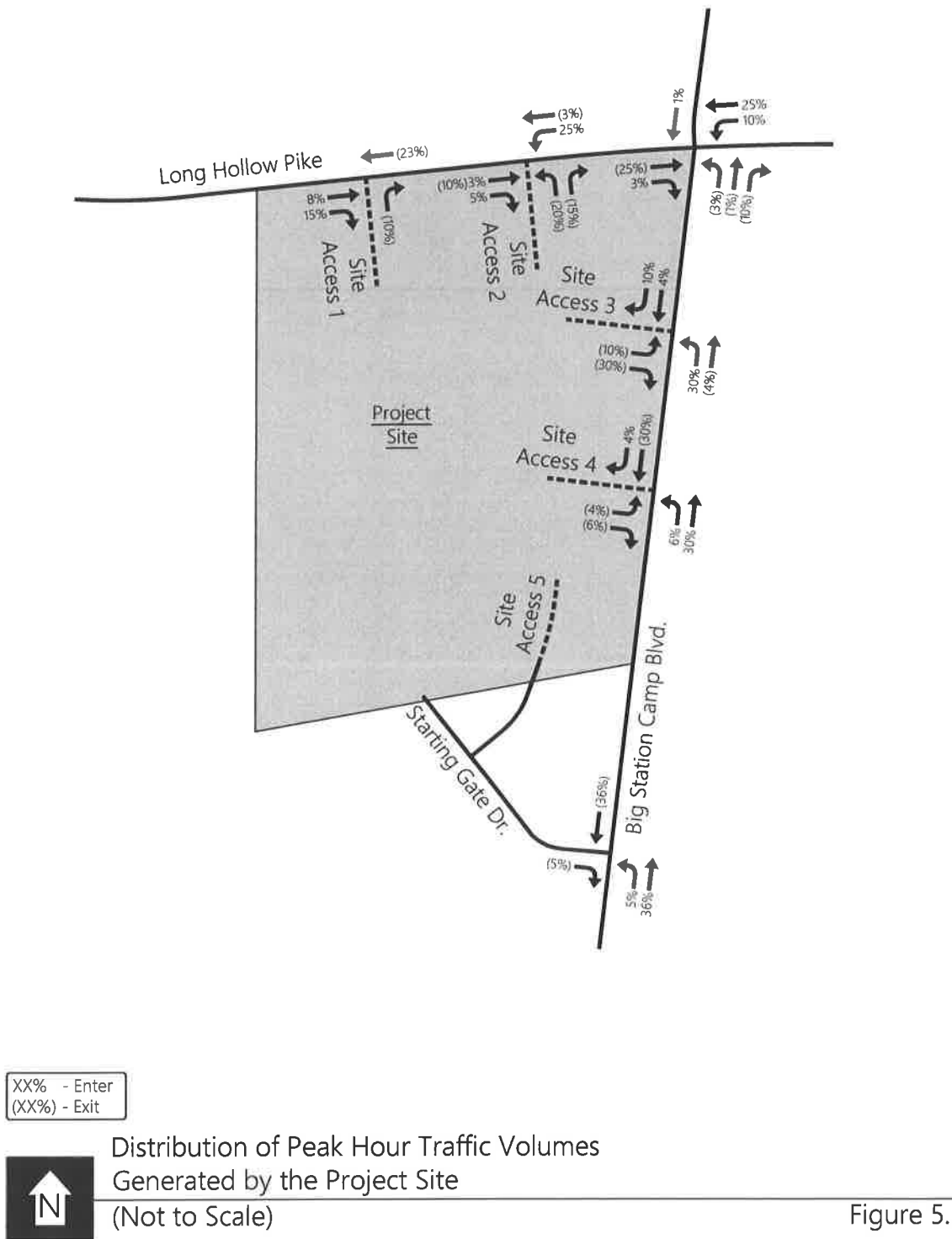
CATEGORY	LAND USE	SIZE	DAILY TRAFFIC	GENERATED TRAFFIC			
				AM PEAK		PM PEAK	
				Enter	Exit	Enter	Exit
Residential	Multifamily Housing (Low-Rise) (LUC 220)	100 du	572	10	30	14	8
Retail	Retail (LUC 820)	14,400 sf	4,570	110	69	217	222
	Supermarket (LUC 850)	800 sf					
Services	Fast-Food Restaurant with Drive-Through (LUC 934)	3,000 sf	3,759	147	146	112	87
	Gasoline/Service Station with Convenience Market (LUC 945)	16 fueling positions					
Subtotal			8,901	267	245	343	317
<i>Pass-by Trips</i>			- 4,164	- 81	-81	-144	-144
NEW TRIPS			4,737	186	164	199	173
				350		372	

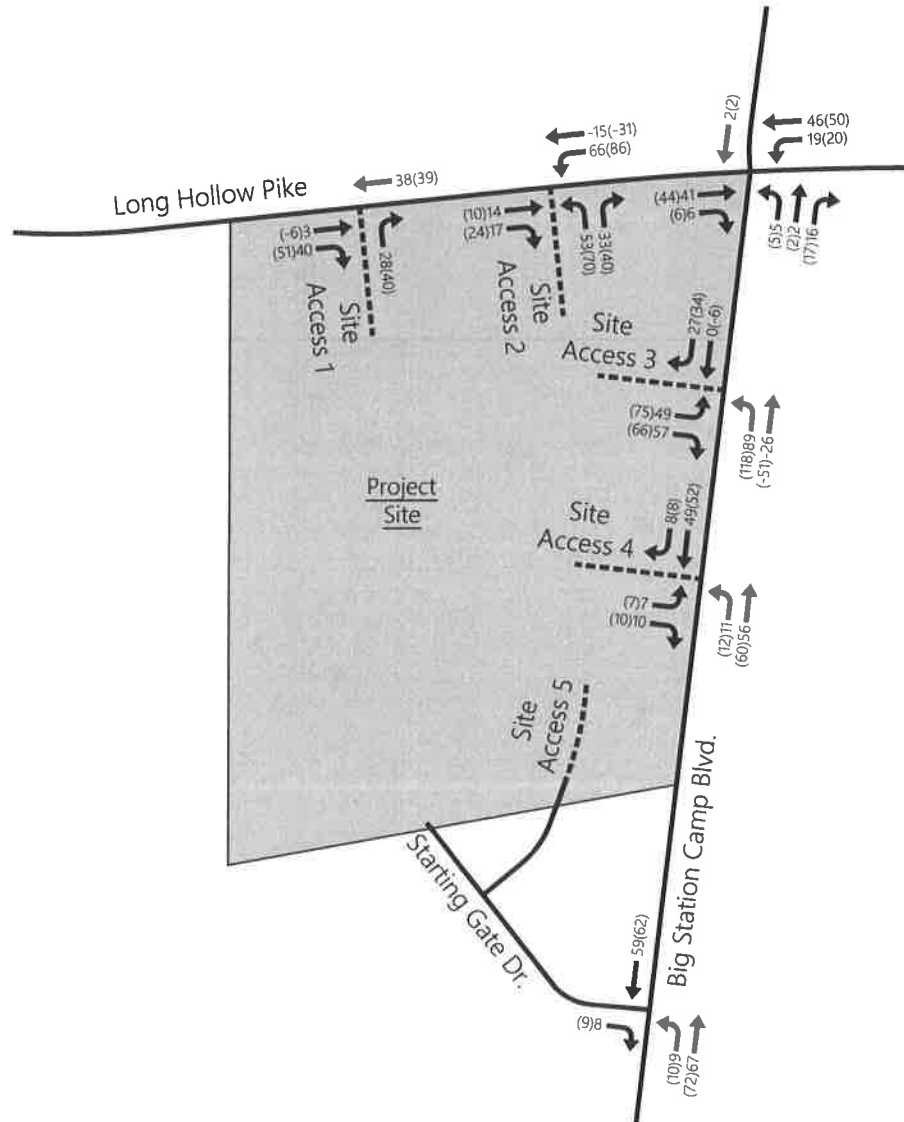
Note: Subtotal numbers do not include internal capture trips.

4.2 Trip Distribution and Traffic Assignment

A directional distribution of traffic generated by the proposed project was established based on the proposed accesses, existing roadway network, and the existing travel patterns developed from the existing peak hour traffic counts. As previously discussed, five vehicular access points to the development are planned to be provided – two to the north on Long Hollow Pike, two to the east on Big Station Camp Boulevard, and one cross-parcel accesses to the south by way of Breaking Pen Road. The westernmost site access on Long Hollow Pike is planned to be right-in, right-out. Additionally, as new developments are built to the west of the project site, one future cross-parcel access to the west is planned to be provided.

The directional distribution for the proposed development is shown in Figure 5. As shown in the figure, approximately 41% of the traffic generated by the development will be oriented to the south on Big Station Camp Boulevard, 35% to the east on Long Hollow Pike, 1% to the north on Carellton Drive, and 23% to the west on Long Hollow Pike. Based on this directional distribution, the project-generated traffic was assigned to the roadway network. The traffic assignment for the proposed development is shown in Figure 6.





XXX - AM Peak Hour
Traffic Volumes
(XXX) - PM Peak Hour
Traffic Volumes



Total Assignment of Peak Hour Traffic Volumes
Generated by the Project Site (Includes Pass-By)
(Not to Scale)

Figure 6.

4.3 Capacity / Level of Service Analyses

The total site-generated traffic volumes were added to the background peak hour traffic volumes for the proposed development in order to obtain the total projected traffic volumes for the study intersections. Figure 7 presents the total projected AM and PM peak hour traffic volumes expected at the completion of the proposed development.

Capacity analyses were performed in order to determine the impact of the project on the study intersections. These capacity analyses were also used to evaluate the need for roadway and traffic control improvements at the intersections studied. The capacity calculations were performed according to the methods outlined in the *Highway Capacity Manual*, TRB 2010. The results of the capacity analyses for the projected conditions at the study area intersections are presented in Tables 8A and 8B. For the analyses, the intersection configurations were the same as the background conditions, with the following exceptions, as per the provided site plan:

- A channelized right-turn lane with approximately 120 feet of storage was assumed to be provided for the eastbound approach of Long Hollow Pike at Site Access 1.
- A right-turn lane with approximately 100 feet of storage was assumed to be provided for the eastbound approach of Long Hollow Pike at Site Access 2.
- A left-turn lane with approximately 190 feet of storage was assumed to be provided for the westbound approach of Long Hollow Pike at Site Access 2.
- A right-turn lane with approximately 120 feet of storage was assumed to be provided for the southbound approach of Big Station Camp Boulevard at Site Access 3.

All site access drives were treated as stop-controlled. Site Access 1, Site Access 2, and Site Access 3 were modeled to include one entering lane and two exiting lanes; one right-turn lane and one left-turn lane. Site Access 4 and Site Access 5 were modeled to include one entering lane and one shared left-turn/right-turn exiting lane.

As shown in Tables 8A and 8B, under the projected conditions the capacity analyses indicate that the study intersections are expected to generally operate at the same levels of service as under the background conditions, with one exception; the intersection of Long Hollow Pike and Big Station Camp Boulevard is expected to drop from LOS E to LOS F in the AM peak hour. Additionally, all critical turning movements at the proposed site accesses are expected to operate at LOS C or better with the following exceptions:

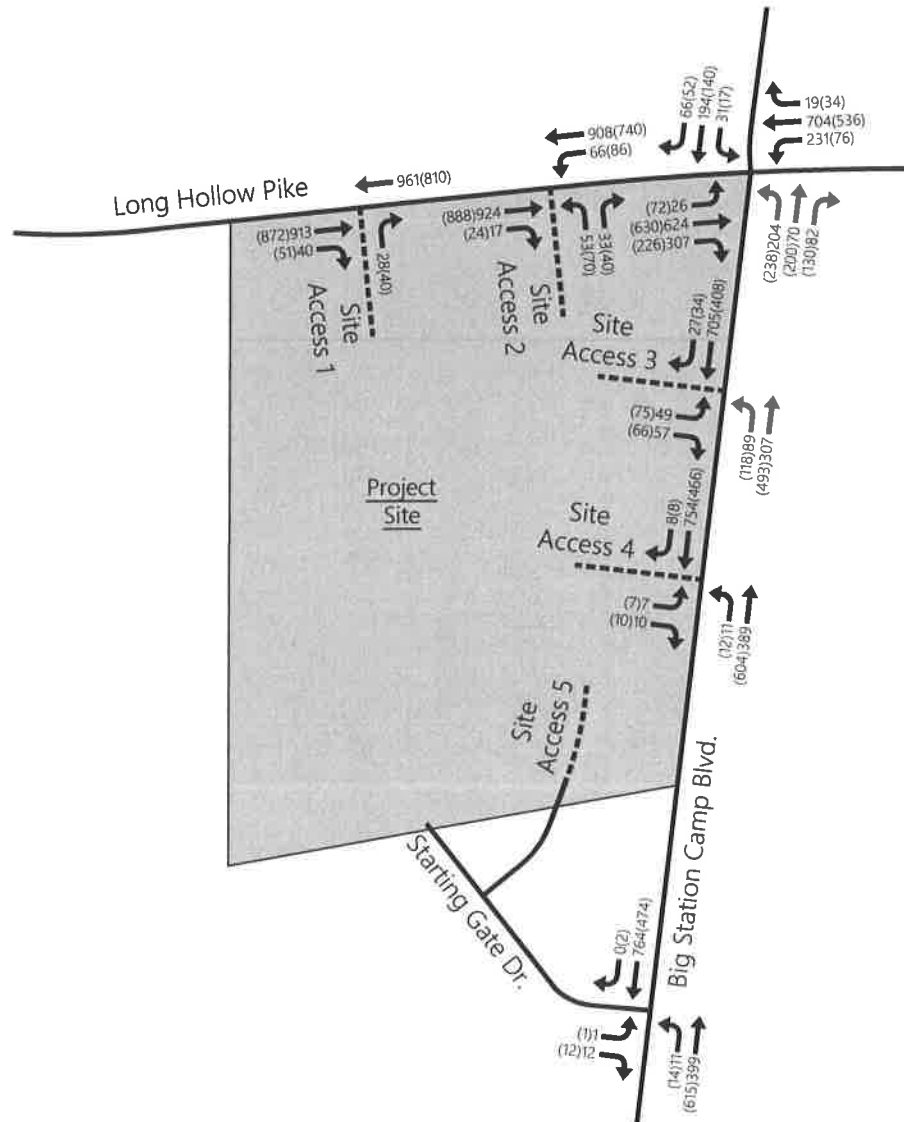
- The northbound left-turn approach of Site Access 2 at Long Hollow Pike is expected to operate at LOS F in the AM and PM peak hours.
- The eastbound left-turn approach of Site Access 3 at Big Station Camp Boulevard is expected to operate at LOS E in the AM and PM peak hours.

It should be noted that these performances are common for stop-controlled approaches to high volume roadways such as Long Hollow Pike and Big Station Camp Boulevard.

Based on the capacity analyses results for the intersection of Long Hollow Pike and Big Station Camp Boulevard, additional analyses were conducted to evaluate potential improvement options. It should be noted that these improvements are warranted primarily by the traffic volumes generated by the previously discussed background developments. The improvements described in detail below were adopted from the Big Station Camp Boulevard corridor study prepared for the City of Gallatin.

- Install an exclusive left-turn lane with approximately 300 feet of storage on the northbound approach of Big Station Camp Boulevard.
- Extend the eastbound right-turn lane on Long Hollow Pike to provide a total of 280 feet of storage. The Big Station Camp Boulevard corridor study prepared for the City of Gallatin recommended that the eastbound right-turn lane on Long Hollow Pike be extended to provide a total of 300 feet of storage. However, a 300-foot long storage length would require the relocation of proposed Site Access 2 farther to the west, which would lead to sight distance limitations for vehicles turning left out of this proposed site access. In order to ensure adequate sight distance for Site Access 2 as designated in the current site plan, the storage for the eastbound right-turn lane of Long Hollow Pike at Big Station Camp Boulevard should be increased from 145 feet to 280 feet as opposed to 300 feet.
- Restripe the southbound approach of Carellton Drive to include one left-turn lane and one shared through/right-turn lane.
- Modify the traffic signal to provide protected-permissive left-turn signal phasing for all approaches. Also provided a right-turn overlap phase for the eastbound approach of Long Hollow Pike.

The results of the capacity analyses for the improved intersections are presented in Tables 8A and 8B in **bold**. As shown, the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive improves to LOS D in both the AM and PM peak hours. Capacity analyses worksheets are included in Appendix E.



XXX - AM Peak Hour
Traffic Volumes
(XXX) - PM Peak Hour
Traffic Volumes



Total Projected Peak Hour Traffic Volumes
(Not to Scale)

Figure 7.

TABLE 8A: PROJECTED AM PEAK HOUR LEVELS OF SERVICE

INTERSECTION	TURNING MOVEMENT	LEVEL OF SERVICE		
		(Average Approach Delay in sec/veh)		
		EXISTING AM	BACKGROUND AM	PROJECTED AM
Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive	Overall Intersection	C (25.8)	E (63.3)	F (79.5)
	Overall Intersection	--	--	D (42.6)
Big Station Camp Boulevard and Starting Gate Drive	Northbound Left-Turn	A (8.5)	A (9.3)	A (9.6)
	Eastbound Approach	B (12.4)	C (15.5)	C (16.0)
Long Hollow Pike and Site Access 1	Northbound Right-Turn	--	--	C (18.5)
Long Hollow Pike and Site Access 2	Northbound Left-Turn	--	--	F (>300)
	Northbound Right-Turn	--	--	C (18.9)
	Westbound Left-Turn	--	--	B (10.9)
Big Station Camp Boulevard and Site Access 3	Northbound Left-Turn	--	--	A (9.9)
	Eastbound Left-Turn	--	--	E (40.6)
	Eastbound Right-Turn	--	--	C (15.5)
Big Station Camp Boulevard and Site Access 4	Northbound Left-Turn	--	--	A (9.6)
	Eastbound Approach	--	--	C (20.0)
<i>Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.</i>				

TABLE 8B: PROJECTED PM PEAK HOUR LEVELS OF SERVICE

INTERSECTION	TURNING MOVEMENT	LEVEL OF SERVICE (Average Approach Delay in sec/veh)		
		EXISTING PM	BACKGROUND PM	PROJECTED PM
Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive	Overall Intersection	C (28.3)	E (55.2)	E (69.7)
	Overall Intersection	--	--	D (35.4)
Big Station Camp Boulevard and Starting Gate Drive	Northbound Left-Turn	A (7.8)	A (8.3)	A (8.5)
	Eastbound Approach	B (10.7)	B (13.1)	B (12.6)
Long Hollow Pike and Site Access 1	Northbound Right-Turn	--	--	C (18.2)
Long Hollow Pike and Site Access 2	Northbound Left-Turn	--	--	F (>300)
	Northbound Right-Turn	--	--	C (18.5)
	Westbound Left-Turn	--	--	B (11.0)
Big Station Camp Boulevard and Site Access 3	Northbound Left-Turn	--	--	A (8.8)
	Eastbound Left-Turn	--	--	E (47.8)
	Eastbound Right-Turn	--	--	B (11.6)
Big Station Camp Boulevard and Site Access 4	Northbound Left-Turn	--	--	A (8.5)
	Eastbound Approach	--	--	C (16.8)
Note: For signalized intersections, an overall LOS is presented. For stop-controlled intersections, an LOS is presented for each critical turning movement.				

5. ANALYSIS OF SITE PLAN

5.1 Site Access Review

According to information provided by the development team, the development is planned to consist of approximately 100 townhome units, 14,400 square feet of general retail space, 3,000 square feet of quick-service restaurant space with drive-thru, 48,400 square feet of space for a grocery store, and a 4,000 square-foot convenience store with 16 fueling positions. Five vehicular access points to the development are planned to be provided – two to the north on Long Hollow Pike, two to the east on Big Station Camp Boulevard, and one cross-parcel accesses to the south by way of Breaking Pen Road. Additionally, as new developments are built to the west of the project site, one future cross-parcel access to the west is planned to be provided. A description of each proposed access follows:

- Site Access 1 is planned to be right-in, right-out. Additionally, a channelized right-turn lane with approximately 120 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 1.
- Site Access 2 is planned to include one entering lane and two exiting lanes; one right-turn lane and one left-turn lane. Additionally, a right-turn lane with approximately 100 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 2 and a left-turn lane with approximately 190 feet of storage is planned to be installed on the westbound approach of Long Hollow Pike at Site Access 2.
- Site Access 3 is planned to include one entering lane and two existing lanes; one right-turn lane and one left-turn lane. Additionally, a right-turn lane with approximately 120 feet of storage is planned to be installed on the southbound approach of Big Station Camp Boulevard at Site Access 3.
- Site Access 4 and Site Access 5, which are intended for the exclusive use of residents of the development, are planned to include one entering lane and one exiting lane.

5.2 Sight Distance Analyses

Sight distance measurements were conducted at the proposed site accesses to determine if adequate sight distance would be available for motorists making left or right turns from the proposed site accesses. For 50 mph, the speed limit on Long Hollow Pike, the guidelines from *A Policy on Geometric Design of Highways and Streets*, by the American Association of State Highway and Transportation Officials (AASHTO), call for a minimum stopping sight distance of 425 feet as a design value. This is the distance required for a motorist to detect an object in the roadway necessitating a stop

and be able to stop before reaching the object. For 45 mph, the speed limit on Big Station Camp Boulevard, a minimum stopping sight distance of 360 feet is called for as a design value.

Subsequently, AASHTO also provides minimum design values for intersection sight distance. For example, for a speed of 50 miles per hour, the design value for the intersection sight distance for a motorist turning right from a stop is 480 feet. Therefore, it is desirable to provide a minimum of 480 feet of sight distance looking west from the proposed site accesses turning onto Long Hollow Pike. For a speed of 50 miles per hour, the design value for the intersection sight distance for a motorist turning left from a stop is 555 feet. Therefore, it is desirable to provide a minimum of 555 feet of sight distance looking east from the site accesses turning onto Long Hollow Pike.

Additionally, for a speed of 45 miles per hour, the design value for the intersection sight distance for a motorist turning right from a stop is 430 feet. Therefore, it is desirable to provide a minimum of 430 feet of sight distance looking north from the proposed site accesses turning onto Big Station Camp Boulevard. For a speed of 45 miles per hour, the design value for the intersection sight distance for a motorist turning left from a stop is 500 feet. Therefore, it is desirable to provide a minimum of 500 feet of sight distance looking south from the site accesses turning onto Big Station Camp Boulevard.

Table 9 summarizes the results of the sight distance measurements at the proposed sight accesses.

TABLE 9: INTERSECTION SIGHT DISTANCE ANALYSES

INTERSECTION	STOPPING SIGHT DISTANCE DESIGN	INTERSECTION SIGHT DISTANCE FOR LEFT TURNS FROM STOP		INTERSECTION SIGHT DISTANCE FOR RIGHT TURNS FROM STOP	
		DESIGN	AVAILABLE	DESIGN	AVAILABLE
Site Access 1 and Long Hollow Pike	425'	--	--	480'	500'
Site Access 2 and Long Hollow Pike		555'	450'*	480'	500'
Site Access 3 and Big Station Camp Boulevard	360'	500'	465'	430'	270'*
Site Access 4 and Big Station Camp Boulevard		500'	>500'	430'	465'
*Approximate distance to adjacent traffic signal heads					

Adequate sight distance is available for turning right out of Site Access 1. Approximately 500 feet of sight distance is available looking west, which exceeds the design value of 480 feet for right turns.

Adequate sight distance is available for turning right and left out of Site Access 2. With a sight distance of 450 feet looking east, a clear view of the intersection of Big Station Camp Boulevard and Long Hollow Pike, approximately 350 feet away, is provided. Approximately 500 feet of sight distance is available looking west, which exceeds the design value of 480 feet for right turns.

Adequate sight distance is available for turning right out of Site Access 3. A clear view is provided looking to the north of the intersection of Big Station Camp Boulevard and Long Hollow Pike, approximately 270 feet away. Due to the vertical curvature of Big Station Camp Boulevard, the available intersection sight distance for turning left out of the Site Access 3 does not meet design standards. Approximately 465 feet of sight distance is available looking south, which falls 35 feet below the design value of 500 feet for left turns. In order to enhance the sight distance at this access, the location of Site Access 3 can either be shifted or the driveway grade can be raised until the required sight distance is met for left-turning vehicles exiting the development.

Adequate sight distance is available for turning right and left out of Site Access 4. Over 500 feet of sight distance is available looking south, which exceeds the design value of 500 feet for left turns. Approximately 465 feet of sight distance is available looking north, which exceeds the design value of 430 feet for right turns.

5.3 Turn Lane Warrant Analysis

The westbound approach of Long Hollow Pike was evaluated for the need to provide a left-turn lane at Site Access 2 based on the projected traffic volumes. This analysis was based on the procedures outlined in M.D. Harmelink's *Volume Warrants for Left-Turn Storage Lanes at Unsignalized Intersections*. The results on the analysis indicate that a left-turn lane is warranted at Site Access 2 on Long Hollow Pike during the AM and PM peak hours. It should be noted that the speed limit on Long Hollow Pike is under consideration to be lowered to 40 mph. The results on the analysis indicate that a left-turn lane is warranted at Site Access 2 on Long Hollow Pike even with the reduced speed limit. The left-turn lane analyses are included in Appendix I.

The northbound approach of the proposed Site Access 2 and the eastbound approach of Site Access 3 were evaluated for the need to provide a two-lane approach based on the projected traffic volumes during the AM and PM peak hours. According to

Evaluating Intersection Improvements: An Engineering Study Guide (NCHRP 457) Figure 4-2, a two-lane approach is warranted for the northbound approach of Site access 2, but not for the eastbound approach of Site Access 3. Despite these results, a two-lane approach should still be considered for both Site Access 2 and Site Access 3 in order to improve the levels of service experienced by right-turning vehicles exiting the development. The turn lane analyses are included in Appendix I.

5.4 Queue Analyses

In addition to the capacity analyses at the study intersections, the 95th percentile queue lengths during the AM and PM peak hours were evaluated for all study intersections. Table 10 shows the queues for the critical movements at the intersection of Long Hollow Pike and Big Station Camp Boulevard under projected conditions. Analysis worksheets for all study intersections are included in Appendix E.

TABLE 10: PROJECTED PEAK HOUR QUEUES

INTERSECTION	TURNING MOVEMENT	AVAILABLE STORAGE	95 TH PERCENTILE QUEUE LENGTH	
			AM	PM
Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive	Eastbound Left-Turn	90'	41'	90'
	Eastbound Right-Turn	145'	319'	207'
	Westbound Left-Turn	100'	490'	95'
	Northbound Thru/Left-Turn	130'	367'	712'
	Northbound Right-Turn	--	39'	59'
Long Hollow Pike and Big Station Camp Boulevard/ Carellton Drive (With Improvements)	Eastbound Left-Turn	90'	26'	58'
	Eastbound Right-Turn	280'	108'	28'
	Westbound Left-Turn	100'	246'	61'
	Northbound Left-Turn	300'	276'	279'
	Northbound Through	--	101'	254'
	Northbound Right-Turn	100'	35'	59'

5.5 TDOT Driveway Standards

TDOT permits access to state highways according to the standards outlined in their *Manual for Constructing Driveway Entrances on State Highways*, 2015 Edition. The site accesses on Long Hollow Pike (State Route 174) were evaluated according to these standards.

According to Section 5.1.4, a two-way commercial driveway has a minimum width of 24 feet and a maximum width of 40 feet. The maximum width is permitted to increase to a maximum of 50 feet if the development is expected to serve a substantial volume of heavy vehicles.

According to Section 5.1.5, access driveways must have a minimum of 150 feet of corner clearance to an intersection of an arterial (Long Hollow Pike) and a collector (Big Station Camp Boulevard). According to the developer's site plan, the distance between Site Access 2 and the state Right-of-Way line is approximately 350 feet.

6. CONCLUSIONS AND RECOMMENDATIONS

The analyses presented in this study indicate that the impacts of the proposed project on the existing street network will be manageable by providing the recommendations below. These specific recommendations will provide safe and efficient traffic operations within the study area following the completion of the proposed project. The recommendations are as follows:

The following improvements for the intersection of Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive were adopted from the Big Station Camp Boulevard corridor study prepared for the City of Gallatin:

- Install an exclusive left-turn lane with approximately 300 feet of storage on the northbound approach of Big Station Camp Boulevard.
- Extend the eastbound right-turn lane on Long Hollow Pike to provide a total of 280 feet of storage. The Big Station Camp Boulevard corridor study prepared for the City of Gallatin recommended that the eastbound right-turn lane on Long Hollow Pike be extended to provide a total of 300 feet of storage. However, a 300-foot long storage length would require the relocation of proposed Site Access 2 farther to the west, which would lead to sight distance limitations for vehicles turning left out of this proposed site access. In order to ensure adequate sight distance for Site Access 2 as designated in the current site plan, the storage for the eastbound right-turn lane of Long Hollow Pike at Big Station Camp Boulevard should be increased from 145 feet to 280 feet as opposed to 300 feet. According to the evaluation of the 95th percentile queue lengths for the intersection of Long Hollow Pike and Big Station Camp Boulevard under projected conditions with improvements, providing 280 feet of storage for the eastbound right-turn lane of Long Hollow Pike will be more than sufficient to accommodate traffic demand during both the AM and PM peak hours.
- Restripe the southbound approach of Carellton Drive to include one left-turn lane and one shared through/right-turn lane.
- Modify the traffic signal to provide protected-permissive left-turn signal phasing for all approaches. Also, provide a right-turn overlap phase for the eastbound approach of Long Hollow Pike.

The following improvements should be provided in conjunction with the development of this project:

Long Hollow Pike and Big Station Camp Boulevard/Carellton Drive

- Due to the potential for pedestrian activity between the retail portion of the proposed development and the Carellton development to the north, it is recommended to provide a pedestrian crosswalk and pedestrian signals with countdown timers for movements across the west leg of Long Hollow Pike.

Long Hollow Pike and Site Access 1 (Western Access)

- The proposed connection to Long Hollow Pike should be designed as a right-in, right-out access with one entering lane and one exiting lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- A channelized right-turn lane with approximately 120 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 1.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
 - According to field measurements, adequate intersection sight distance is available for turning right out of the proposed site access.

Long Hollow Pike and Site Access 2 (Eastern Access)

- Based on the results of a left-turn lane analysis, a westbound left-turn lane on Long Hollow Pike is warranted under projected conditions.
 - It should be noted that the speed limit on Long Hollow Pike is under consideration to be lowered to 40 mph. The results of the analysis indicate that a left-turn lane is warranted at the site access even with the reduced speed limit.
- A right-turn lane with approximately 100 feet of storage is planned to be installed on the eastbound approach of Long Hollow Pike at Site Access 2 and a left-turn lane with approximately 190 feet of storage is planned to be installed on the westbound approach of Long Hollow Pike at Site Access 2.
- The proposed connection to Long Hollow Pike should be designed to include one entering lane and two exiting lanes, one left-turn lane and one right-turn lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will

be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.

- According to field measurements, adequate intersection sight distance is available for turning left and right out of the proposed site access.

Big Station Camp Boulevard and Site Access 3 (Northern Access)

- The proposed connection of Site Access 3 to Big Station Camp Boulevard should be designed to include sufficient width for one entering lane and two exiting lanes, one left-turn lane and one right-turn lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- A right-turn lane with approximately 120 feet of storage is planned to be installed on the southbound approach of Big Station Camp Boulevard at Site Access 3.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
 - According to field measurements, while adequate stopping sight distance is available, adequate intersection sight distance is only available for turning right out of the proposed site access. The available sight distance for turning left out of the proposed site access falls 35 feet below the design value. In order to enhance the sight distance for vehicles turning left out of Site Access 3, its location should either be shifted or its grade should be raised until sight distance requirements are met.

Big Station Camp Boulevard and Site Access 4 (Southern Access Serving the Residential Portion of the Site)

- The proposed connection of Site Access 4 to Big Station Camp Boulevard should be designed to include sufficient width for one entering lane and one exiting lane. A stop bar and R1-1 'Stop' sign should be installed on the egress approach.
- As part of the construction of the project, the driveway connection should be designed such that the departure sight triangles, as specified by AASHTO, will be clear of all sight obstructions, including landscaping, existing vegetation, monument signs/walls, fences, etc.
 - According to field measurements, adequate intersection sight distance is available for turning left and right out of the proposed site access.

Trip Generation and Big Station Camp Corridor Roadway Fees

- The Big Station Camp Corridor Roadway Fee program is based on the number of peak hour trips generated by a development. Since the analyses presented in this study are based on trip generation rates from a national dataset, additional analysis may be performed after the completion and occupation of each development phase to determine the actual peak hour trips generated, as they may be less than those estimated in this study.
- Additionally, the construction of the recommendations presented above should be considered against the City of Gallatin's impact fee program for this corridor. In some instances, constructed improvements that would need to be rebuilt in the future may not best serve the adjacent roadway network.

In summary, based on the analyses conducted, no further recommendations are presented for the proposed development.

APPENDICES

APPENDIX A
PRELIMINARY SITE PLAN

APPENDIX B
DETAILED TURNING MOVEMENT COUNTS

APPENDIX C
TDOT COUNT DATA

APPENDIX D
GALLATIN SIGNAL TIMING

APPENDIX E
CAPACITY ANALYSIS

APPENDIX F
BACKGROUND DEVELOPMENT TRAFFIC ASSIGNMENT FIGURES

APPENDIX G
TRIP GENERATION CALCULATIONS

APPENDIX H
PASS-BY DISTRIBUTION AND ASSIGNMENT

APPENDIX I
TURN LANE WARRANT ANALYSES

APPENDIX A
PRELIMINARY SITE PLAN



Exhibit '3' – List and Cost of Offsite Improvements to be constructed by the Property Owner/Developer

520' LEFT TURN LANE ON BIG STATION CAMP:	<u>\$200,540</u>
EXTENSION OF EASTBOUND RIGHT TURN LANE ON LONG HOLLOW PIKE:	<u>\$48,959</u>
NEW EASTBOUND RIGHT TURN LANE ON LONG HOLLOW PIKE TO SITE ACCESS 1:	<u>\$72,219</u>
NEW EASTBOUND RIGHT TURN LANE ON LONG HOLLOW PIKE TO SITE ACCESS 2:	<u>\$58,162</u>
NEW SOUTHBOUND RIGHT TURN LANE ON BIG STATION CAMP BLVD TO SITE ACCESS 3:	<u>\$71,024</u>
NEW WESTBOUND LEFT TURN LANE ON LONG HOLLOW PIKE TO SITE ACCESS 2:	<u>\$115,434</u>
SIGNAL / INTERSECTION IMPROVEMENTS COSTS:	<u>\$422,785</u>
Total Construction:	<u>\$989,123</u>
Design:	<u>\$26,000</u>
Permit cost (TDOT):	<u>\$20,500</u>
ROW Dedication (0.04ac):	<u>\$29,714.28</u>
TOTAL	- \$1,035,623.00

Exhibit '4' – Timing and Allocation for Property Owner/Developer Payments

1. Development of any parcel in the Commercial Project portion of the Development causes the need for the Transportation Corridor Improvements.
2. Therefore prior to the issuance of any certificate of occupancy for any building within the Commercial Project portion of the Development, the Transportation Corridor Improvements shall be completed.
3. The Property Owner/Developer shall place the Surety with the City as stated in this Agreement and TDOT as required immediately preceding commencement of construction for the Transportation Corridor Improvements and prior to pulling any permits in connection therewith. Notwithstanding any provision in the Agreement to the contrary, the City expressly agrees that that Property Owner/Developer may submit a ROW Excavation Surety to secure applicable permits for construction in City ROW in lieu of the Surety listed in Paragraph 4A of this Agreement (notwithstanding that the surety amounts may be different). In the event, the Property Owner/Developer has not completed the Transportation Corridor Improvements prior to issuance of any vertical building permit for the Commercial Project, Property Owner/Developer shall submit applicable Surety as required to satisfy the requirements of Paragraph 4A related to any remaining uncompleted Transportation Corridor Improvements, if any.
4. It shall be the Property Owner/Developer's responsibility to complete these improvements prior to the issuance of any certificate of occupancy for any building within the Commercial Project portion of the Development.
5. In no event shall any subdivision, building permit or certificate of occupancy on the Residential Project portion of the Development be conditioned, delayed or withheld prior to completion of the Transportation Corridor Improvements.
6. As stated in this Agreement, the attached traffic study and the approved plans improvements cost for these improvements will exceed the PM Peak Fees.
7. Therefore, completion of the Transportation Corridor Improvements will satisfy and fulfill any Pro-Rata Share Payment requirement

**Exhibit '5' to Pro-Rata Share Agreement
Joinder Agreement for Transferees of the Property Owner/Developer**

The undersigned, in connection with the transfer of the real property / lots described below, hereby agrees to become a party to that certain Big Station Camp Boulevard Corridor Transportation Improvements Pro-Rata Share Agreement (the "Agreement"). Capitalized terms used but not defined herein shall have the meaning ascribed to such term in the Agreement.

RECITALS:

WHEREAS, Newmans Crossing (Property Owner/ Developer) and the City have contracted for the security for, and the payment of, the Pro-Rata Share Payments pursuant to the Agreement;

WHEREAS, the Property Owner/Developer has sold a portion of the Development, as evidenced by that certain deed of record in Record Book _____, page _____, in the Register's Office for Sumner County, Tennessee (the "Transferred Property");

WHEREAS, as a condition to the development and construction of the Transferred Property, the City requires delivery of this Joinder and its accompanying Exhibit '5-1;'

NOW, THEREFORE, in consideration of the transfer of the Transferred Property and payment of Pro-Rata Share Payments by the Property Owner/Developer and the undersigned, the undersigned and the City agree as follows:

1. The undersigned agrees to be bound by the terms and provisions of the Agreement as they pertain only to the Transferred Property. The undersigned shall perform all obligations of the Property Owner/Developer related to the development and construction of the Transferred Property.
2. Attached hereto as Exhibit 5-1 is a schedule for the Surety and Pro-Rata Share Payments required for the Transferred Property.
3. The undersigned shall indemnify and hold the Property Owner/Developer harmless for any and all obligations required by the Agreement for the Transferred Property.
4. The City agrees to release and remise the Property Owner/Developer for its obligations under the Agreement pertaining only to the Transferred Property, as reflected by Exhibit '5-1.'
5. This Joinder may be executed in any number of counterparts (including telecopied or email .pdf signatures), each of which when so executed and delivered shall be deemed an original, and such counterparts together shall constitute one instrument. This Joinder shall take effect upon its execution by the City.

IN WITNESS WHEREOF, the parties have agreed as set forth above.

TRANSFeree

BY: _____
ITS: _____

ACKNOWLEDGED AND AGREED:

CITY OF GALLATIN

BY: _____
PAIGE BROWN, MAYOR

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 09, 2020

DEPARTMENT: Councilman Jimmy Overton

AGENDA # 4

SUBJECT:

Discussion of 2020 Fourth of July Celebration

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

June 09, 2020

DEPARTMENT: **Councilman Shawn Fennell**

AGENDA # 5

SUBJECT:

Discussion of 2020 Third Thursday Concerts

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes: